

**CITY OF MENASHA
COMMON COUNCIL
First Floor Conference Room
100 Main Street
Monday, March 18, 2019
Meeting 6:00 PM
AGENDA**

A. CALL TO ORDER

B. PLEDGE OF ALLEGIANCE

C. ROLL CALL

D. PUBLIC HEARING

1. Garages, Accessory Buildings, and Uses within the R-1 Single Family Residence District and R-2 Two-Family Residence District (Chicken Coops)

E. PUBLIC COMMENTS ON ANY MATTER OF CONCERN TO THE CITY
(five (5) minute time limit for each person)

F. REPORT OF DEPARTMENT HEADS/STAFF/CONSULTANTS

1. Introduction & swearing in of new firefighter, Josh Boelk
2. Clerk Galeazzi—the following minutes and communications have been received and placed on file:

Minutes to receive:

- a. Administration Committee, 3/4/2019
- b. Board of Health, 2/15/2019& 3/8/2019
- c. Board of Public Works, 3/4/2019
- d. Committee on Aging, 1/11/2019
- e. Housing Authority, 3/11/2019
- f. Library Board, 2/27/2019
- g. Plan Commission, 3/5/2019
- h. Personnel Committee, 3/4/2019
- i. Redevelopment Authority, 3/5/2019
- j. Sustainability Committee, 2/21/2019

Communications:

- k. Elected Officials Seminar Memorandum, 3/14/2019, Clerk Galeazzi

G. CONSENT AGENDA

(Prior to voting on the Consent Agenda, items on the Consent Agenda may be removed at the request of any Alderman and placed immediately following action on the Consent Agenda. The procedures to follow for the Consent Agenda are: (a) removal of items from Consent Agenda; and (b) motion to approve the items from Consent Agenda.)

Minutes to approve:

1. Common Council, 3/4/2019

Administration Committee, 3/4/2019, Recommends the Approval of:

2. Strong Neighborhoods Menasha—A Housing Renovation Initiative Program

Board of Public Works, 3/4/2019, Recommends the Approval of:

3. Recommendation to Award—Contract Unit No. 2019-01; New Street Construction; Province Terrace, Jennie Street, Province Link, and Midway Crossing (Various Locations); Sommers Construction Co., Inc.; \$697,062.40
4. Recommendation to Award—Contract Unit No. 2019-03; Street Reconstruction; Various locations—Broad Street, Melissa Street, Grove Street, Lawndale Drive/Court, Greenwood Drive, Frederick Street, and Library Parking Lot; Northeast Asphalt, Inc.; \$393,347.33
5. Rear Yard Drainage Program

Personnel Committee, 3/4/2019, Recommends the Approval of:

6. Tentative Agreement between City of Menasha and Menasha Professional Police Union, January 1, 2019-December 31, 2020.

H. ITEMS REMOVED FROM THE CONSENT AGENDA

I. ACTION ITEMS

1. Accounts payable and payroll for the term of 3/4/2019—3/14/2019 in the amount of \$692,820.00
2. Beverage Operators License Applications for the 2017-2019 licensing period.

J. HELD OVER BUSINESS

1. Recommendation for denial of Beverage Operators License for Michelle Long

K. ORDINANCES AND RESOLUTIONS

1. R-7-19—A Resolution to Approve the Cancellation of Outstanding Checks; and the Write Off of General Uncollectible Accounts Receivables and Delinquent Personal Property Tax Receivables; Introduced by Mayor Merkes
2. R-8-19—A Resolution Approving the Project Plan and Establishing the Boundaries for and the Creation of Tax Incremental District No. 14, City of Menasha, Wisconsin; Introduced by Mayor Merkes
3. R-9-19—Support for Letter of Intent to Apply for University of Wisconsin Partnership Program Community Impact Grant Program: Lead Safe Menasha; Introduced by Mayor Merkes

L. APPOINTMENTS

1. Reappointment of Arnie Collier to Landmarks Commission for the term of 3/18/2019—3/1/2022

M. CLAIMS AGAINST THE CITY

N. PUBLIC COMMENTS ON ANY MATTER LISTED ON THE AGENDA
(five (5) minute time limit for each person)

O. ADJOURNMENT

MEETING NOTICE
Monday, April 1, 2019
Common Council Meeting – 6:00 p.m.
Committee Meetings to Follow

"Menasha is committed to its diverse population. Our Non-English speaking population and those with disabilities are invited to contact the Menasha City Clerk at 967-3603 24-hours in advance of the meeting for the City to arrange special accommodations."

**City of Menasha
Public Hearings**

NOTICE IS HEREBY GIVEN that public hearings will be held by the Menasha Plan Commission and Common Council on the proposed amendments to Title 13 of the Menasha Code of Ordinances pertaining to Garages, Accessory Buildings and Uses within the R-1 Single Family Residence District and R-2 Two-Family Residence District. The Plan Commission will be considering the amendments at an informal public hearing on Tuesday, March 5, 2019 at 3:30 p.m. or shortly thereafter in the first floor conference room of the Menasha City Center, 100 Main Street, Menasha, WI. Persons interested in this matter will be given an opportunity to comment and ask questions about the proposed amendment. A second public hearing before the Common Council will be held Monday, March 18, 2019 at 6:00 p.m. or shortly thereafter in the first floor conference room of the Menasha City Center located at 100 Main Street, Menasha, WI.

Deborah A. Galeazzi, WCMC
City Clerk

Run: March 1 and 11, 2019.



REDLINE ORDINANCE O-XX-19

AN ORDINANCE AMENDING TITLE 13, CHAPTER 1 OF THE CODE OF ORDINANCES
(R-1 Single Family Residence District and R-2 Two-Family Residence District Accessory Uses)

INTRODUCED BY _____.

The Common Council of the City of Menasha does hereby ordain as follows:

SECTION 1: Amend Title 13, Chapter 1, Article C of the Code of Ordinances of the City of Menasha, Wisconsin as follows:

SEC. 13-1-25 R-1 SINGLE FAMILY RESIDENCE DISTRICT.

...

(e) **GARAGES, ACCESSORY BUILDINGS AND USES.**

- (1) One (1) detached garage. Such garage may be constructed in addition to the garage space within the principal structure.
- (2) One (1) accessory building.
- (3) Any of the following accessory uses:
 - a. One (1) private swimming pool.
 - b. One (1) private tennis court.
 - c. One (1) satellite antenna/dish.
 - d. One (1) detached solar structure.
 - e. One (1) chicken coop.

...

SEC. 13-1-26 R-2 TWO FAMILY RESIDENCE DISTRICT.

...

(e) **GARAGES, ACCESSORY BUILDINGS AND USES.**

- (1) One (1) detached garage. Such garage may be constructed in addition to the garage space within the principal structure.
- (2) One (1) accessory building.
- (3) Any of the following accessory uses:
 - a. One (1) private swimming pool.
 - b. One (1) private tennis court.
 - c. One (1) satellite antenna/dish.
 - d. One (1) detached solar structure.
 - e. One (1) chicken coop.

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SECTION 2: This amending Ordinance shall take effect upon passage and publication as provided by law.

Passed and approved this ____ day of _____, 2019.

Recommended by:

Motion/Second:

Vote: _____

Pass/Fail: _____

Requires: ___ Majority Vote
 ___ 2/3 Vote

Donald Merkes, Mayor

ATTEST:

Deborah A. Galeazzi, City Clerk

CITY OF MENASHA
ADMINISTRATION COMMITTEE
First Floor Conference Room
100 Main Street, Menasha
March 4, 2019
MINUTES

DRAFT

A. CALL TO ORDER

Meeting called to order by Chairman Nichols at 6:50 p.m.

B. ROLL CALL

PRESENT: Aldermen Mark Langdon, Steve Krueger, Tom Grade, Ted Grade, Randy Ropella, Rebecca Nichols, James Taylor, Stan Sevenich.

ALSO PRESENT: Mayor Merkes, CA Captain, PC Styka, FC Kloehn, ASD Jacobs, CDD Schroeder, DPW Radomski, PHD McKenney PRD Tungate, Clerk Galeazzi.

C. MINUTES TO APPROVE

1. Administration Committee, 2/18/19

Move by Ald. Ropella seconded by Ald. Tom Grade to approve minutes.

Motion carried on voice vote.

D. DISCUSSION/ACTION ITEMS

1. Due Process – Margaritaville Lounge, LLC, d/b/a Hammerheads, 6 Tayco Street, Menasha (postponed 2/18/19).

Jennifer Almeida-Sandoval, representing Margaritaville Lounge, LLC, explained the business has been closed since March 2018 and the difficulty she is having finding someone to run the business. She has a potential partner and is asking for a few months extension.

CA Captain explained the purpose of the due process hearing. Based on City ordinance a business must be operating for the purpose the "Class B" license is issued for 150 days during the licensing year. It is up to the Administration Committee to determine if the license should be revoked or allow the business owner to maintain the license.

CA Captain swore in Jennifer Almeida-Sandoval.

Ms. Almeida-Sandoval answered questions from CA Captain and Committee members.

Ms. Almeida-Sandoval stated the business has not been operating for the current licensing year, which began on July 1, 2019. They did some remodeling to the premise. She feels she will have the business open by May 1, 2019. Ms. Almeida-Sandoval said if she does not have the business operating by May 1 she will voluntarily surrender the liquor license.

Moved by Ald. Sevenich seconded by Ald. Ted Grade to extend the license to May 1, 2019.
Motion carried on voice vote.

2. Due Process – 5 O'clock Somewhere RD, LLC, d/b/a 5 O'clock Somewhere, 600 Broad Street, Menasha

Moved by Ald. Sevenich seconded by Ald. Tom Grade to revoke license for 5 O'clock Somewhere RD, LLC, d/b/a 5 O'clock Somewhere, 600 Broad Street, Menasha.

CA Captain explained the license holder lost access to the premise in August and has not been able to find another premise to transfer the license.

Motion carried on voice vote.

3. Strong Neighborhoods Menasha-A Housing Renovation Initiative Program.

CDD Schroeder explained some amendments to the housing program based on previous discussions. The program will be effective 1/1/2020. Funding for the program will come from the City's portion of increment after closing TIF #5. The closing of TIF #5 does have some deadlines that need to be completed in 2019.

General discussion ensued on encouraging City employees to live in the City but restricting the eligible property to a single family dwelling.

Moved by Ald. Sevenich seconded by Ald. Taylor to amend First Time Homebuyer, Loan Guidelines, item g, to restrict to single family dwellings only.
Motion carried on voice vote.

Moved by Ald. Ropella seconded by Ald. Taylor to amend First Time Homebuyers, Eligible Properties, item d, remove two-family.

General discussion ensued on encouraging less rentals, intent of program is to help fix up properties, encouraging owner-occupied duplexes, and legal non-conforming properties being included in the program.

Motion fails on roll call 3-5.

Ald. Taylor, Langdon, Ropella voted yes.

Ald. Nichols, Sevenich, Krueger, Tom Grade, Ted Grade voted no.

CDD Schroeder explained the procedure for following up on the First Time Homebuyer requirement of living in the home for five consecutive years, the budget for the program, and clarified under the Major Renovation section historically single family homes that had been converted to multi-family dwellings can use funds to return home back to a single dwelling.

Moved by Ald. Sevenich seconded by Ald. Taylor to recommend to Common Council Strong Neighborhoods Menasha-A Housing Renovation Initiative Program as amended.

Motion carried on voice vote.

E. ADJOURNMENT

Moved by Ald. Taylor seconded by Ald. Krueger to adjourn at 7:53 p.m.

Motion carried on voice vote.

Deborah A. Galeazzi, WCMC
City Clerk

CITY OF MENASHA BOARD OF HEALTH

Minutes

February 15th, 2019

A. Meeting called to order at 8:03 AM by Nancy McKenney.

B. Roll Call: Present: Nancy McKenney, Lori Asmus, Kristene Stacker Excused: Teresa Rudolph, Candyce Rusin
Staff: Kortney Dahm, Mary Fritz, Linda Palmbach, Todd Drew, Claire Opsteen, Meghan Pauly
Guest: Steven Mui

C. Guest Presentation: Steven Mui, CAC, Acupuncturist, Aurora Health System described his educational background and licensure process with the State of Wisconsin. Under the Aurora Health System, he offered to provide a lunch and learn at the Senior Center and with consent, provide limited services. He discussed the risks and benefits of acupuncture including alternative pain control, relaxation, and stress reduction.

D. MINUTES TO APPROVE

Kristene Stacker moved to approve the January 11, 2019 minutes, seconded by Lori Asmus, motion passed

E. REPORT OF DEPT HEADS/STAFF/CONSULTANTS

Administrative: Budgets and Contracts: Nancy McKenney updated the Board of Health on the status of 2019 contracts and Grant application updates.

Enhancing Public Health Preparedness – The Opioid Epidemic Grant Award Wisconsin Department of Health Services, Division of Public Health- Amount: \$20,000.00 (new award) Time period: November 1, 2018 - August 31, 2019 -This grant allows the City to enhance safety and prevention measures posed by the Opioid crisis.

Enhancing Local Public Health Agency Preparedness – Promoting Inclusive Risk Planning for the Whole Community Wisconsin Department of Health Services, Division of Public Health -Amount: \$3,600.00 (new award)
Time Period: July 1, 2018-June 30, 2019-Funds will be used to integrate special needs considerations into the *City of Menasha Excessive Heat Event Emergency Preparedness Plan*; disseminate *Be Prepared, Have a Plan: Emergency Preparedness Toolkit for Persons with Disabilities*; and to acquire, disseminate and review shelter kits with emergency managers at four designated shelter locations in the City of Menasha

Retail Program Standards Grant Award- United States Food and Drug Administration through Association of Food and Drug Officials- Amount: \$3,000.00 (new award) Time period: November 1, 2018 – October 31, 2019
The program provides funds for the completion of projects to enhance conformance with the Voluntary National Retail Food Regulatory Program Standards (Retail Program Standards).

Public Health Emergency Preparedness Training Award Wisconsin Department of Health Services, Division of Public Health - Amount: \$10,550 (\$6,300.00 higher than projected) Time Period: July 1, 2018-June 30, 2019 - Funds will be used for emergency preparedness and response training.

Correspondence: Nancy McKenney gave Board of Health an update on Fox Cities Community Health Survey 2018 report.

Academic Affiliation Update: Kristine Jacobson is working with Katherine De Wane, RN, UWO DNP student and Partnership Community Health Center on the Lead Free by Delivery grant.

Employee Safety: Todd Drew conducted normal Safety Committee Meetings. Scheduled employee hearing screening is set for March 28, 2019.

Sealer of Weights and Measures: Scale inspections are being completed. There is a press release on the impact of Weights & Measures programs. It will be posted to Web page for Weights & Measures week March 4-8 regarding financial impact of Weights & Measure programs for Wisconsin Consumers.

Environmental Health Programs: Todd Drew reported routine restaurant inspections are being done. Jimmy Johns opened early January 2019. Todd Drew reported numerous housing complaints were made. Brin Building Demolition mainly finished. A 120 foot well was discovered within the building. Todd Drew has arranged to have well abandoned as required by WDNR Administrative Code. Todd Drew is working with Code Group and Menasha Police Department on the process to raze a small commercial residential property where a fire had occurred in 2018. DNR Inspections, 4 inspections and 1 significant enforcement action. Todd Drew reported De Pere has a new Sanitarian – formally worked with Outagamie County. Todd Drew followed up on an elevated blood lead case – during the course of the assessment leaded mini blinds were found and a likely source for child's lead exposure (9000 ug/cubic cm). Code group will begin to work on Nuisance/ Human Health Hazard Ordinance Revisions.

Communicable Disease Reports: Linda Palmbach RN, Public Health Nurses reviewed the January 2019 Communicable Disease report. Menasha Health Department will be raising the cost of TB skin test to \$25.00 due to increase cost of Tubersol.

School Health: Increase in School Absences late January. February School Absences remain low.

Health Screening 60+ Program: Steven Mui acupuncturist, discussed his method of pain control with the Board of Health and Menasha Health Department Staff. Vascular Screening was held in February at Menasha Health Department.

Dental Program: Claire Opsteen reported she is in process of doing fluoride varnishes in the elementary schools.

Dental Sealant Program: Claire Opsteen reported Sealants started in January 2019.

Lead Prevention Program: Todd Drew reported he is working on 1 lead case.

Prevention: No Report

Maternal and Child Health: No Report.

Immunization: No Report

Emergency Preparedness: No Report

Twenty Four/Seven: No Report

Senior Center: No Report

F. ACTION ITEMS **Policy and Procedure Review:** No Report

G. HELD OVER BUSINESS: None

H. ADJOURNMENT: Lori Asmus moved to adjourn the meeting at 9:23, seconded by Kristene Stacker. Motion passed. The next meeting will be on Friday March 8th, 2019 at 8:00 a.m.

CITY OF MENASHA BOARD OF HEALTH
DRAFT Minutes
March 8th, 2019

A. Meeting called to order at 8:05 AM by Nancy McKenney.

B. Roll Call: Present: Nancy McKenney, Kristene Stacker, Teresa Rudolph, Excused: Lori Asmus, Candyce Rusin
Staff: Mary Fritz, Linda Palmbach, Claire Opsteen, Meghan Pauly
Guest: Dick & Carol Sturm

C. MINUTES TO APPROVE

Kristene Stacker moved to approve the February 15th, 2019 minutes, seconded by Dr. Teresa Rudolph, motion passed

D. REPORT OF DEPT HEADS/STAFF/CONSULTANTS

Administrative: *Budgets and Contracts*: Nancy McKenney updated the Board of Health on the status of 2019 contracts and grant application updates.

Proposed Ordinance-Backyard Chickens- Nancy McKenney explained that the Menasha Health Department was asked to participate in the development of a proposed backyard chicken ordinance in cooperation with elected officials, Community Development and members of the Sustainability Committee. The Sustainability Committee requested the Board of Health consider the proposed ordinance. Todd Drew joined the meeting by phone. Nancy McKenney read the ordinance. Concerns expressed included: 1) Increased risk of diseases including Campylobacter, Salmonella and other diseases. It was noted that CDC tracked 76 outbreaks since 2000 linked Salmonella and backyard chicken keeping. Poultry may have Salmonella in their droppings and on their bodies (feathers, feet, and beaks), even when they appear healthy and clean. 2) There is potential for vermin and predators and it was suggested vermin be defined in the ordinance. 3) Concern was expressed about adequate personnel time and expenditures to manage complaints. Nancy McKenney noted that Todd Drew, Registered Sanitarian would have primary responsible for investigating health-related complaints and would also enforce of the ordinance. She was concerned that this will add to an already full work load and could be time consuming. Required financial resources may not be sufficiently covered by permit fees. Kristine Stacker moved that the Board of Health approve sending the proposed ordinance to the Administration Committee for consideration. The Board of Health does not take a position on backyard chicken keeping. However, should the Administration Committee and Common Council decide to allow backyard chicken keeping, this is an enforceable proposed ordinance that promotes safety. Seconded by Dr. Theresa Rudolph, motion carried.

Correspondence: Nancy McKenney gave Board of Health an update on Fox Cities Community Health Survey 2018 report. Nancy McKenney & Kurt Eggebrecht were featured on a radio segment with WHBY (Dave Edwards) on March 3rd, 2019.

Academic Affiliation Update: Kristine Jacobson is working with Katherine De Wane, RN, UWO DNP student and Partnership Community Health Center on the Lead Free by Delivery grant.

Employee Safety: Todd Drew conducted normal Safety Committee Meetings. Scheduled employee hearing screening is set for March 28, 2019.

Sealer of Weights and Measures: Gas pump inspections are in process.

Environmental Health Programs: No Report

Communicable Disease Reports: Linda Palmbach RN, Public Health Nurses reviewed the February 2019 Communicable Disease report.

School Health: February School Absences remain low.

Health Screening 60+ Program: Meghan Pauly reported Steven Mui acupuncturist will be at the Menasha Senior Center starting in May.

Dental Program: Claire Opsteen RDH reported to date 952 Fluorides have been done. United Way Off Year Reporting was completed and has been submitted.

Dental Sealant Program: Claire Opsteen RDH reported she is in the process of applying sealants, 99 students have had sealants placed to date. Goal was 135, she will exceed this goal this year.

Lead Prevention Program: Nancy McKenney reported Liz Rosin is working on an elevated blood lead case and providing technical assistance with Todd Drew.

Prevention: Corny Community Walk will be held on Wednesday August 7th, 2019 at Jefferson Park in Menasha.

Maternal and Child Health: Kristine Jacobsen is working with City of Menasha Administration staff on becoming a Breastfeeding Friendly work place.

Immunization: No Report

Emergency Preparedness: Nancy McKenney & Kristine Jacobson are attending a Fox Valley Community Health Improvement Coalition meeting – including an emergency preparedness table top exercise and report on the recent weather-related accident in the Fox Cities.

Twenty Four/Seven: No Report

Senior Center: Meghan Pauly reported Valley VNA will no longer be doing influenza vaccines at the Senior Center. Meghan Pauly is in process of finding a replacement.

E. ACTION ITEMS Policy and Procedure Review: Communicable Disease Guidelines were approved by Kristine Stacker, seconds by Teresa Rudolph.

F. HELD OVER BUSINESS: None

G. ADJOURNMENT: Kristine Stacker moved to adjourn the meeting at 9:38, seconded by Teresa Rudolph. Motion passed. The next meeting will be on Friday April 12, 2019 at 8:00 a.m.

CITY OF MENASHA
BOARD OF PUBLIC WORKS
First Floor Conference Room
100 Main Street, Menasha
March 4, 2019
MINUTES

DRAFT

A. CALL TO ORDER

Meeting called to order by Chairman Krueger at 8:53 p.m.

B. ROLL CALL

PRESENT: Aldermen Mark Langdon, Steve Krueger, Tom Grade, Ted Grade, Randy Ropella, Rebecca Nichols, James Taylor, Stan Sevenich.

ALSO PRESENT: Mayor Merkes, CA Captain, PC Styka, ASD Jacobs, DPW Radomski, Clerk Galeazzi.

C. MINUTES TO APPROVE

1. February 4, 2019

Moved by Ald. Langdon seconded by Ald. Ted Grade to approve minutes.

Motion carried on voice vote.

D. DISCUSSION / ACTION ITEMS

1. Recommendation to Award – Contract Unit No. 2019-01; New Street Construction; Province Terrace, Jennie Street, Province Link and Midway Crossing (Various Locations); Sommers Construction Co., Inc.; \$697,062.40

DPW Radomski explained Sommers Construction Co was the lowest of the two bids received and under budget.

Moved by Ald. Langdon seconded by Ald. Ropella to recommend to Common Council Recommendation to Award Contract Unit No. 2019-01 for new street construction of Province Terrace, Jennie Street, Province Link and Midway Crossings (various locations) to Sommers Construction Co., Inc in the amount of \$697,062.40.

Motion carried on roll call 8-0.

2. Recommendation to Award – Contract Unit No. 2019-03; Street Reconstruction; Various Locations – Broad Street, Melissa Street, Grove Street, Lawndale Drive/Court, Greenwood Drive, Frederick Street and Library Parking Lot; Northeast Asphalt, Inc.; \$393,347.33

DPW Radomski explained Northeast Asphalt, Inc was the lowest bid received and under budget. He explained contractors are restricted to 15 days for a street to be under construction unless there is additional utility work to be done. Replacement of the Library parking lot was part of the 2019 budget.

Moved by Ald. Langdon seconded by Ald. Ted Grade to recommend to Common Council Recommendation to Award Contract Unit No. 2019-03 for street reconstruction, various locations of Broad Street, Melissa Street, Grove Street, Lawndale Drive/Court, Greenwood Drive, Frederick Street and Library Parking Lot to Northeast Asphalt, Inc in the amount of \$393,347.33.

Motion carried on roll call 8-0.

3. Rear Yard Drainage Program Update

DPW Radomski explained how the Rear Yard Drainage Program works and benefits the property owner. He stated the program as currently written has become cumbersome and time consuming for staff to process. Staff is recommending requiring a \$100 reimbursable fee towards the completion of the project when the application is submitted to cover staff time. They are also recommending setting deadlines for when applications need to be submitted. This will help to more accurately budget funds for the program and will help to bid multiple properties instead of one at a time.

General discussion ensued on the maximum amount paid by the City for each property drainage issue, number who apply each year, other changes to the program, areas most affected, and who qualifies for the program.

Moved by Ald. Langdon seconded by Ald. Tom Grade to recommend to Common Council the Rear Yard Drainage Program.

Motion carried on roll call 8-0.

E. ADJOURNMENT

Moved by Ald. Langdon seconded by Ald. Ted Grade to adjourn at 9:25 p.m.

Motion carried on voice vote.

Deborah A. Galeazzi, WCMC
City Clerk

CITY OF MENASHA
COMMITTEE ON AGING
January 11, 2019
Minutes

A. Meeting called to order at 1:05 PM.

B. ROLL CALL: Present: Joyce Klundt, Tom Stoffel and Nancy McKenney, Cheryl Richard, Pat Irwin. Beatrice Kohanski, Brenda Marks Guests: Kristine Jacobsen

C. MINUTES TO BE APPROVED: Tom Stoffel moved to approve the December 7^h, 2018 minutes, seconded by Joyce Klundt. Motion passed.

E CORRESPONDENCE: None

F. REPORT OF DEPT HEADS/STAFF/CONSULTANTS:

Senior Center: Cheryl reported that there were 683 people made 1,170 visits to the Senior Center in January. She noted that the Neenah COA discussed and is open to collaboration with the Menasha Committee on Aging. Their next meeting is on April 11th 2019. Beth Howell, Cheryl Richards, Kortney Dahm and Meghan Pauly are teaching Tai Chi classes at the Menasha City Center. The Senior Center will be using the City BOSS system to request facilities services for the Senior Center.

Public Health and Health Screening 60+ Grant: On behalf of Meghan Pauly, Nancy McKenney noted that 73 people had 110 services provided in January. Kristine Jacobsen described progress on planning the State Health Plan Community Dialogue listening sessions. The dates for the mini-grant are February 22nd, 2019, March 8th, 2019, March 22nd, 2019 and a wrap up date of April 12th, 2019. Each session will include an introduction, facilitated group discussion, and lunch. Results will be sent to the State Division of Public Health to help shape the next Wisconsin State Health Plan. COA members signed up to participate in a session. Nancy McKenney noted that recent reports show opioid-related addiction and overdose is occurring in the 55 and older age group. On behalf of Meghan Pauly, she requested the opinion of the COA about hosting an Aurora Health System acupuncturist for alternative pain relief. It was agreed that offering alternative methods of pain control was important. It was suggested that the acupuncturist be a featured lunch and learn speaker.

Policies and Procedures Discussion: No report

G. NEW BUSINESS: Nancy McKenney reported Community Health Assessment Reports were being completed and the community dialogue sessions will help with local plans as well as the State Health Plan.

H. HELD OVER BUSINESS: Mission Vision and Goals: Meghan Pauly, Cheryl Richard, Pat Irwin and Nancy McKenney will meet to discuss SMART objectives for the Senior Center. They will put time frames on goals and objectives.

Signage: Cheryl Richard has requested assistance getting recommendations and estimates for signs in front of the Senior Center.

No report. Safety Manual: No report.

Cost Study: No report.

I. ADJOURNMENT: Tom Stoffel moved to adjourn the meeting. Joyce Klundt seconded the motion. Motion passed.

The next meeting will be held on Friday, February 8th at 1:00pm at the Menasha Health Department on 100 Main Street Menasha, WI.

**CITY OF MENASHA
Housing Authority
Room 207, City Hall – 100 Main Street
March 11, 2019
DRAFT MINUTES**

A. CALL TO ORDER

The meeting was called to order at 4:31 p.m. by Chairperson Larry Haase.

B. ROLL CALL/EXCUSED ABSENCES

MEMBERS PRESENT: Commissioners Larry Haase, Mike Keehan, and Christine Kaup.

MEMBERS EXCUSED/ABSENT: Arnie Collier

OTHERS PRESENT: BI/HS Humski and CDC Heim

C. MINUTES TO APPROVE

1. **Minutes of the October 22, 2018 Housing Authority Meeting**

Motion by Comm. Keehan, seconded by Comm. Kaup to approve the October 22, 2018 Housing Authority meeting minutes. The motion carried.

D. PUBLIC COMMENT ON ANY ITEM OF CONCERN ON THIS AGENDA

Five (5) minute time limit for each person.

1. No comments were made.

E. REPORT OF DEPARTMENT HEADS/STAFF/CONSULTANTS

1. CDC Heim provided a brief overview of the Strong Neighborhoods Menasha program. On March 4, 2019 the Common Council approved two resolutions which allocated funds for a Strong Neighborhoods Menasha housing program. The funding is being allocated from the closing of Tax Increment District #5 and will be available in fiscal year 2020 and will correspond with the program being available in 2020 as well. Members were excited to hear of the program and were happy to see reinvestment back into the city housing stock.

F. ACTION/DISCUSSION ITEMS

1. **Review of Applicants**

BI/HS Humski stated that Application #001-18 was initially approved for \$16,000 for roof repair. After an extended process of finding a contractor, it was brought to light that the roof planks are spaced too far apart to meet the manufacturer specifications. The bid from the contractor received for the project is \$22,200. BI/HS Humski is seeking the additional \$6,200 in funds for the project to be completed. Members discussed the request and need for the roof repairs to be completed to manufacturer specifications.

Motion by Comm. Keehan to approve the additional \$6,200 for Applicant #001-18, seconded by Comm. Kaup. The motion carried.

2. **Set Next Meeting**

The next meeting date is scheduled for April 22, 2019.

G. ADJOURNMENT

Motion by Comm. Keehan, seconded by Comm. Kaup to adjourn at 4:47 p.m. The motion carried.

Minutes respectfully submitted by CDC Heim.

ELISHA D. SMITH PUBLIC LIBRARY BOARD OF TRUSTEES

Elisha D. Smith Public Library

Gegan Board Room

February 27, 2018

Called to order at 4:02pm by Chairman Englebert

Present: Chairman Englebert, Vice Chairman Golz, Secretary Halverson, Ad Hoc Trustee Hermans, Trustee Lane, Trustee Schwerbel, Trustee Witt, Trustee Turner (arrived at 4:03pm), Superintendent of Schools VanderHeyden, Trustee Franzoi (arrived at 4:04pm), and Teen Representative Genz (arrived at 4:05pm)

Absent: None

Also Present: Director Lenz, Children Services Supervisor Beson, Support Services Brandt and Business Manager Dreyer

Public Comment/Communication

None

Consent Business

Motion made by VanderHeyden, seconded by Golz to approve the Library Board meeting minutes from February 6, 2019, and accept the Ad Hoc Strategic Planning minutes from February 6, 13, and 18, 2019. Motion carried unanimously.

Authorization of Bills

Motion made by Golz, seconded by Franzoi to authorize payment of the December 2018(3) bills from the 2018 budget, the February 2019 from the 2019 budget, endowment, and WALs fund. Motion carried unanimously.

New Business

1. January Statistics.

The circulation statistics comparison (1998-2018) and January 2019 statistics were reviewed. Digital circulation for January was 4.8% higher than last year but physical circulation was down. The weather has not been good.

2. 2018 and 2019 Budget Status.

Trustees reviewed the 2018 and 2019 budget status. A check has been issued but not sent to Kone (elevator) for invoices from 2018. The city attorney is now talking with Kone's attorney. Motion made by Franzoi, seconded by Halverson to hold the check until the matter with Kone has been satisfactorily handled. Motion carried unanimously.

PW Deputy Director Alix is in the process of getting a second opinion on the compressor.

3. Staff/Trustee Reports.

- The library was closed on January 28 and February 12 due to snowstorms. It was open when the wind chills dropped to dangerous levels and acting as a warming shelter at the request of the Menasha Health Department.
- We have begun re-upholstering chairs, refurbishing/getting new wooden chairs and looking into new office chairs.
- Adult Services Supervisor Joe Bongers requested approval to travel to this year's American Library Association Conference in Washington, DC from June 20 – 25. Motion made by Schwerbel, seconded by Witt to approve up to \$3,000 for Joe Bongers to attend the American Library Association Conference as per his request. Motion carried unanimously.
- Director Lenz and the supervisors are recommending McKenzie Brandt as 2019 Library Volunteer of the Year. McKenzie has been volunteering in circulation every Friday beginning in 2012. Motion made by Franzoi, seconded by Schwerbel to approve McKenzie as our Volunteer of the Year. Motion carried unanimously.
- The WAPL Conference is being held at the Holiday Inn & Suites in Rothschild May 2 & 3. Lenz will email the agenda when it becomes available.

- The 2018 Wisconsin Department of Public Instruction Public Library Annual Report was reviewed. Motion made by VanderHeyden, seconded by Franzoi to approve the 2018 Annual Report with a "yes" to the question regarding system effectiveness. Motion carried unanimously.

Beson left the meeting at 4:30pm.

Unfinished Business

2019-2023 Strategic Plan

Planning Committee Chairman Halverson led trustees in a refinement of goals, mission, vision, and values. The draft will be presented to library staff members for their input during two lunch meetings in March, and a plan will be presented at the next board meeting for approval.

Adjournment

Motion to adjourn made at 5:45pm by Golz, seconded by Englebert. Motion carried unanimously.

Respectfully submitted,
Kathy Dreyer, Recording Secretary

CITY OF MENASHA
Plan Commission
Menasha City Center, Room 133 – 100 Main Street
March 5, 2019
DRAFT MINUTES

A. CALL TO ORDER

The meeting was called to order at 3:32 PM by Mayor Merkes.

B. ROLL CALL/EXCUSED ABSENCES

PLAN COMMISSION MEMBERS PRESENT: Mayor Merkes, Alderperson Rebecca Nichols, DPW Radomski, and Commissioner Sturm.

PLAN COMMISSION MEMBERS EXCUSED: Commissioners Benner, Homan and Cruickshank.

OTHERS PRESENT: CDD Schroeder, AP Stephenson, Alderperson Tom Grade, Alderperson James Taylor, Joanne Roush (409 Cleveland Street), Carol Sturm (1203 Greenwood Ct), Mark Keating (Gries Architecture), Joel Berg (Baisch Engineering), and Andrew Fitzwilliam (Essity).

C. PUBLIC HEARING

1. **Text Amendment to Title 13, Article C, Section 13-1-25(e)(3) and Section 13-1-26(e)(3)**
AP Stephenson gave a background on the proposed Text Amendment. Staff, in conjunction with Sustainability Board, has created an ordinance that would allow for the keeping of chickens within the City of Menasha. The keeping of chickens ordinance would be placed in Chapter 7 and allow individuals to place a chicken coop on their property and keep up to six (6) chickens on residential lots. If the chicken keeping ordinance was passed, the proposed text amendment to Title 13 would allow chicken coops within R-1 and R-2 zoning districts to be a permitted accessory use.

Carol Sturm (1203 Greenwood Ct): Chickens within the city of Menasha should be allowed and many of the surrounding communities already have similar ordinances to the one proposed. Keeping of chickens will help foster a quality community and the ordinance will provide a clean and safe environment for chickens.

D. MINUTES TO APPROVE

1. **Minutes of the February 5, 2019 Plan Commission Meeting**
DPW Radomski made a motion to approve the minutes of the February 5, 2019 Plan Commission Meeting. Alderperson Nichols seconded the motion. The motion carried.

E. PUBLIC COMMENT ON ANY ITEM OF CONCERN ON THIS AGENDA

Public comments were taken throughout the meeting.

F. DISCUSSION / ACTION ITEMS

1. **Site Plan Review – 190 Third Street – Essity Professional Hygiene**
AP Stephenson gave a brief background on the site plan for 190 Third Street. Baisch Engineering, on behalf of Essity Professional Hygiene, has submitted an application for a site plan review to allow for the construction of an addition on the south end of Essity Professional Hygiene, 190 Third Street. The addition would be used to house a new pulping facility for Essity.

The Plan Commission had a brief discussion with the following items being discussed:

1. Lighting of the new addition.
2. Light trespass.
3. The relocation of the sewer easement south of the existing building.

PDW Radomski made a motion approve the site plan as presented for 190 Third Street (#2-00436-00) with the following conditions:

1. Prior to the issuance of building permits, a storm water and site improvement agreement must be recorded for the proposed development.
2. All light levels must meet the code outlined in Section 13-1-12 (h) "Outdoor Lighting" and will be at or less than 5 foot-candles.
3. The Department of Public Works must approve the relocation of the existing storm sewer system and the applicant must provide all required easement documents to the City. The easement must be recorded before work can begin.

The motion was seconded by Commissioner Sturm. The motion carried.

2. Site Plan Review – 455 Baldwin Street – Public Works Facility

AP Stephenson gave a brief background on the site plan for the Public Works Facility. The proposal is to demolish the existing public works facility in phases and replace it with a new public works facility. The use and dimensions of this building is in conformance with the City's Government Use (GU) zoning district.

The Plan Commission entered into a discussion with the following topics being discussed:

1. Fencing around the Public Works Facility.
2. Screening the roof top equipment.
3. Emergency efficiency.
4. Gravel patio space vs grass patio space.
5. Gate locations.
6. Recycling area location and screening the recycling area.

DP Radomski made a motion to approve the site plan as presented for 455 Baldwin Street, 435 Baldwin Street, and 981 Plank Road (#5-00497-00, #5-00498-00, and #5-00500-00) with the following conditions:

1. Prior to the issuance of building permits, a storm water and site improvement agreement must be recorded for the proposed development.
2. All HVAC roof top equipment must be screened as per Title 13, Article B, and Section 13-1-12(f)(5).

The motion was seconded by Commissioner Sturm.

Alderperson Nichols made a motion to amend the motion made by DPW Radomski and added the following condition:

1. A vegetative screen shall be placed to screen the recycling area from public view.

The amended motion was seconded by Mayor Merkes. The motion carried.

The motion to approve the site plan for the public works facility with three conditions carried.

3. Text Amendment to Title 13, Article C, Section 13-1-25 (e)(3) and Section 13-1-26(e)(3)

Commissioner Sturm made a motion to recommend that the Plan Commission recommend approval of the text amendment to Title 13, Article C, Section 13-1-25(e)(3) and Title 13, Article C, Section 13-1-26(e)(3) – Accessory Uses within the R-1 and R-2 districts with the condition that an ordinance amending Title 7, Chapter 1 of The Code of Ordinances (Licensing of Dog, Cat, or Ferret and Regulation of Animals) Article C, Section 7-1-13(D) Keeping of Chickens in the City is also approved. The motion was seconded by Mayor Merkes.

DPW Radomski informed the Commission that he disapproved of the Text Amendment and the proposed chicken ordinance. He would like to see a larger set back and additional requirements to screen chicken coops.

Alderperson James Taylor informed the Commission that he disapproved of the Text Amendment and the proposed chicken ordinance. He felt that chickens should not be allowed in the City because they are a nuisance and smell bad.

The Plan Commission entered into a conversation with the following items being discussed:

1. The merits of allowing chickens in the city.
2. The potential for increased nuisance complaints.
3. How the chickens will be permitted.
4. Which communities currently allow chickens.

The motion passed 3-1 with DPW Radomski voting no.

4. Electronic Message Center Draft Ordinance Revisions

AP Stephenson gave a brief background on the Electronic Message Center Ordinance Revision.

Joanne Roush (409 Cleveland Street) informed the Commission that she was not in favor of revising the EMC ordinance. She wants residential districts to be protected from adjacent church and school EMC signs.

The Plan Commission entered into a conversation with the following items being discussed:

1. The effect of EMC's on neighboring residents.
2. What other communities allow EMC signs.
3. Transition slides for EMC's and animation.

No action was taken.

H. COMMUNICATION

1. Set Next Meeting Date

The next Plan Commission meeting was set for March 19, 2019 at 3:30 PM.

I. ADJOURNMENT

Ald. Nichols made a motion to adjourn the meeting at 4:52 PM. Comm. Sturm seconded the motion. The motion carried.

Minutes respectfully submitted by AP Stephenson.

CITY OF MENASHA
PERSONNEL COMMITTEE
First Floor Conference Room
100 Main Street, Menasha
March 4, 2019
MINUTES

DRAFT

A. CALL TO ORDER

Meeting called to order by Chairman Ted Grade at 9:30 p.m.

B. ROLL CALL

PRESENT: Aldermen Mark Langdon, Steve Krueger, Tom Grade, Ted Grade, Randy Ropella, Rebecca Nichols, James Taylor, Stan Sevenich, Mayor Merkes.
ALSO PRESENT: CA Captain, PC Styka, ASD Jacobs, Clerk Galeazzi

C. MINUTES TO APPROVE

1. Personnel Committee, 1/21/19

Moved by Ald. Sevenich seconded by Ald. Krueger to approve minutes.

Motion carried on voice vote.

D. DISCUSSION/ACTION ITEMS

1. Tentative Agreement between City of Menasha and Menasha Professional Police Union, January 1, 2019 – December 31, 2020.

PC Styka gave a brief summary of the Police Union contract and the financial impact.

Moved by Ald. Taylor seconded by Ald. Langdon to recommend to Common Council Tentative Agreement between City of Menasha and Menasha Professional Police Union, January 1, 2019-December 31, 2020.

General discussion ensued on the Police Department achieving accreditation status and the physical fitness incentive program in place of the vest incentive program.

Motion carried on roll call 9-0.

E. ADJOURNMENT

Moved by Ald. Taylor seconded by Ald. Tom Grade to adjourn at 9:48 p.m.

Motion carried on voice vote.

Deborah A. Galeazzi, WCMC
City Clerk

CITY OF MENASHA
Redevelopment Authority
100 Main Street – Room 133
March 5, 2019
DRAFT MINUTES

A. CALL TO ORDER

The meeting was called to order by Chairperson Kim Vanderhyden at 5:16 PM.

B. ROLL CALL/EXCUSED ABSENCES

REDEVELOPMENT AUTHORITY MEMBERS PRESENT: Chairperson Kim Vanderhyden, Alderperson Rebecca Nichols, Matt Vanderlinden, Gail Popp, Shane Correll, Kip Golden, and Bob Stevens.

REDEVELOPMENT AUTHORITY MEMBERS EXCUSED: None.

OTHERS PRESENT: CDD Sam Schroeder, AP Joe Stephenson, Attorney Pam Captain, Alderperson Tom Grade, and Alderperson Mark Langdon.

C. MINUTES TO APPROVE

1. Minutes of the February 5, 2019 Redevelopment Authority Meeting

Matt Vanderlinden made a motion to approve the meeting minutes from February 5, 2019 Redevelopment Authority Meeting. The motion was seconded by Shane Correll. The motion carried.

D. PUBLIC COMMENT ON ANY ITEM OF CONCERN ON THIS AGENDA

(five (5) minute time limit for each person)

Public comments were taken throughout the meeting.

E. DISCUSSION ITEMS

1. Promissory Note and Loan Agreement – 835 Kelsey Brook Court – Cypress Homes

CDD Schroeder gave an update on the Promissory Note and Loan for 835 Kelsey Brook Court. On February 25 of 2016, the RDA executed the sale of 836 Kelsey Brook Court, Lot 118 of Lake Park Villas, to Cypress Homes. As part of this closure the RDA granted Cypress Homes a zero percent interest loan in the amount of the lot cost, \$35,000. This loan was to mature after three years or upon the transfer of a lot from Cypress Homes to a third party whichever came first. While Cypress Homes does have a buyer lined up, the lot currently remains vacant and is in the process of pricing and building design in order to close later this spring. With the closure of the lot in site, Cypress Homes has requested a 2 month extension to the promissory note and loan agreement in order to allow the closure to be completed.

The Redevelopment Authority directed staff to draft a proposal and bring it back to the Redevelopment Authority next month. In addition, The Redevelopment Authority directed staff to not cash the check for promissory note at this time.

2. Lake Park Villas Listing Agreement

CDD Schroeder gave a brief update on the Lake Park Villas Listing Agreement. For the past several years the City of Menasha Redevelopment Authority has had a listing contract with Coldwell Banker the Real Estate Group (Coldwell) including Richard DeKleyn as the listing agent. Most recently a one year extension was approved by the RDA and executed on June 1, 2018. On February 27, 2019, staff was contacted by Coldwell who informed us that the listing agent Richard DeKleyn is no longer with the company leaving our listing agreement in a state of unknown. We

can stay with Coldwell Bankers, look for a new agency, or stop listing the property.

The Redevelopment Authority felt that staying with Coldwell Banker would be beneficial. Coldwell Banker gave the RDA adequate services at a reasonable price. There was no change made to the current agreement.

No action was taken.

3. **Authority to Grant Use and Access of the Banta Property - 460 Ahnaip Street**

CDD Schroeder gave a brief background on authority to grant use and access of the Banta Property. Since the acquisition of the Banta property by the Redevelopment Authority there have been multiple requests for temporary use and or access to the building. These requests include, but are not limited to:

- Site Visits by potential Developers
- Consultants including environmental, construction, marketing, etc.
- WisDOT
- Police and/or Fire Training

It would be beneficial to have one or two main points of contact for situations like these. Those points of contact could then provide access to the building without needing to bring the request to the Redevelopment Authority.

The Redevelopment Authority had a brief discussion and agreed they needed to grant the Chairperson and Executive Director authority to grant access or use to the Banta facility.

Kip Golden made a motion granting the Chairperson or the Executive Director the authority to grant professional use and or access to the Banta Facility at 460 Ahnaip Street on a case by case basis. The motion was seconded by Kim Vanderhyden.

The motion carried.

4. **Banta/RR Donnelley Property – 460 Ahnaip Street**

CDD Schroeder updated the Redevelopment Authority on the Banta Site. Staff has been having conversations with the Wisconsin DOT. They are having the building appraised. If we do not like the appraisal we have the ability to find our own appraiser and have the building appraised. The state will pick up any cost associated with the appraisal.

There was no action taken.

5. **Lawson Canal Discussion**

CDD Schroeder informed the Redevelopment Authority that staff has been having conversations with Neenah Menasha Power and Sonoco. Staff is working with both entities to come to an agreement on the canal. In addition, staff presented the canal plan to the Common Council and they were pleased with the plan.

6. **Set Next Meeting**

Next meeting was set for April 2, 2019 at 5:00 PM.

F. ADJOURNMENT

Alderperson Nichols made a motion to adjourn the meeting at 6:12 PM. The motion was seconded by Bob Stevens. The motion carried.

Minutes respectfully submitted by AP Stephenson.

**CITY OF MENASHA
SUSTAINABILITY BOARD
100 Main Street, Room 132, Menasha
February 21, 2019
Minutes**

A. CALL TO ORDER

Meeting called to order by Kathy Thunes at 1:15 p.m.

B. ROLL CALL/EXCUSED ABSENCES

Present: Roger Kanitz, Linda Stoll, Donald Merkes, Joe Stevenson, Carol Sturm, Dick Sturm, Nancy McKenney

C. PUBLIC COMMENTS ON ANY MATTER OF CONCERN TO THE SUSTAINABILITY BOARD

(five (5) minute time limit for each person) -- No one spoke

D. MINUTES TO APPROVE

Motion by Roger Kanitz second by Linda Stoll to approve the minutes of January 17, 2019. Motion carries

E. COMMUNICATIONS

Evergreen CU has an invasive species workshop scheduled for the Menasha Public Library on May 28th presented by a UWEX master gardener

F. REPORTS

G. DISCUSSION ITEMS

1. City of Menasha Energy Usage

WPPI grant approved for potential solar for PWF and Focus on Energy grant submitted

2. Waste Management

No report

3.. Spring Electronics Recycling Event

Date Set for May 11 with Recycle that Stuff

4. Fall Electronics Recycling Event

Discussed options for other vendors, waiting for references.

3. Livable Communities

a. Urban Chickens. Board discussed the draft ordinance including recommended fee of \$42 annually, 8' maximum coop height, and inspections allowed at reasonable times. Motion by Roger Kanitz second by Linda Stoll to recommend to the Board of Health, Plan Commission, and Administration Committee for approval and consideration by the Common Council. Motion carries

b. Large Rock the Block event planned for central Menasha in the summer/fall of 2019

c. Strong Neighborhoods. Members discussed if there were opportunities for communal spaces (not at the present time), would like to show any energy efficiency programs, noted that programs like this reap benefits far above the original cost.

d. CORP the parks department is still seeking input on the survey

4. Menasha Farm Fresh Market Menasha Farm Fresh Market

No report

5. Transportation

Received \$100,000 grant towards the Province Terrace Trail extension from Fox Cities Convention and Visitors bureau.

6. Website
No report

7. Member Recruitment
No report

H. ADJOURNMENT

Motion made by Roger Kanitz and seconded Linda Stoll by to adjourn at 2:45p.m. Motion carried.

Minutes submitted by DJM



MEMORANDUM

DATE: March 14, 2019
TO: Common Council
FROM: Debbie Galeazzi, Clerk
SUBJECT: Elected Officials Seminars

Attached is information on the Davis/Kuelthau Annual Public Officials Seminar. Please let me or Deputy Clerk Stephanie Cheslock know if you are interested in attending and we will register you. The seminar is April 29 and we would need to register you by April 22.

Please feel free to contact me should you have questions.

DAVIS|KUELTHAU
41st Annual Public Officials Program
Monday, April 29, 2019 (5th Monday)



Davis|Kuelthau, s.c. is pleased to invite you to its 41st Annual Public Officials Program for veteran and newly-elected public officials and administrators.

Our Labor and Employment, Municipal, and School and Higher Education teams will update public officials regarding:

- Public Records/Open Meetings Update
- Real Estate/Construction Contract/Environmental Issues
- Case Law/Legal Update
- Municipal Law Enforcement and School District Collaboration Considerations

The evening will conclude with a panel of Davis|Kuelthau attorneys collaborating on responses to the audience's questions regarding the various topics presented as well as address any other issues of interest to public officials.

When

Monday, April 29, 2019
5:00 p.m. – 8:15 p.m.

Where

The Marq | 3177 French Rd | De Pere, WI
(Located one minute off I-41 at County Road S/Freedom Exit)

Agenda

5:00 p.m.	Registration & Reception
6:00 p.m.	Dinner
6:45 p.m.	Program

Who Should Attend

School board members, city council members, town and village board members, county board members, school administrators, mayors, county executives, municipal administrators, human resource professionals and others who have an interest in public sector issues will benefit from attending this program. The program will be particularly helpful to newly-elected public officials.

How to Register

Please complete the attached registration form and mail together with payment of **\$20.00** per person (check payable to **Davis|Kuelthau, s.c.**), to:

Ms. Katrina L. Lancelle, Office Administrator
318 S. Washington St., Ste. 300 | Green Bay, WI 54301

You may also register via <https://tinyurl.com/DKPublicOfficials19> with payment mailed.

Questions? Ms. Lancelle may be reached at 920.431.2240 or klancelle@dkattorneys.com.

About Davis|Kuelthau

Davis|Kuelthau represents many municipalities and school districts throughout the State of Wisconsin. Our firm emphasizes personalized, high-quality client service in all of our practice areas: business law, labor and employment law, commercial and civil litigation, environmental law, municipal special counsel, employee benefits, school law, intellectual property, real estate, commercial finance, insurance coverage, construction, health care, public utilities, and trusts, estates and succession planning.

Meet Our Public Sector Team

Robert W. Burns | Abby S. Busler | Sherry D. Coley | Bruce B. Deadman | Todd Farris
Mary S. Gerbig | Aaron E. Hall | Joseph S. Heino | Christopher J. Jaekels
James M. Kalny | Mark G. Kmiecik | Stephen L. Knowles | Laurie E. Meyer |
Elizabeth K. Miles | Kathy L. Nusslock | Brian C. Randall | Thomas V. Rohan
Katharine G. Shaw | Ryan M. Spott | Anthony J. Steffek | Joseph E. Tierney IV
Ted A. Warpinski

www.dkattorneys.com

Please return the completed registration form and **\$20.00 fee (per person) via mail no later than April 22, 2019.**

CITY OF MENASHA
COMMON COUNCIL
First Floor Conference Room
100 Main Street
Monday, March 4, 2019
MINUTES

DRAFT

A. CALL TO ORDER

Meeting called to order by Mayor Merkes at 6:00 p.m.

B. PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was recited.

C. ROLL CALL

PRESENT: Aldermen Mark Langdon, Steve Krueger, Tom Grade, Ted Grade, Randy Ropella (arrived at 6:01pm), Rebecca Nichols, James Taylor, Stan Sevenich.
ALSO PRESENT: Mayor Merkes, CA Captain, PC Styka, FC Kloehn, ASD Jacobs, CDD Schroeder, DPW Radomski, PHD McKenney, PRD Tungate, Clerk Galeazzi

D. PUBLIC HEARING

None

E. PUBLIC COMMENTS ON ANY MATTER OF CONCERN TO THE CITY

(five (5) minute time limit for each person)

Sandra Dabill Taylor, 545 Broad Street, Menasha. Commented on closure of TIF #5 and using funds for housing program. Housing program will have no impact until there is code enforcement with other violations. City staff seems to have hands off approach on code violations at commercial property. People are getting frustrated and moving out of City.

F. REPORT OF DEPARTMENT HEADS/STAFF/CONSULTANTS

1. PHD McKenney—Community Health Survey Executive Summary and Press Release

PHD McKenney gave a presentation on the Fox Cities Community Health Survey that the Menasha Health Department participated in. The purpose of the project is to provide information from an assessment conducted on the health status of residents. PHD McKenney explained the uniqueness of the City of Menasha Health Department and what they offer their residents.

2. Clerk Galeazzi - the following minutes and communications have been received and placed on file:

Minutes to receive:

- a. Administration Committee, 2/18/2019
- b. Neenah-Menasha Sewerage Commission, 1/22/2019
- c. Parks and Recreation Board, 1/8/2019
- d. Police Commission, 12/20/2018
- e. Water & Light Commission, 1/23/2019

Communications:

- f. Proposed legislation relating to vacancies in elective offices in cities and villages
- g. Notice of Pending Vacancy, Fox Valley Technical College District Board, 2/8/2019
- h. Neenah-Menasha Memorial Day Parade Committee Notice, 2019 Memorial Day Parade, Monday, May 27, 2019
- i. Order Granting Extension, Office of the Commissioner of Railroads of the State of Wisconsin
- j. Ribbon Cutting—Jimmy Johns—87 Racine St, Menasha Memorandum, 3/4/2019, CDD Sam Schroeder
- k. Menasha Residents Invited to Water Street Open House Press Release, 2/26/2019

- I. Update on Creation of Tax Increment Financing District #14 Memorandum, 3/4/2019,
CDD Sam Schroeder

Moved by Ald. Sevenich seconded by Ald. Krueger to receive Minutes and Communications a-l.
Motion carried on voice vote.

G. CONSENT AGENDA

(Prior to voting on the Consent Agenda, items on the Consent Agenda may be removed at the request of any Alderman and placed immediately following action on the Consent Agenda. The procedures to follow for the Consent Agenda are: (a) removal of items from Consent Agenda; and (b) motion to approve the items from Consent Agenda.)

Minutes to approve:

1. Common Council, 2/18/2019

Moved by Ald. Sevenich seconded by Ald. Tom Grade to approve Consent Agenda item 1,
Common Council minutes, 2/18/2019.

Motion carried on voice vote.

H. ITEMS REMOVED FROM THE CONSENT AGENDA

None

I. ACTION ITEMS

1. Accounts payable and payroll for the term of 2/21/2019—2/28/2019 in the amount of
\$1,194,716.45

Moved by Ald. Nichols seconded by Ald. Krueger to approve accounts payable and payroll.
Motion carried on roll call 8-0.

2. Beverage Operators License Applications for the 2017-2019 licensing period.

Moved by Ald. Nichols seconded by Ald. Krueger to approve beverage operator's license
application for the 2017-2019 licensing period as listed in memo dated 2/27/19.

Motion carried on roll call 8-0.

Mayor Merkes stated the Police Department is recommending denial of beverage operator's
license application of Michelle Long since according to her probation rules she is not allowed to sell
any alcoholic substance or enter into any establishment that sells alcohol.

Michelle Long explained to the Council there is miscommunication with the Courts and her
probation office. She asked to hold off on taking any action until she can clear up the
miscommunication.

PC Styka stated the circumstances of Ms. Long's case do not fall into the regular policy guideline.
It is reasonable to wait to hear from the Courts.

Moved by Ald. Sevenich seconded by Ald. Langdon to postpone action to March 18, 2019 meeting.
Motion carried on voice vote.

J. HELD OVER BUSINESS

K. ORDINANCES AND RESOLUTIONS

1. O-2-19 An Ordinance Amending Title 7, Chapter 2, Article B of the Code of Ordinances
(Operator's License) (Introduced by Alderman Nichols; Recommended by Administration
Committee)

Moved by Ald. Nichols seconded by Ald. Krueger to approve O-2-19 An Ordinance Amending Title
7, Chapter 2, Article B of the Code of Ordinances (Operator's License) (Introduced by Alderman
Nichols; Recommended by Administration Committee).

Motion carried on roll call 8-0.

2. R-4-19 A Resolution Approving an Affordable Housing Extension through Tax Increment District No. 5 to Benefit Affordable Housing and improve Housing Stock within the City of Menasha (Introduced by Mayor Merkes; Recommended by Administration Committee)
Moved by Ald. Nichols seconded by Ald. Krueger to approve R-4-19 A Resolution Approving an Affordable Housing Extension through Tax increment District No. 5 to Benefit Affordable Housing and improve Housing Stock within the City of Menasha (Introduced by Mayor Merkes; Recommended by Administration Committee).

CDD Schroeder explained this Resolution directs the City's portion of excess increment of TIF #5 to fund the Strong Neighborhoods Menasha Housing Program. The housing program will be discussed at the Administration Committee.

Council members had concerns of funding the housing program before they had the opportunity to act on the program.

Mayor Merkes stated the Council can vote to recess to the Administration Committee.

Moved by Ald. Sevenich seconded by Ald. Taylor to recess to Administration Committee.
Motion carried on voice vote.

Council recessed at 6:45 p.m.

Council reconvened at 7:55 p.m.

The motion on the floor: Moved by Ald. Nichols seconded by Ald. Krueger to approve R-4-19 A Resolution Approving an Affordable Housing Extension through Tax increment District No. 5 to Benefit Affordable Housing and improve Housing Stock within the City of Menasha (Introduced by Mayor Merkes; Recommended by Administration Committee).
Motion carried on roll call 8-0.

3. R-5-19 A Resolution Terminating City of Menasha Tax Increment District (TID) No. 5, Authorizing City Treasurer to Distribute Excess Increment to Overlying Taxing Districts, and Approving the Distribution of Remainder Funds from TID No. 5 Closure to Strong Neighborhoods Menasha Housing Program (Introduced by Mayor Merkes; Recommended by Administration Committee)

Moved by Ald. Nichols seconded by Ald. Krueger to approve R-5-19 A Resolution Terminating City of Menasha Tax Increment District (TID) No. 5, Authorizing City Treasurer to Distribute Excess Increment to Overlying Taxing Districts, and Approving the Distribution of Remainder Funds from TID No. 5 Closure to Strong Neighborhoods Menasha Housing Program (Introduced by Mayor Merkes; Recommended by Administration Committee)

General discussion ensued on the amount that is expected to be applied to the housing program, putting more funding toward debt relief, benefits of TIF #5 valuation, amount applied to tax relief, amount needed to make housing program a success, how housing stock affects taxes, when next TIF is scheduled to end, using funds in housing program to remediate lead from homes, what other communities offer, promoting the housing program, use of code enforcement to clean up properties, housing program helping improve properties on the main corridors of the City.

Moved by Ald. Sevenich seconded by Ald. Langdon to direct \$200,000 of excess increment to the general fund and the remainder to the Strong Neighborhoods Menasha Program.

Motion fails on roll call 4-5.

Ald. Sevenich, Langdon, Ted Grade, Ropella voted yes.

Ald. Nichols, Taylor, Krueger, Tom Grade, Mayor Merkes voted no.

Moved by Ald. Sevenich seconded by Ald. Ted Grade to direct \$175,000 of excess increment to the debt service fund and the remainder to the Strong Neighborhoods Menasha Program.

Motion carried on roll call 5-4.

Ald. Sevenich, Langdon, Ted Grade, Ropella, Mayor Merkes voted yes.

Ald. Nichols, Taylor, Krueger, Tom Grade voted no.

General discussion ensued on details of the program, the importance of a housing program, and paying down the City's debt.

Original motion as amended carried on roll call 8-0.

L. APPOINTMENTS

None

M. CLAIMS AGAINST THE CITY

None

N. PUBLIC COMMENTS ON ANY MATTER LISTED ON THE AGENDA

(five (5) minute time limit for each person)

No one spoke.

O. ADJOURNMENT

Moved by Ald. Taylor seconded by Ald. Tom Grade to adjourn at 8:45 p.m.

Motion carried on voice vote.

Deborah A. Galeazzi, WCMC
City Clerk

2019

Strong Neighborhoods Menasha

A Housing Renovation Initiative



Joe Stephenson
Associate Planner
City of Menasha
100 Main Street
Menasha, WI 54952

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INTRODUCTION

Overview

Strong Neighborhoods Menasha is an initiative developed by the City of Menasha to help increase the attractiveness and affordability of Menasha's housing stock. Strong Neighborhoods aims to work with citizens to invest in both them and their homes. Currently the City runs a Community Development Block Grant (CDBG) program and a Paint and Restore Program. The Strong Neighborhoods Initiative will combine these programs along with four new programs, Curb Appeal, Major Renovation, First Time Homebuyer, and Property Acquisition. The new programs will be financed through a TIF financing law known as the "Affordable Housing Extension" that allows the extension of a TIF to benefit a municipalities housing stock. Funds for these programs will be available in the form of grants and loans. Investing in the city's housing stock will result in a ripple effect that will benefit everyone within the City.

Goals and Objectives

Strong Neighborhoods Menasha is aimed at updated the City's residential homes. Two main goals have been proposed; with a number of objectives to help us define what success looks like. These goals are based upon the findings in Appendix (A).

Goal One: Increase the quality of Menasha's housing stock.

1. Increase median property values within the city from \$118,400 to \$120,000 by 2025
2. See a downward trend in property survey violations.

Goal Two: Increase home ownership stability.

1. Return an average of two historically single family homes, that were converted to multi-family homes, back to single family homes per year by 2025.
2. Decrease the number of home changes per year.
3. Increase the percentage of students who start in Menasha School District and graduate from Menasha School District by 5% by 2025.

Administration

The Community Development Department will administer the Strong Neighborhoods Initiative. Administration includes, but is not limited to, promoting and advertising the program, accepting and reviewing completed applications, interpreting program guidelines, approving or disapproving property acquisitions, and reviewing reimbursement requests.

Any grant funds that were allocated but not used in full by an approved applicant and/or any unused funds within the calendar year will either be reprogrammed to another grant application with an eligible project(s) or will be carried over to the next calendar year's budget.

Approving or disapproving applicants, loans, and grants for Curb Appeal and Major Renovation will be done on a quarterly basis. Qualified projects will be approved on a first come first serve basis. The

Menasha Housing Authority will have final determination on amount and who receives funds from the Curb Appeal and Major Renovation programs.

The budget for the program will be set on an annual basis and be included in the City of Menasha's Operating Budget.

Program Summary

The Housing Initiative's wide range of programs intend to rebuild the City's aging housing stock and increase home ownership and stability. The following is a list of programs administered through this initiative:

1. **Paint and Restore:** Minor program to assist in the repair and replacement of various exterior housing improvements. Administered by Community Development Department.
 - a. Up to \$1,000 Grant.
 - b. 100% match for owner occupied – 200% match for non-owner occupied.
2. **Curb Appeal:** Major program to assist in the repair and replacement of various exterior housing improvements. Administered by Community Development Department and Housing Authority
 - a. Up to \$5,000 Grant – minimum \$5,000 project.
 - b. 100% match for owner occupied – 200% match for non-owner occupied.
3. **Major Renovation:** Program designating funds for large exterior and interior home improvement projects. Administered by the Community Development Department and the Housing Authority.
 - a. Up to \$15,000 Forgivable Loan – minimum \$15,000 project.
 - b. 50% match for owner occupied homes.
 - c. Optional additional \$15,000 for conversions from historically single family homes back to a single unit.
4. **First Time Homebuyer:** A down payment assistance program for first time home buyers. Administered by the Community Development Department.
 - a. Up to \$5,000 forgivable loan.
5. **Property Acquisition:** Program designated to assist the City in the acquisition, demolition, or rehabilitation of blighted properties. Administered by the Community Development Department and the Common Council.

Other programs offered by the City of Menasha include the following:

1. **Community Development Block Grant (CDBG):** Low to Moderate Income (LMI) restricted program to assist in the Repair and replacement of roofs, doors, windows, plumbing, electrical, HVAC, siding, accessibility. Administered by Housing Specialist.
 - a. Deferred loan due at the time of sale
2. **Lead Lateral Replacement:** Program designed to assist property owners in replacement of lead laterals servicing the home. Administered by Menasha Utilities.
 - a. Up to \$2,000 Grant
 - b. 33% match from property owner

PROGRAM DETAILS

Paint and Restore Program

The paint and restore program is a grant program to help eligible single and two-family homes increase the curb appeal of their home. The program is a matching grant program and will provide funds of up to \$1,000 for eligible expenses.

Home Type	Total Project Amount	City Grant	Private Match
Owner Occupied	\$2,000	\$1,000	\$1,000
Non-owner Occupied	\$3,000	\$1,000	\$2,000
Owner Occupied	\$1,500	\$750	\$750
Non-owner Occupied	\$1,500	\$500	\$1,000

- A. **Eligible Properties:** Properties that meet the following criteria may apply for up to \$1,000, 100% matching for owner occupied and 200% for non-owner-occupied units:
- Single Family or Two-Family Residence use properties.
 - Property owner or tenant cannot spend more than 30% of their gross monthly household income on housing related expenses.
- B. **Ineligible Properties:** *See Additional Program Details*
- C. **Eligible Projects:** *See Additional Program Details*
- D. **Grant Guidelines:**
- The applicant must submit a completed application packet, including before photos, prior to any work being completed in order to be considered for a Grant Program.
 - A project timeline must be submitted to the Community Development Department.
 - This program is a reimbursement grant. The applicant is required to pay all expenses related to their approved project and then submit for reimbursement from the City.
 - Must provide 100% matching funds if owner occupied and 200% is non-owner occupied.
 - The homeowner must agree to obtain all necessary permits (e.g. building, plumbing, electrical, roofing, permits, etc.).
 - All work must meet local, state and national standards including but not limited to lead and asbestos.
 - For painting or staining projects applicants are required to scrape and prime all surfaces prior to painting or staining. Photo documentation of the finished prep work is required.
 - Up to 10% of the total project grant reimbursement can be for trees and shrubs planted in the front yard.
 - Projects must be substantially completed within six (6) months of loan approval.
- E. **Ineligible Grant Expenditures:** Items/projects that are not eligible for reimbursement under the Grant Program include, but are not limited to, the following:
- The repair or replacement of dog houses or any other structure for animals.
 - Any interior projects to the primary building, detached garage, or accessory building.
 - Rental companies or other organizations may not use this program to reimburse their own staff's labor expenses to complete their project.

- d. Materials that have been purchased or projects that are completed or underway prior to issuance of a signed Contract for Services and Grant Award Letter by Community Development Staff.
- e. The purchasing of permanent equipment or tools (ladder, paint sprayers, etc.) is not an eligible expense.

F. Reimbursement Procedures:

- a. A completed Final Reimbursement Form/Worksheet. This form must include a description of the proposed project(s) and the final cost for each project. Any items for projects not listed on the Pre-Documentation Form are not considered for reimbursement.
- b. Copies of receipts/paid invoices showing proof of purchase of the approved/ completed items/materials for each project. The applicant is required to mark on their receipt which item(s) is/are being requested for reimbursement and what project they were for.
- c. Final photo documentation of the complete project. ("After" Photos). Photos shall be taken in a similar manner to the "Before" photos.
- d. After the applicants submit all of the required information for reimbursement, the Community Development Department shall review all information submitted to ensure it is eligible for reimbursement and will determine the amount awarded, if any, to the applicant.
- e. Once the request is complete, copies are made of the reimbursement form and all receipts and/or paid invoices are forwarded to the City of Menasha's Finance Department and the dollar amount to be reimbursed back to the applicant.

Curb Appeal Program

The curb appeal program is a grant program to help eligible single and two-family homes increase the curb appeal of their home. The program is a matching grant program and will provide funds of up to \$5,000 for eligible expenses.

Home Type	Total Project Amount	City Grant	Private Match	Eligible Landscape Expenses
Owner Occupied	\$5,000	\$2,500	\$2,500	\$250
Non-owner	\$5,000	\$1,667	\$3,333	\$167.70
Owner	\$15,000	\$5,000	\$10,000	\$500
Non-owner	\$15,000	\$5,000	\$10,000	\$500

- A. Eligible Properties:** Properties that meet the following criteria may apply for up to \$5,000 grant, 100% matching for owner occupied and 200% for non-owner-occupied units:
- a. Single Family or Two-Family Residence use properties.
 - b. Property owner or tenant cannot spend more than 30% of their gross monthly household income on housing related expenses.
 - c. Minimum project value of \$5,000.

- B. **Ineligible Properties:** *See Additional Program Details*
- C. **Eligible Projects:** *See Additional Program Details*
- D. **Grant Guidelines:** *See Grant Guidelines under Paint and Restore*
- E. **Ineligible Grant Expenditures:** *See Ineligible Grant Expenditures under Paint and Restore*
- F. **Reimbursement Procedures:** *See Reimbursement Procedures under Paint and Restore*

Major Renovation Program

The Major Renovation Program will help eligible homes increase their value and assist with needed upgrades. The program provides 200% matching funds in the form of a forgivable loan of up to \$15,000. Any project that reduces the number of units to one (1) is eligible for an additional \$15,000 of funding. The forgivable loans will act as a deferred second mortgage with no principal or payments due until the sale of the house. If the applicant lives in the home for five (5) consecutive years the entire loan is forgiven.

Total Project Amount	Conversion of Single Family	City Loan	Private Match
\$15,000	NO	\$10,000	\$5,000
\$45,000	YES	\$30,000	\$15,000
\$30,000	YES	\$20,000	\$10,000
\$22,500	NO	\$15,000	\$7,500

- A. **Eligible Properties:** Properties that meet the following criteria may apply for the Major Renovation Program:
 - a. Single Family or Two-Family Residence use properties
 - b. Homes that are or will be owner occupied within one (1) year of loan distribution.
 - c. Property owner cannot spend more than 30% of their gross monthly household income on housing related expenses.
 - d. Minimum project value of \$15,000.
- B. **Ineligible Properties:** *See Additional Program Details*
- C. **Eligible Projects:** *See Additional Program Details*
- D. **Loan Guidelines:**
 - a. The applicant must submit a completed application packet, including before photos, prior to any work being completed in order to be considered for a Major Renovation Program loan.
 - b. A project timeline must be submitted to the Community Development Department.
 - c. Loans will consist of a 0% interest over the life of the loan, and act as a deferred second mortgage. After five consecutive years of living in the home that received the loan funds, the loan will be 100% forgiven.
 - d. If the property owner sells before the five year time period or is no longer the primary place of residence, the loan is required to be paid back in full.

- e. Properties may receive a loan, not to exceed \$15,000 for home improvements and \$30,000 for home improvements that reduce the number of livable units to one (1) on an existing multi-unit property.
 - f. The homeowner must agree to obtain all necessary permits (e.g. building, plumbing, electrical, roofing, permits, etc.).
 - g. All work must meet local, state and national standards including but not limited to lead and asbestos.
 - h. The loan can be transferred to a new owner one (1) time over the life of the loan and must be transferred within one (1) year of loan distribution. If an individual does not use the home as their primary residence after the one (1) year period the loan is required to be paid back in full.
 - i. Projects must be substantially completed within six (6) months of loan approval.
- G. Ineligible Loan Expenditures:** Items/projects that are not eligible for reimbursement under the Program include, but are not limited to, the following:
- a. The repair or replacement of dog houses or any other structure for animals.
 - b. Any interior projects to the detached garage or accessory building.
 - c. Rental companies or other organizations may not use this program to reimburse their own staff's labor expenses to complete their project.
 - d. Materials that have been purchased or projects that are completed or underway prior to issuance of a signed Contract for Services and Award Letter by Community Development Staff.
 - e. The purchasing of permanent equipment or tools (ladder, paint sprayers, etc.) is not an eligible expense.
 - f. Proposed projects that are solely demolition.
 - g. Project costs that demolish a structure or part of a structure and do not replace the structure in kind to protect the character of the home and neighborhood.

First Time Homebuyer

First Time Homebuyer program is an incentive that provides first time homebuyers with down payment assistance. The incentive will be provided in the form of a forgivable loan of up to \$5,000. The loan will accrue no interest and after five (5) consecutive years of living in the home the loan will be 100% forgiven.

- A. Eligible Properties:**
 - a. Owner occupied homes.
 - b. Individuals purchasing their first home.
 - c. Property owner cannot spend more than 30% of their gross monthly household income on housing related expenses.
 - d. Single Family properties.
- B. Ineligible Properties:** *See Additional Program Details*
- C. Loan Guidelines:**

- a. The applicant must submit a completed application packet.
- b. Loans will consist of a 0% interest over the life of the loan, and act as a deferred second mortgage. After five consecutive years of living in the home that received the loan funds, the loan will be 100% forgiven.
- c. The individual who received the loan must use the property as their primary place of residency.
- d. If the property owner sells before the five year time period or is no longer the primary place of residence, the loan is required to be paid back in full.
- e. The loan can be paid in full or in part at any time before the sale of the home.
- f. Properties may receive a loan, not to exceed \$5,000.
- g. Individuals employed by the City of Menasha that choose to relocate within the City's Municipal boundaries qualify for the first time homebuyer program regardless of if the home they are purchasing is their first home or not. Any home purchased in this manner must be an existing single family home.

Property Acquisition

The Property Acquisition Program is a tool the City of Menasha can use to help remove blighted properties within the city. The intent of the property acquisition program is to acquire strategically located or blighted properties. The acquired properties would then be demolished or sold to a qualified contractor that would work with the City of Menasha to rehabilitate the property. All costs associated with acquiring the property and rehabilitating the site is eligible under this program.

- A. **Eligible Properties:** Properties deemed eligible by the Community Development Director shall be presented to the Menasha Common Council. It is the discretion of the Menasha Common Council on which properties to acquire. Properties that meet the following criteria may be considered by the Menasha Common Council for acquisition through the Property Acquisition Policy:
 - a. Any properties that is blighted or in disrepair.
 - b. Properties that present an economic benefit to acquire.
 - c. Properties, that when acquired, will further the goals of the City of Menasha Comprehensive Plan.
 - d. Properties, that when acquired, will further the goals of the City of Menasha Downtown Vision Plan.
 - e. Properties that have an active raze order.
 - f. Any property that will benefit the City of Menasha's housing stock.
- B. **Eligible Expenditures:**
 - a. Property acquisition.
 - b. Demolishing/razing costs.
 - c. Costs associated with the sale of a property.
 - d. Costs associated with the maintenance of a property.
 - e. Utility costs.

- f. Any costs associated with ensuring the house are not a health or sanitation risk, including but not limited to: asbestos removal, well abatement, removal of hazardous material, and lead removal.
- g. Safety costs.
- h. Bringing non-compliant features up to code.

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ADDITIONAL PROGRAM DETAILS

Income Requirements

No loan or grant shall be given to an individual who does not meet the state requirement of affordable housing as defined in section 66.1105(2) (ab). No more than 30% of the household's gross monthly income can be spent on housing related expenses. Housing related expenses include: mortgages, property taxes and home insurance. (\$5,000 Gross Monthly Household Income = \$1,500 maximum amount spent on housing costs)

Housing Standards

In order to maintain the historic character and quality of Menasha's older homes, all houses that use program funds must abide by the guidelines set forth in Appendix (B).

Ineligible Properties

A property which has any one or more of the following conditions is ineligible for the rehabilitation program:

- A. A property is not located within the corporate limits of the City of Menasha.
- B. Any property where the owner of that property is delinquent on any debt it owes to the City of Menasha.
- C. Properties owned in part or in whole by a tax exempt entity.
- D. A property that has an open or issued Correction Notice. Applications that are submitted for projects will close a Correction Notice may be considered on a case by case basis.
- E. Property that has received past housing funds, excluding the Community Development Block Grant Program, in the previous 5 years or has a Major Housing Renovation Loan open with the City of Menasha.

Eligible Projects

Eligible items for include, but are not limited to, the following:

- A. Bringing non-compliance features up to code.
- B. Replacing the roof.
- C. Repair/Replacing windows.
- D. Exterior masonry repair/replace.
- E. Front porch repair.
- F. Replace/ repair existing siding.
- G. Install guards and handrails.
- H. Paving of driveway.
- I. Replace, repair, or install garage.
- J. Demolition and removal of structures deemed dilapidated by the City Building Inspector as part of a larger project.

- K. Repair, replacement, or installation of fences.
- L. Repair or replacement of gutters or trim.
- M. Repair or replacement of soffit and fascia.
- N. Lead and asbestos remediation.
- O. Shrubs and Trees within the front yard (not to exceed 10% of total project reimbursement).
- P. Other projects may be eligible for reimbursement upon approval of the Community Development Director.
- Q. Additions or added architectural features that will enhance the character of the home.
- R. Additional Projects Permitted for Major Renovation:
 - a. Foundation repair.
 - b. Interior Remodel
 - c. Upgrading electrical.
 - d. Upgrading plumbing.
 - e. Upgrading mechanical systems.

Labor

Only professional labor can be claimed for reimbursement. Professional labor is considered work done by an individual who is trained and engaged in such work for a career. All work must meet the housing standards set forth in Appendix (B).

Application Process

The Community Development Department shall ensure a complete application is submitted and then will process them.

- A. Administration and Approval:
 - a. Paint and Restore – Community Development Department review and approval
 - b. Curb Appeal – Community Development Department review and Housing Authority Approval on a quarterly basis
 - c. Major Renovation – Community Development Department review and Housing Authority Approval on a quarterly basis
 - d. First Time Homebuyer – Community Development Department review and approval
- B. A complete Pre-Documentation project Form. For renovation projects, this Form must include an itemized description of the proposed project and an estimated cost for each item. Any item not listed on the worksheet will not be considered for reimbursement or a loan. If the project is being completed by a contractor, a copy of their estimate to complete the work must be attached.
- C. Submit a timeline outlining when the project will be completed.
- D. A completed W-9 Form. A completed W-9 form must be completed and submitted in order to be eligible for the program.
- E. The Community Development Department determines whether the applicant owes money to the City and if there are any Correction Notices on the property.

- F. It is anticipated that an applicant will receive a response whether they are eligible or ineligible for the Program within 30 days from the date received.
- G. Before photos of the proposed project. Items will not be considered if before photos are not submitted.
- H. A signed Contract for Services Form. Submit a signed Contract for Services Form. If approved, a signed copy of the Contract from the City will be sent back to the applicant.
- I. Additional Requirements for Loan Programs:
 - a. Three (3) recent consecutive months of paycheck stubs.
 - b. Last one (1) year full tax return (federal) and W2s and 1099s.
 - c. Recent 6 months checking/savings statements and recent retirement/financial asset statements.
 - d. Most recent mortgage loan statement (if any) and homeowner's insurance policy coverage page. Along with a statement of all current debt.

Housing Authority Approval

The Housing Authority on a quarterly basis shall review and approve all applications for the Curb Appeal and Major Renovation Programs. The Community Development Department will make a recommendation to the Housing Authority on all projects. The recommendation will be considered by the Housing Authority for approval or denial of the project. The following criteria will be taken into consideration by the Community Development Department and the Housing Authority:

- The applicant's financial history.
- History of the applicant and/or listed contractors including past ordinance violations and/or citations.
- The quality of work performed by the applicant in any other applicable home renovation.
- The Project quality.
- The neighborhood impact of the project.

Program Amendments

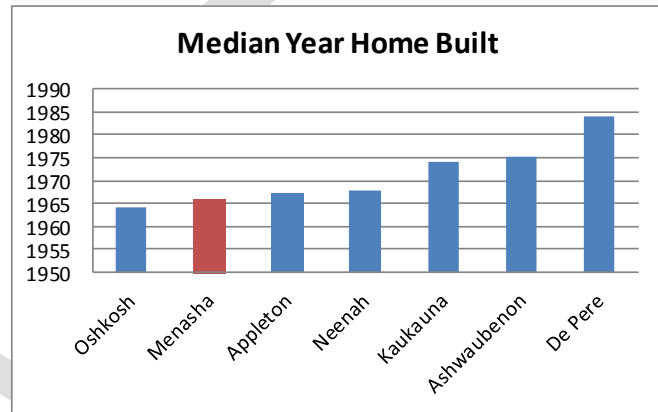
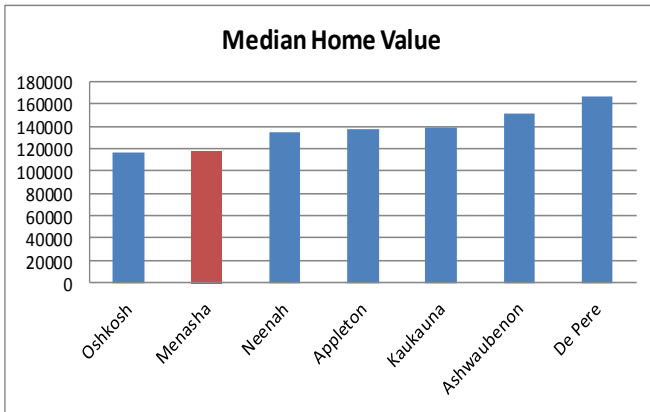
Any update clarifying the intent of the document and/or process that does not drastically change the program details or the programs intent may be made by the Community Development Department. Those changes that would alter the programs intent, drastically change the review and approval process, or alter a funding amount shall require consent of the Common Council.

Marketing Funds

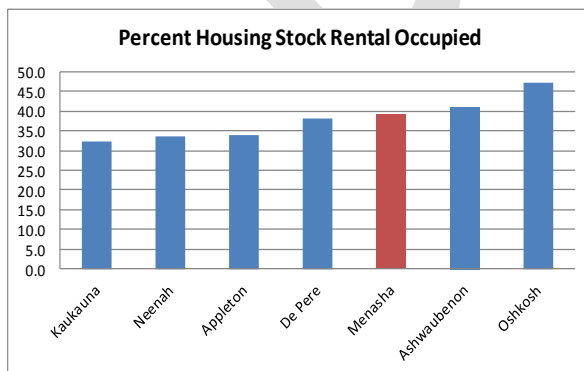
It is the expressed intent of this initiative that up to \$1,500 shall be budgeted per calendar year to market and advertise the initiative. The Community Development Department will determine how best to use the budgeted marketing funds to promote the initiative.

APPENDIX A

A person's home is their largest asset and thus the City's housing stock is its largest asset. Menasha's housing stock varies widely in style, age, and value. Much of the City's housing was built before 1950. The median age of a home in Menasha is 1966. In fact, compared to our neighbors Menasha has the second oldest housing stock. The City of Oshkosh had the oldest housing stock in the comparable City's. When comparing median housing value the City of Menasha also trends lower. Menasha's median home value is \$118,400, the second lowest in the study group. Oshkosh has the lowest median, \$116,900, home value and De Pere has the highest, \$167,400, in the study group.

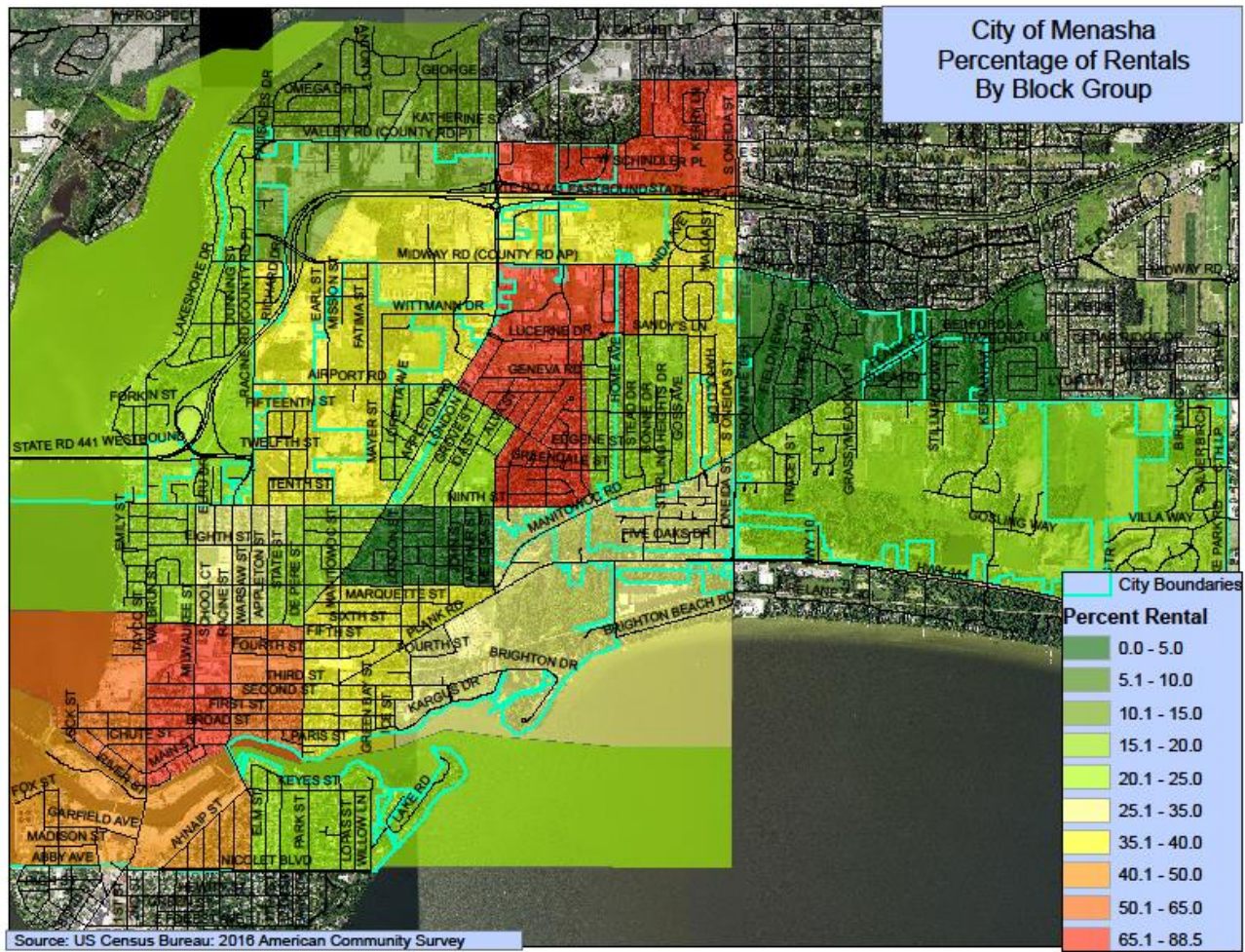
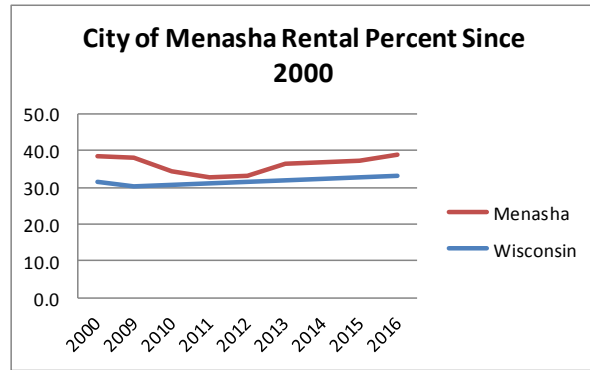


The final metric gathered was rental percentage. Menasha's rental percentage has remained fairly steady since 2000 and the non-owner occupied ratio is not out of line with similar communities. Menasha's current rental rate is 38.5%. De Pere, Menasha, Ashwaubenon, and Oshkosh all have a rental rate right around 40%. Appleton, Neenah, and Kaukauna have a rental rate around 33%. The State of Wisconsin's rental rate as a whole is 33%. A mix of homeowner and tenant occupied units is considered healthy for a city. A rental rate of 35% is considered to be a healthy ratio for a city. While Menasha does not have an inordinate number of tenant occupied units, it does have a significant concentration of rental units in certain areas. Both the downtown and the north central part of the city have higher than average rates.



The north central block group has an elevated rental rate because a number of apartment complexes are in this area. These apartment complexes artificially elevate the region's rental rate. The second area with an elevated rental rate is the downtown. This region is split between three different block groups. The rental rate in the downtown is the highest in the City at 78%. While the city overall has only a slightly elevated rental rate, these key areas of majority tenant occupied units need to be addressed.

These issues must be addressed. Home quality must be increased and rental rates in the center city must be reduced. Menasha may have older homes with lower home values but with proper investment by the City, these homes can be fixed up and become a healthy vibrant part of our community and Menasha will become a place every wants to live.



APPENDIX B

The City's housing programs are primarily aimed at renovated existing homes. These homes have a character that is unique and should be preserved and enhanced when at all possible. When a structure is renovated, with the use of City of Menasha funds, the purpose of the renovation is not to make an old house new but to improve or repair the existing features. The original home's design, structure, and style should be maintained when at all possible. The following is a design guideline to ensure that the aesthetics of existing homes are not lost with renovation projects.

A. Siding:

- When existing wood siding exists it is preferred that the existing siding is maintained opposed to replacing it with new siding.
- New siding shall be applied in a manner that preserves all existing distinguishing architectural features and ornamentation.
- Width of new siding is consistent with the type, age and style of the house.

B. Brick and other Exterior Masonry:

- When at all possible, all existing exterior masonry will be preserved and repaired. Only in cases of irreparable damage can the exterior masonry be removed.
- New masonry shall be applied in a manner that preserves all existing distinguishing architectural features and ornamentation.

C. Porches:

- Existing porches will be maintained and repaired. In no case should a salvageable porch be removed.
- Existing front porches will be maintained and repaired to original appearance and condition. Salvageable front porches will not be removed.

D. Windows and Doors:

- The style and design of any new window or door should match the original.
- The removal of a window or door shall not be permitted unless the removal of the window or door is vital to the completion of the project.
- The replacement of windows shall not destroy any distinguishing features or architectural ornamentation.
- A new window or door may not be smaller than the existing window or door.

E. Outbuildings:

- Any outbuilding, shed, garage or other structure will conform in style and color to the principal structure on the lot.



Memorandum

Date: February 27, 2019

To: Board of Public Works

From: Joshua Radomski – Public Works Director 

RE: Recommendation to Award – Contract Unit No. 2019-01
New Street Construction – Province Terrace, Jennie Street, Province Link and
Midway Crossing (Various Locations)

The City of Menasha publicly opened bids on Wednesday, February 27, 2019 for Contract Unit No. 2019-01; Province Terrace from Manitowoc Road to Province Link, Jennie Street from Oneida Street to Province Terrace, Province Link from Oneida Street to Province Terrace and Midway Crossing (Various Locations).

The project consists of the following:

- New Street Construction
- Concrete Pavement with Integral Curb
- Concrete Curb & Gutter
- Asphaltic Concrete Pavement
- Concrete Sidewalk

Two bids were received as indicated on the attached Itemized Bid Tabulation.

Recommendation

After reviewing the bids for accuracy, staff recommends that Contract Unit 2019-01 be awarded to Sommers Construction Co., Inc. in the amount of \$697,062.40.

Itemized Bid Tabulation						
City of Menasha Contract Unit No. 2019-01						
New Street Construction - Province Terrace, Jennie Street, Province Link, Midway Crossing						
Item	Quantity	Description	Sommers Construction Co.		Vinton Construction Co.	
		Base Bid	Unit Price	Item Total	Unit Price	Item Total
1	28	8" SDR-35 PVC Storm Sewer/LF	\$ 73.00	\$ 2,044.00	\$ 60.00	\$ 1,680.00
2	13,329	Pavement / Base Pulverizing/SY	\$ 0.65	\$ 8,663.85	\$ 0.50	\$ 6,664.50
3	3,070	Unclassified Excavation/CY	\$ 9.05	\$ 27,783.50	\$ 8.00	\$ 24,560.00
4	282	Pulverized Stone Placement/CY	\$ 16.00	\$ 4,512.00	\$ 0.01	\$ 2.82
5	16,903	Fine Grading and Compaction/SY	\$ 0.40	\$ 6,761.20	\$ 1.40	\$ 23,664.20
6	12,630	8" Thick Concrete Pavement with Integral Curb & Gutter/SY	\$ 32.50	\$ 410,475.00	\$ 33.87	\$ 427,778.10
7	79	18" Concrete Curb & Gutter/LF	\$ 25.00	\$ 1,975.00	\$ 30.00	\$ 2,370.00
8	1,531	24" Concrete Curb & Gutter/LF	\$ 11.65	\$ 17,836.15	\$ 13.50	\$ 20,668.50
9	90	30" Concrete Curb & Gutter/LF	\$ 25.00	\$ 2,250.00	\$ 30.00	\$ 2,700.00
10	1,410	No. 4 Epoxy Coated Rebar/LF	\$ 0.75	\$ 1,057.50	\$ 1.00	\$ 1,410.00
11	52	Utility Adjustment/EA	\$ 200.00	\$ 10,400.00	\$ 275.00	\$ 14,300.00
12	9	Water Valve Adjustment/EA	\$ 75.00	\$ 675.00	\$ 200.00	\$ 1,800.00
13	426	Sawcut/LF	\$ 2.00	\$ 852.00	\$ 2.50	\$ 1,065.00
14	381	Asphalt Binder Course Pavement/Ton	\$ 80.05	\$ 30,499.05	\$ 74.25	\$ 28,289.25
15	301	Asphalt Surface Course Pavement/Ton	\$ 80.05	\$ 24,095.05	\$ 74.25	\$ 22,349.25
16	503	8" Thick Concrete Driveway Apron/SF	\$ 6.50	\$ 3,269.50	\$ 6.05	\$ 3,043.15
17	16,511	4" Thick Concrete Sidewalk/SF	\$ 3.40	\$ 56,137.40	\$ 3.78	\$ 62,411.58
18	1,537	6" Thick Concrete Sidewalk, Trail & Handicap Ramp/SF	\$ 5.50	\$ 8,453.50	\$ 5.40	\$ 8,299.80
19	948	8" Thick Concrete Sidewalk & Trail/SF	\$ 6.50	\$ 6,162.00	\$ 6.05	\$ 5,735.40
20	7,634	Lawn & Terrace Restoration/SY	\$ 3.05	\$ 23,283.70	\$ 7.00	\$ 53,438.00
21	1	Temporary Mailbox/LS	\$ 250.00	\$ 250.00	\$ 200.00	\$ 200.00
22	3	Pavement Gap/EA	\$ 500.00	\$ 1,500.00	\$ 750.00	\$ 2,250.00
23	4	Sidewalk or Apron Gap/EA	\$ 100.00	\$ 400.00	\$ 100.00	\$ 400.00
24	4,220	4-Inch Solid, Yellow Epoxy Pavement Marking/LF	\$ 0.80	\$ 3,376.00	\$ 0.80	\$ 3,376.00
25	98	Stop Line, 18-Inch White Epoxy Pavement Marking/LF	\$ 10.75	\$ 1,053.50	\$ 10.75	\$ 1,053.50
26	433	Crosswalk, 6-Inch White Epoxy Pavement Markiing/LF	\$ 7.50	\$ 3,247.50	\$ 7.50	\$ 3,247.50
27	1	Erosion Control/LS	\$ 1,450.00	\$ 1,450.00	\$ 1,800.00	\$ 1,800.00
28	1	Traffic Control/LS	\$ 5,100.00	\$ 5,100.00	\$ 4,800.00	\$ 4,800.00
29	1	Construction Mobile/Demobile; Project Coordination; all incidental utility and miscellaneous roadway work; and all other project work area restoration and clean-up to an equal and/or better preconstruction condition, as required and related to the overall Project/LS	\$ 12,000.00	\$ 12,000.00	\$ 17,500.00	\$ 17,500.00
Total Base Bid (Items 1 - 29)				\$ 675,562.40		\$ 746,856.55
2019-01 Alternate Bid Item - Private Street Section of Midway Crossing						
1	Private Street Construction/LS			\$ 21,500.00		\$ 21,350.75
Total Unit 2019-01 Alternate Bid (Item 1)				\$ 21,500.00		\$ 21,350.75
Grand Total Unit 2019-01 New Street Construction and Alternate Bid				\$ 697,062.40		\$ 768,207.30



Memorandum

Date: February 27, 2019

To: Board of Public Works

From: Joshua Radomski – Public Works Director *JR*

RE: Recommendation to Award – Contract Unit No. 2019-03
Street Reconstruction – Broad Street, Melissa Street, Grove Street, Lawndale Drive/Court, Greenwood Drive, Frederick Street and Library Parking Lot

The City of Menasha publicly opened bids on Wednesday, February 27, 2019 for Contract Unit No. 2019-03; Street Reconstruction – Various Locations; Broad Street – Racine Street to De Pere Street, Melissa Street – Airport Road to Grove Street, Grove Street – Airport Road to Woodland Drive, Lawndale Drive/Court, Greenwood Drive – Airport Road to North End, Frederick Street – West End to Tayco Street and Library Parking Lot.

The project consists of the following Street Reconstruction Work Efforts:

- Asphalt Pavement Pulverizing
- Unclassified Excavation
- Fine Grading & Compacting
- 4" Thick Asphaltic Concrete Pavement
- Utility Adjustments
- Work Area and/or Terrace Restoration
- Traffic Control, Erosion Control, Miscellaneous
- Pavement Marking Removal
- Epoxy Pavement Marking

Two bids were received as indicated on the attached Itemized Bid Tabulation.

Recommendation

After reviewing the bids for accuracy, staff recommends that Contract Unit 2019-03 be awarded to Northeast Asphalt, Inc. in the amount of \$393,347.33.

Itemized Bid Tabulation

City of Menasha Contract Unit No. 2019-03

Street Reconstruction - Broad Street, Melissa Street, Grove Street, Lawndale Drive/Court, Greenwood Drive, Frederick Street, Library Parking Lot

Item	Quantity	Description	Northeast Asphalt		MCC	
			Unit Price	Item Total	Unit Price	Item Total
		Base Bid				
1	20,962	Pavement / Base Pulverizing/SY	\$ 0.49	\$ 10,271.38	\$ 0.65	\$ 13,625.30
2	1,979	Unclassified Excavation/CY	\$ 11.55	\$ 22,857.45	\$ 10.20	\$ 20,185.80
3	21,424	Fine Grading and Compaction/SY	\$ 1.25	\$ 26,780.00	\$ 1.35	\$ 28,922.40
4	39	Utility Adjustment/EA	\$ 325.00	\$ 12,675.00	\$ 340.00	\$ 13,260.00
5	14	Water Valve Adjustment/EA	\$ 20.00	\$ 280.00	\$ 38.00	\$ 532.00
6	565	Sawcut/LF	\$ 2.00	\$ 1,130.00	\$ 2.15	\$ 1,214.75
7	2,795	Asphalt Binder Course Pavement/Ton	\$ 54.95	\$ 153,585.25	\$ 55.70	\$ 155,681.50
8	2,175	Asphalt Surface Course Pavement/Ton	\$ 63.80	\$ 138,765.00	\$ 64.98	\$ 141,331.50
9	4,073	4-Inch Solid, Yellow Epoxy Pavement Marking/LF	\$ 2.25	\$ 9,164.25	\$ 1.75	\$ 7,127.75
10	4	Symbol, Handicap (Yellow)/EA	\$ 200.00	\$ 800.00	\$ 95.00	\$ 380.00
11	1	Arrow, Type 2 (White)/EA	\$ 300.00	\$ 300.00	\$ 150.00	\$ 150.00
12	1	Word, "Only" (White)/EA	\$ 300.00	\$ 300.00	\$ 175.00	\$ 175.00
13	95	Stop Line, 18-Inch White Epoxy Pavement Marking/LF	\$ 10.00	\$ 950.00	\$ 8.05	\$ 764.75
14	47	Diagonal, 8-Inch 45° (Yellow)/LF	\$ 7.00	\$ 329.00	\$ 3.55	\$ 166.85
15	100	Remove Markings, 12-Inch/LF	\$ 4.50	\$ 450.00	\$ 5.25	\$ 525.00
16	1	Remove Arrow/EA	\$ 95.00	\$ 95.00	\$ 85.00	\$ 85.00
17	1	Remove Word "Only"/EA	\$ 95.00	\$ 95.00	\$ 110.00	\$ 110.00
18	1	Erosion Control/LS	\$ 1,950.00	\$ 1,950.00	\$ 1,650.00	\$ 1,650.00
19	1	Traffic Control/LS	\$ 3,625.00	\$ 3,625.00	\$ 6,525.00	\$ 6,525.00
20	1	Construction Mobile/Demobile; Project Coordination; all incidental utility and miscellaneous roadway work; and all other project work area restoration and clean-up to an equal and/or better preconstruction condition, as required and related to the overall Project/LS	\$ 8,945.00	\$ 8,945.00	\$ 6,150.00	\$ 6,150.00
Total Base Bid (Items 1 - 20)				\$ 393,347.33		\$ 398,562.60



Memorandum

Date: February 20, 2019

To: Common Council and Mayor Merkes

From: Joshua Radomski – Public Works Director JR

RE: Rear Yard Drainage Program

Background

The City of Menasha currently provides a 50% matching grant for eligible costs to residents who apply for help solving their personal property drainage issues through our Rear Yard Drainage Program. In addition to the 50% construction cost match, the City currently will survey the property, design the drainage system, find contractors, track down neighboring property owners who may be affected and pay the upfront construction costs, at no cost to the homeowner. This is a great program, however it has become cumbersome and time consuming for the Engineering Department to administer. A typical Rear Yard Drainage Program project requires between 4 and 8 hours of staff time. Complex issues require significantly more time. In addition, once all of the information is compiled and the design is completed, the residents who have complained of drainage issues will often back out citing cost concerns. This has happened on numerous occasions, resulting in the Engineering Department having spent several hours figuring out a solution, only to have the project be shelved.

The Engineering Department is making recommendations to improve the efficiency and budgeting for the Rear Yard Drainage Program, as well as having homeowners assume more responsibility for their project.

Recommended Program Steps

1. A property owner requests the City to investigate the drainage issue through the Rear Yard Drainage Program by filling out the attached application and submitting it along with a \$100 reimbursable fee towards the completion of the project. This request must be submitted by July 1 of the current year for construction the following year.
2. The Engineering Department will conduct survey work, engineering design and preliminary cost estimates for the project by October 1. This information will be conveyed to the property owner, who will then have the opportunity to decide whether to pursue bids on their project or not. The property owner will be responsible for getting signatures and buy-in from affected neighboring properties. If the property owner decides not to pursue the project at this point in the process, the

\$100 fee will be forfeited. If the neighboring affected properties refuse to sign the application, the \$100 fee will be reimbursed.

3. Funds will be budgeted in November during the annual budget process. By identifying projects ahead of time, we will be able to more accurately budget funds for this program.
4. The Engineering Department will solicit bids from contractors early in the following year to get the best prices and most contractor interest. Each project will be bid as an alternate item, so a contractor can bid on 1 or all of the projects, depending on their competency in certain areas.
5. Once bids are received, the City will contact each of the property owners to get final sign-off on the actual cost for the project. The property owner will have 10 business days to approve the construction amount. If the contract amount is greater than the original estimate, property owner will be required to get all neighboring property approvals for the increased costs. If the property owner does not approve the construction amount, the \$100 reimbursable fee will be forfeited. If no bids are received on a project, the property owner will determine whether to pursue the project by putting it on hold for another year. In the case of the property owner no longer wishing to proceed with the project due to the lack of bids, the \$100 reimbursable fee will be returned.
6. Construction will be completed during the spring/summer of the following year. Property owner(s) will be billed for 50% of the costs minus the \$100 reimbursable fee after the construction is complete.

Program Guidelines

The program will be available to those residents whose properties were constructed without an approved Grading and Erosion Control Plan for the subdivision and need to be improved to solve drainage issues. Properties within an approved Grading and Erosion Control Plan may be eligible if the property conforms to the approved drainage plan, but still has a drainage issue. This will be at the discretion of the Director of Public Works.

Eligible Costs are those related to the improvement of the drainage issues on the site, such as re-grading, underground pipe, inlet structures, site restoration and street repair. Costs that are not related to the improvement of the drainage issue, include but are not limited to, excessive landscaping, plantings, structure improvement or fencing, will not be eligible for matching funds.

Recommendation

The Department of Public Works recommends approving the proposed changes to the Rear Yard Drainage Program.



City of Menasha Rear Yard Drainage Grant Program Application

Date: _____

Name: _____

Address: _____

Telephone Number: _____

Email Address: _____

Description of Drainage Problem: _____

Grant Program Conditions

Eligibility: Any property owner who has a drainage problem on a parcel for which there exists no drainage plan or any property owner whose property conforms to the approved drainage plan, but still has a drainage problem. The existence of a "true" drainage problem shall be verified by the Director of Public Works or department representative. Re-grading of yards for any other reason will not be an eligible activity within this program. In most cases, it is expected that more than one property owner will be involved. In order to be eligible, a property owner may not be delinquent with any existing City invoices, and all properties shall be in compliance with all City ordinances and standards.

Fee: The applicant must pay a \$100 reimbursable fee. The \$100 fee will be carried forward to go towards construction costs of the project. If the property owner does not move forward with the project at any stage, the \$100 fee will be forfeited. If the project is deemed to not have a viable solution, neighboring properties do not agree to the project, or the project does not receive a construction bid, the \$100 fee will be reimbursed.

Funding: Eligible Costs are those related to the improvement of the drainage issues on the site, such as re-grading, underground pipe, inlet structures, site restoration and street repair. Costs that are not related to the improvement of the drainage issue, include but are not limited to, excessive landscaping, plantings, structure improvement or fencing, will not be eligible for matching funds.

Application Process: Any property owner who feels they have a drainage issue will be required to complete the Rear Yard Drainage Grant Application and submit the \$100 fee. Applications received before July 1 will be included in the following year's construction budget. Once the application and fee are received, the Engineering Department will conduct survey work, engineering design and provide a cost estimate to the property owner. This will be completed by October 1 of the year of application. The applicant will be responsible for getting all neighboring property owner signatures required for the project by October 15. Once the project is approved by the property owner, the City will include the project in our budgeting process. Provided that adequate funds are allocated to the Rear Yard Drainage Program, the project will be bid early in the following year.

Grants will be distributed on a first come, first served basis as funding allows. The application for a grant shall be signed by all involved property owners, including properties that will be crossed as part of the proposed drainage system.

Example Timelines

Application Received: June 15, 2019
Engineering Completed: October 1, 2019
Signatures Required: October 15, 2019
Construction Start: Spring 2020

Application Received: August 15, 2019
Engineering Completed: October 1, 2020
Signatures Required: October 15, 2020
Construction Start: Spring 2021

Project Schedule: The City will bid construction work for the Rear Yard Drainage Program early in the year following the application. Once bids are received, the applicant will have 10 business days to get final approval from all interested parties to construct the project. Construction will be scheduled in spring/summer the year after the initial application is due.

Agreement: We, the undersigned property owners, request participation in the City of Menasha Rear Yard Drainage Grant Program. In consideration of the construction of said improvement, we hereby admit to the levying of charges against our premises, for such improvement.

We hereby agree and admit, that the benefit to our properties from the construction of such improvement will be charged out, based on the listed percentages for the property owners 50% cost share, for all undersigned property owners.

We further agree, that we will comply with all Grant Program conditions, as stated on this application and accept all responsibility of proposed drainage system, once completed and in the future. We also agree to notify perspective buyers of our properties that any drainage system installed is a private system and future maintenance or liability is not the responsibility of the City of Menasha.

<u>Street Address</u>	<u>Signature of Owner(s)</u>	<u>Date</u>	<u>Percent of 50% Cost Share</u>



**SUMMARY OF TENTATIVE AGREEMENT
BETWEEN THE CITY OF MENASHA AND
WPPA/LEER LOCAL 602**

February 25, 2019

- 1. Article IV (A) Wages:**
2019: 2% wage increase effective 4/7/2019, 1% wage increase effective 10/6/2019
2020: 3% wage increase effective 12/29/2019
(Wage schedule listed in Exhibit 1)
- 2. Article IV (B)(4) Assignments:** Removing the \$200 paid annually to officers engaged in the duties of CRT and Evidence Technician and adding language to pay certified Wisconsin Tactical Instructors \$200 annually.
- 3. Article IV (E) Vest Incentive:** The current language which pays 1% to officers who certify they have worn their body armor will be removed. In its place, a voluntary physical fitness incentive will be created. Officers who choose to participate in this incentive will be paid \$1,400 upon successful completion of the testing. Officers who have achieved full employment status prior to 1/1/2019 will have the option to elect not to participate in the program and if they certify they have worn their body armor during the year will be paid \$500. (Full language attached in Exhibit 2)
- 4. Article IV (F) Health Insurance:**
2019: 8% of the health insurance premium
2020: 10% of the health insurance premium
- 5. Article V (A)(2) Compensatory Time:** The maximum amount of time which can be booked increases from 50 to 150 hours, with an annual carry over cap of 50 hours.
- 6. Article VI (A) Fair Share:** This section has been removed in its entirety and a new section "Dues Deduction" has been created. (Full language in Exhibit 3)

SUMMARY OF TENTATIVE AGREEMENT
BETWEEN THE CITY OF MENASHA AND
WPPA/LEER LOCAL 602

Page 2

7. **Article VII Grievance Procedure:** The timeframes throughout the process have been changed to ten (10) days in each of the steps.
8. **Article VII Arbitration:** The timeframe has been changed from five (5) days to ten (10) days.
9. **Article XV Term of the Agreement:** The agreement shall be in effect from January 1, 2019 – December 31, 2020.

Accepted this ____ day of February 2019.

City of Menasha

WPPA/LEER Local 602

(Name)

(Name)

EXHIBIT 1 **Pay Schedule**

	<u>Step</u>	Monthly Pay +2% Effective <u>04/07/2019</u>
Patrol Officers	1	\$4,313
	2	\$4,514
	3	\$4,968
	4	\$5,461
	5	\$5,963
	6	\$6,130
	OIC	\$6,283

	<u>Step</u>	Monthly Pay 1% Effective <u>10/06/2019</u>
Patrol Officers	1	\$4,356
	2	\$4,559
	3	\$5,018
	4	\$5,516
	5	\$6,023
	6	\$6,191
	OIC	\$6,346

	<u>Step</u>	Monthly Pay 3% Effective <u>12/29/2019</u>
Patrol Officers	1	\$4,487
	2	\$4,696
	3	\$5,169
	4	\$5,681
	5	\$6,204
	6	\$6,377
	OIC	\$6,536

EXHIBIT 2

Physical Fitness Incentive

- a. All Officers have the opportunity to participate in a physical fitness incentive program. The testing will include the most current State of Wisconsin exit level for the Recruit Academy in the areas of Pushups; Sit ups; and the one-and-a-half-mile run.
- b. Officers who desire to participate in this program must indicate their willingness to participate to the Chief of Police or designee in writing no later than January 31, of each year.
- c. Testing will take place in September of each year and all officer participating shall be considered on duty.
- d. The run course will be held on an outside track no smaller than 400meters.
- e. Officer must meet the minimum requirement for each of the three events; pushups, sit ups, mile and a half run in order to receive a lump sum payment of one thousand four hundred dollars (\$1,400.00), paid on the first pay check in December. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.
- f. Should an officer fail to meet the minimum requirement in any area, they shall have the ability to retest prior to November 30, at a date and time set by the Chief or his designee. The officer must complete all three events, pushups, sit ups, and mile and a half run, meeting the minimum requirement in each to qualify for the lump sum payment of \$1,400.00. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.
- g. Should an officer fail to meet the minimum requirement in any/all area(s) there shall be no discipline to such officer.
- h. Any officer on workman's compensation and unable to perform the physical fitness testing due to workman's compensation restrictions shall be allowed to test as soon as they are physically capable; this same testing shall be allowed to those employees with non-work-related medical conditions which made them unable to perform the physical fitness testing.
- i. Officer who have achieved full employment status prior to 1/1/2019 may elect to not participate in this program, and instead certify by November 1st of each year that they have worn their approved body armor over the past year. Officers who elect and certify this option will receive a \$500.00 payment on the first pay check in December of that year. This sum shall not be added to base wages, nor shall it be included when calculating the hourly rate for purposes of overtime, or the payout of any benefits at termination of employment.

- j. Those officers assigned to plain clothes duty shall be required to wear the body armor for all appropriate duties. The Chief of Police or his/her designee may grant exceptions to this requirement.

EXHIBIT 3

Dues Deduction

1. The Employer agrees to deduct monthly dues in the amount certified by the WPPA/LEER from the pay of employees who individually sign a dues deduction authorization form provided by the Employer where the Employee is knowingly and affirmatively consenting to the deduction of dues from the employee's paycheck, including any Local Association dues which the employee has authorized to be deducted in conjunction with the WPPA/LEER dues.
2. It shall be the employee's responsibility to sign the dues deduction authorization form and provide the signed form to the Employer and Association no less than 30 days prior to the date in which dues deductions are to commence.
3. The Employer shall deduct the combined dues amount each month for each employee requesting such deduction, upon receipt of such form and shall remit the total of such deductions, with a list of employees from whom such sums have been deducted, to the WPPA/LEER or Local Association if applicable, in one lump sum not later than the last day of each month.
4. Authorization of dues deduction by a member may be revoked upon notice in writing to the Employer, WPPA or to the Local Association and with the understanding that the deduction will cease as reasonably as practical after receipt of written notice of revocation.
5. No employee shall be required to join the Association, but membership in the Association shall be made available to all employees in the bargaining unit who apply consistently with the either the WPPA or local Association Constitution and Bylaws.
6. The Local agrees to notify the WPPA, Madison Office in writing of the name of any new hire into the bargaining unit. No employee shall be denied membership because of race, creed, color, sex or other legally protected class status.
7. It is expressly understood and agreed that WPPA/LEER will refund to the employer or the employee involved any dues erroneously deducted by the employer and paid to WPPA/LEER and/or the Local Association. WPPA/LEER shall indemnify and hold the employer harmless against any and all third party claims, demands, suits, order, judgments or any other forms of liability against or incurred by the Employer, including all costs of defense and attorney's fees, which may arise out of action taken or not taken by the Employer's compliance with this Article. Provided that the defense of any such claims, demands, suits or other forms of liability shall be interpreted to preclude the Employer from participating in any legal proceedings challenging the application or interpretation of the Article through representatives of its own choosing and at its own expense

City of Menasha Disbursements

Weekly Accounts Payable

3/4/19-3/14/19
Checks # 64109-64247

\$ 386,926.01

Bi-Weekly Payroll

3/14/19

\$ 197,586.36

Additional Regular Cycle Accounts Payables -Paid Electronically

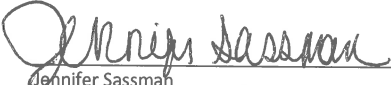
Transfer to HRA Checking	3/1/19	\$ 30.00
Nationwide Deferred Compensation	3/1/19	\$ 8,086.00
State Tax Withholding	3/1/19	\$ 13,406.71
State Sales Tax	3/1/19	\$ 146.42
Wisconsin Deferred Compensation	3/4/19	\$ 4,623.25
Delta Dental	3/6/19	\$ 4,105.56
Federal Tax Withholding	3/6/19	\$ 67,640.06
World Pay Fees-FFM	3/8/19	\$ 7.50
Online Payment Fees	3/12/19	\$ 30.45
Delta Dental	3/13/19	\$ 2,587.20
Community First Credit Union-Payroll Deductions	3/14/19	\$ 2,596.00
Employee Benefits-Flex Spending	3/14/19	\$ 5,048.48

\$ 108,307.63

Total

\$ 692,820.00

Items included on this list have been properly audited and certified by the City Comptroller and are being presented for approval by the Common Council.


Jennifer Sassman
Finance Manager

3/14/19
Date

Notes:

- Medical Expense Reimbursement Trust-Retirement Pay Out
- United Way-Employee Donations
- Wisconsin Support Collections-Child/Spousal Support
- WI SCTF-Child Support Annual Fee
- Gaps in check numbers indicate that more invoices being paid than fit on one check stub
(The last check stub used is the check number that will appear on the check register)

AP Check Register

Check Date: 3/4/2019

Date: 3/4/2019

Vendor Name	Check Number	Check Date	Invoice Number	Account Number	Amount	Description
BAKER & TAYLOR INC	64109	3/4/2019	2034245588	100-0601-551.30-14	272.75	Library Materials
		3/4/2019	2034246076	100-0601-551.30-14	79.20	Library Materials
		3/4/2019	2034270437	100-0601-551.30-14	56.22	Library Materials
		3/4/2019	2034270780	100-0601-551.30-14	129.76	Library Materials
		3/4/2019	2034279550	100-0601-551.30-14	3.14	Library Materials
		3/4/2019	2034292121	100-0601-551.30-14	131.06	Library Materials
		3/4/2019	2034293319	100-0601-551.30-14	45.32	Library Materials
		3/4/2019	2034294919	100-0601-551.30-14	768.79	Library Materials
		3/4/2019	2034300272	100-0601-551.30-14	1,037.55	Library Materials
		3/4/2019	H25121450	100-0601-551.30-14	1,344.96	Library Materials
		3/4/2019	H25181670	100-0601-551.30-14	75.57	Library Materials
		3/4/2019	H25225270	100-0601-551.30-14	33.58	Library Materials
		3/4/2019	H25744830	100-0601-551.30-14	405.18	Library Materials
		3/4/2019	T98250850	100-0601-551.30-14	108.65	Library Materials
		3/4/2019	T98649280	100-0601-551.30-14	17.99	Library Materials
		Total for check: 64109				4,509.72
JOE BONGERS	64110	3/4/2019	BONGERS	100-0601-551.33-01	18.70	Reimbursement
				100-0601-551.33-04	2.00	Reimbursement
				Total for check: 64110		20.70
CENGAGE LEARNING - GALE	64111	3/4/2019	65836854	100-0601-551.30-14	31.19	Library Materials
		3/4/2019	65897449	100-0601-551.30-14	47.20	Library Materials
		3/4/2019	66412106	100-0601-551.30-14	38.92	Library Materials
		Total for check: 64111		117.31		
CENTER POINT LARGE PRINT	64112	3/4/2019	1660812	100-0601-551.30-14	231.30	Library Materials
		3/4/2019	1664432	100-0601-551.30-14	42.54	Library Materials
		Total for check: 64112		273.84		

AP Check Register
Check Date: 3/4/2019

Date: 3/4/2019

<i>Vendor Name</i>	<i>Check Number</i>	<i>Check Date</i>	<i>Invoice Number</i>	<i>Account Number</i>	<i>Amount</i>	<i>Description</i>
DAVID DANIELS	64113	3/4/2019	DANIELS	100-0601-551.20-05	461.00	Colossal Fossils
			Total for check: 64113		461.00	
DEMCO	64114	3/4/2019	6541208	100-0601-551.30-18	209.32	Library Supplies
		3/4/2019	6551090	100-0601-551.30-18	241.67	Library Supplies
			Total for check: 64114		450.99	
EGGERT, JOYANN	64115	3/4/2019	EGGERT	100-0601-551.30-14	45.00	Material Return
			Total for check: 64115		45.00	
TOM HANNAH	64116	3/4/2019	HANNAH	100-0601-551.20-05	200.00	Irish Music Performance
			Total for check: 64116		200.00	
STEVE HEINER	64117	3/4/2019	HEINER	100-0601-551.20-05	150.00	Performance
			Total for check: 64117		150.00	
KITZ & PFEIL INC	64118	3/4/2019	17470	100-0601-551.30-13	41.27	Batteries
			Total for check: 64118		41.27	
KRUEGER, TANA	64119	3/4/2019	KRUEGER	100-0601-551.30-14	27.00	Materials Return
			Total for check: 64119		27.00	
VICKI LENZ	64120	3/4/2019	LENZ	100-0601-551.30-16	11.67	Reimbursement
					23.94	Reimbursement
			Total for check: 64120		35.61	

AP Check Register

Check Date: 3/4/2019

Date: 3/4/2019

<i>Vendor Name</i>	<i>Check Number</i>	<i>Check Date</i>	<i>Invoice Number</i>	<i>Account Number</i>	<i>Amount</i>	<i>Description</i>
LIBRARY SUPPLY SOLUTIONS	64121	3/4/2019	21086-9	100-0601-551.30-18	1,032.00	CD/DVD Overlays
			Total for check: 64121		1,032.00	
RON LINDBERG	64122	3/4/2019	LINDBERG	100-0601-551.20-05	300.00	Performer
			Total for check: 64122		300.00	
MANDERFIELD'S HOME BAKERY	64123	3/4/2019	516535	100-0601-551.30-16	15.00	Cookies
			Total for check: 64123		15.00	
MCGUIRE, JENNIFER	64124	3/4/2019	MCGUIRE	100-0601-551.30-14	56.10	Materials Return
			Total for check: 64124		56.10	
MIDWEST TAPE	64125	3/4/2019	096825594	100-0601-551.30-14	156.19	Library Materials
		3/4/2019	096825667	100-0601-551.30-14	59.99	Library Materials
		3/4/2019	096856742	100-0601-551.30-14	4.49	Library Materials
		3/4/2019	096856744	100-0601-551.30-14	71.20	Library Materials
		3/4/2019	096916155	100-0601-551.30-14	63.73	Library Materials
			Total for check: 64125		355.60	
MINITEX	64126	3/4/2019	97497	100-0601-551.30-18	575.00	Library Materials
			Total for check: 64126		575.00	
MBM	64127	3/4/2019	IN362576	100-0601-551.24-04	120.04	Contract
		3/4/2019	IN364341	100-0601-551.24-04	127.45	Contract
			Total for check: 64127		247.49	
ROOSTER DREAMS VISUAL ARTS	64128	3/4/2019	ROOSTER DREAMS	100-0601-551.20-05	220.00	Art Display
			Total for check: 64128		220.00	

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SERVICEMASTER BUILDING MAINTENANCE	64129	3/4/2019	29318	100-0601-551.20-01	1,635.00	Janitorial Contract
Total for check: 64129					1,635.00	
STAPLES BUSINESS ADVANTAGE	64130	3/4/2019	80531550536	100-0601-551.30-10	111.01	Office Supplies
Total for check: 64130					111.01	
SYNCB/AMAZON	64132	3/4/2019	438738574889	100-0601-551.30-10	45.01	Supplies
				100-0601-551.30-14	9.49	Library Materials
		3/4/2019	453445485948	100-0601-551.30-14	(1.67)	Library Materials CREDIT
		3/4/2019	458685384666	100-0601-551.30-14	74.08	Library Materials
		3/4/2019	465684739897	100-0601-551.30-10	30.89	Supplies
				100-0601-551.30-14	23.76	Library Materials
		3/4/2019	468757547555	100-0601-551.30-14	47.45	Library Materials
		3/4/2019	476954483593	100-0601-551.30-14	468.69	Library Materials
		3/4/2019	493698736796	100-0601-551.30-14	159.98	Library Materials
		3/4/2019	583893367833	100-0601-551.30-14	(0.37)	Library Materials CREDIT
		3/4/2019	667645356984	100-0601-551.30-14	94.90	Library Materials
		3/4/2019	677756667764	100-0601-551.30-14	32.00	Library Materials
		3/4/2019	683938779469	100-0601-551.30-14	21.95	Library Materials
		3/4/2019	7388863796795	100-0601-551.30-14	(74.00)	Library Materials CREDIT
		3/4/2019	749863943663	100-0601-551.30-14	24.95	Library Materials
		3/4/2019	764659457664	100-0601-551.30-14	(0.11)	Library Materials CREDIT
		3/4/2019	764763467847	100-0601-551.30-14	15.00	Library Materials
		3/4/2019	777389777839	100-0601-551.30-14	116.00	Library Materials
Total for check: 64132					1,088.00	
UNIQUE MANAGEMENT SERVICES INC	64133	3/4/2019	495846	100-0000-441.19-00	259.55	Collection Agency Fees
Total for check: 64133					259.55	

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US BANK EQUIPMENT FINANCE	64134	3/4/2019	378081384	100-0601-551.24-04	513.46	Contract 2/10/19-3/10/19
			Total for check: 64134		513.46	
WINNEFOX AUTOMATED LIBRARY SYSTEM	64135	3/4/2019	WALS1087	100-0601-551.30-11	83.07	Dec 2018 Unique
			Total for check: 64135		83.07	
					12,823.72	

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ACCURATE	64136	3/7/2019	1901624	731-1022-541.30-18	49.36	Step Drill	
		3/7/2019	1901668	731-1022-541.38-04	139.16	Brake Rotor/Pads	
		3/7/2019	1901822	731-1022-541.30-18	306.80	Supplies	
		3/7/2019	1901888	100-1016-543.30-18	17.48	Shears	
	Total for check: 64136				512.80		
ALL-LIFT SYSTEMS INC	64137	3/7/2019	0401445-IN	731-1022-541.21-06	371.00	Annual Inspection	
		Total for check: 64137				371.00	
CITY OF APPLETON	64138	3/7/2019	1530	100-0918-531.21-06	500.00	Emergency Planning	January
		3/7/2019	1581	100-0918-531.21-06	500.00	Emergency Planning	February
		3/7/2019	1611	470-1003-541.82-02	1,243.74	Street Repair-Valley Rd	
		3/7/2019	1615	100-1012-541.22-03	251.71	Street Lighting Costs	11/22/17-11/7/18
	Total for check: 64138				2,495.45		
ASSOCIATED APPRAISAL CONSULTANTS	64139	3/7/2019	141131	100-0402-513.21-09	5,000.00	March Assess SVCS	
					61.66	Internet Posting Parcels	
				100-0402-513.30-11	8.40	Postage	
Total for check: 64139				5,070.06			
AYRES ASSOCIATES INC	64140	3/7/2019	179022	470-0703-553.82-02	5,357.60	Pro. Svc. thru 1/26/19	Jefferson Park
		3/7/2019	179392	100-0703-553.21-02	4,793.40	Pro. Svc. thru 2/23/19	Jefferson Park
	Total for check: 64140				10,151.00		
BECK ELECTRIC INC	64141	3/7/2019	F2719-COM-ED-1	100-1008-541.24-04	290.63	Traffic Light-3rd St	
						Total for check: 64141	
BERGSTROM	64142	3/7/2019	54077	731-1022-541.38-03	22.31	Switch Asy	

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BERGSTROM...	64142...	3/7/2019	54126	731-1022-541.38-04	177.13	Belt/Tensioner
			Total for check: 64142		199.44	
BMI	64143	3/7/2019	2392568	100-0702-552.32-01	319.76	License
			Total for check: 64143		319.76	
CASPERS TRUCK EQUIPMENT INC	64144	3/7/2019	0035359-IN	731-1022-541.38-03	121.44	Clutch
		3/7/2019	0035431-IN	731-1022-541.38-04	15.75	Motor Relay Kit
			Total for check: 64144		137.19	
CNA SURETY DIRECT BILL	64145	3/7/2019	CNA SURETY	100-0801-521.32-01	30.00	Notary Commission Chuck Sahr
			Total for check: 64145		30.00	
CORRE INC	64146	3/7/2019	5499	485-0703-553.21-02	3,185.00	Province Trail Services 1/1/19-1/31/19
			Total for check: 64146		3,185.00	
COX, GERALD	64147	3/7/2019	COX	100-1006-541.30-18	50.00	Mailbox Damage 1419 Stadler Ct
			Total for check: 64147		50.00	
KORTNEY DAHM	64148	3/7/2019	DAHM	100-0903-531.33-01	26.18	Reimbursement
			Total for check: 64148		26.18	
ECS MIDWEST LLC	64149	3/7/2019	712720	100-0703-553.21-02	1,135.00	Engineering
			Total for check: 64149		1,135.00	
JFTCO INC	64150	3/7/2019	C185189	731-1022-541.38-03	731.91	Cover/Strip-Wear/Plate
		3/7/2019	C187319	731-1022-541.38-03	225.30	Locknut/Screw/Washer

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JFTCO INC...	64150...	3/7/2019	C189311	731-1022-541.38-03	523.68	Strip Wear
			Total for check: 64150		1,480.89	
FACTORY MOTOR PARTS CO	64151	3/7/2019	18-1749965	731-1022-541.38-03	(16.00)	Credit
		3/7/2019	18-1750002	731-1022-541.38-03	442.31	Filters
		3/7/2019	18-1750201	731-1022-541.38-03	15.26	Filters
		3/7/2019	18-1750611	731-1022-541.38-03	(469.86)	Credit
		3/7/2019	18-Z16421	731-1022-541.38-03	(171.75)	Credit
		3/7/2019	48-579533	731-1022-541.38-03	698.68	Parts
		3/7/2019	50-2289233	731-1022-541.38-03	10.22	Filter
			Total for check: 64151		508.86	
FERGUSON ENTERPRISES #1550	64152	3/7/2019	4871551	470-0703-553.82-01	2,637.76	Parts/Smith Park
		3/7/2019	4894121	100-0801-521.30-18	151.47	Pipe
		3/7/2019	4920316	470-0703-553.82-02	566.09	Parts
			Total for check: 64152		3,355.32	
FOX CROSSING UTILITIES	64153	3/7/2019	127-65515	100-0703-553.22-06	27.57	Stormwater 10/15/18-1/15/19
			Total for check: 64153		27.57	
FOX CROSSING, VILLAGE OF	64154	3/7/2019	TAX BILL CHGS	100-0000-201.06-00	25,971.22	Delinquent Charges Tax Bill
			Total for check: 64154		25,971.22	
FOX VALLEY TECHNICAL COLLEGE	64155	3/7/2019	TPB0000506043	100-0801-521.34-02	1,106.00	Trainings
			Total for check: 64155		1,106.00	
GRAINGER INC	64156	3/7/2019	9071102132	100-0801-521.24-03	244.65	Thermostat
			Total for check: 64156		244.65	

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GREEN BAY PRESSURE SYSTEMS LLC	64157	3/7/2019	12372	731-1022-541.30-18	385.00	Truck Shine
			Total for check: 64157		385.00	
GUSTMAN CHEVROLET SALES INC	64158	3/7/2019	49166	731-1022-541.38-03	14.84	Resistor
		3/7/2019	49186	731-1022-541.38-03	144.53	Thermos/Glow
			Total for check: 64158		159.37	
HEYRMAN& GREEN BAY BLUE	64159	3/7/2019	949555	100-0801-521.29-01	281.00	Abandoned Vehicle Sticker
			Total for check: 64159		281.00	
HOME DEPOT CREDIT SERVICES	64160	3/7/2019	2114223	731-1022-541.30-18	37.90	Park Tools
		3/7/2019	6082916	100-1008-541.30-18	19.97	Marking Wand
			Total for check: 64160		57.87	
KRISTINE JACOBSEN	64161	3/7/2019	JACOBSEN	100-0903-531.33-01	123.20	Reimbursement
				100-0903-531.33-03	15.98	Reimbursement
			Total for check: 64161		139.18	
JX ENTERPRISES INC	64162	3/7/2019	2427304P	731-1022-541.38-03	188.29	Pipe
		3/7/2019	2427377P	731-1022-541.38-03	(82.99)	Strap CREDIT
			Total for check: 64162		105.30	
CHAD KOLASINSKI	64163	3/7/2019	KOLASINSKI	100-1001-514.34-02	80.55	C.E.Training
				601-1020-543.34-02	183.60	Plumber License Renewal
				731-1022-541.34-02	80.55	C.E.Training
			Total for check: 64163		344.70	

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KUNDINGER INC	64164	3/7/2019	50526987	731-1022-541.38-03	35.93	Elbow
			Total for check: 64164		35.93	
LAKE PARK VILLAS HOMEOWNERS ASSN	64165	3/7/2019	LAKE PARK VILLA	501-0304-562.32-01	759.38	Common Area Expenses Feb
					438.17	Common Area Expenses Jan
			Total for check: 64165		1,197.55	
LEVENHAGEN OIL CORPORATION	64166	3/7/2019	067431A-IN	100-0000-131.00-00	19,149.79	Fuel
			Total for check: 64166		19,149.79	
M-B COMPANIES INC	64167	3/7/2019	235166	731-1022-541.38-03	280.23	Cylinder
			Total for check: 64167		280.23	
MATTHEWS TIRE & SERVICE CENTER	64168	3/7/2019	69154	731-1022-541.38-02	866.80	Tires
		3/7/2019	69162	731-1022-541.38-02	133.13	Tires
		3/7/2019	69167	731-1022-541.38-02	(133.13)	Credit
		3/7/2019	69168	731-1022-541.38-02	64.99	Tires
			Total for check: 64168		931.79	
MENARDS-APPLETON EAST	64169	3/7/2019	55256	100-1001-514.24-03	11.00	Shelf Material
		3/7/2019	55304	100-1008-541.30-18	86.42	Extension/Adapter/Impact
		3/7/2019	55557	470-0703-553.82-01	56.46	Studs/Smith Park
			Total for check: 64169		153.88	
MENASHA NEENAH MUNICIPAL COURT	64170	3/7/2019	MNMC	100-0000-201.03-00	174.00	BOND Report #19-0022
					237.00	BOND Report #19-0021
					174.00	BOND Report #18-0318
			Total for check: 64170		585.00	
MENASHA UTILITIES	64171	3/7/2019	MU	100-0000-123.00-00	8.57	Electric 1/7/19-2/8/19

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MENASHA UTILITIES...	64171...	3/7/2019...	MU...	100-0703-553.22-03	194.02	Electric	1/7/19-2/8/19
				100-0703-553.22-05	218.74	Water	1/7/19-2/8/19
				100-0703-553.22-06	184.81	Storm	1/7/19-2/8/19
				100-1008-541.22-03	207.10	Electric	1/7/19-2/8/19
				100-1012-541.22-03	13.43	Electric	1/7/19-2/8/19
				601-1020-543.22-03	52.36	Electric	1/7/19-2/8/19
				731-1022-541.22-03	56.27	Electric	1/7/19-2/8/19
				3/7/2019	TAXBILLCHGS	100-0000-201.05-00	57,647.56
	Total for check: 64171				58,582.86		
	MORTON SAFETY	64172	3/7/2019	191681-00	731-1022-541.30-18	98.64	Eyewear
Total for check: 64172				98.64			
N&M AUTO SUPPLY	64173	3/7/2019	666307	731-1022-541.38-03	45.94	Belt	
			666451	731-1022-541.38-03	11.42	Switch	
			667166	731-1022-541.38-03	61.33	Fuse Holder/Solenoid	
			667781	731-1022-541.38-03	12.32	Boxed Capsules	
			668239	731-1022-541.38-03	20.97	Motor Treatment Foam	
			668484	731-1022-541.38-03	10.61	Weather Cap	
			Total for check: 64173				162.59
NEENAH-MENASHA SEWERAGE COMMISSION	64174	3/7/2019	2019-034	601-1021-543.25-01	47,586.92	March Wastewater	
		3/7/2019	2019-040	601-1021-543.25-01	14,583.00	March Interest & Debt	
		Total for check: 64174				62,169.92	
NORTHERN PIPE EQUIPMENT INC	64175	3/7/2019	1138	601-1020-543.21-02	22,829.40	2018 Annual Sewer	Televising Program
Total for check: 64175				22,829.40			

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RAY O'HERRON CO INC	64176	3/7/2019	1905696	100-0801-521.30-15	352.95	Supersock Beanbag
			Total for check: 64176		352.95	
PACKER CITY INTL TRUCKS INC	64177	3/7/2019	X103069627:01	731-1022-541.38-03	152.56	Filters/Fluid
		3/7/2019	X103069627:02	731-1022-541.38-03	26.42	Filter
		3/7/2019	X103070097:01	731-1022-541.38-03	9.82	Filters
		3/7/2019	X103070097:02	731-1022-541.38-03	26.42	Filter
		3/7/2019	X103070517:01	731-1022-541.38-03	78.20	Filters
		3/7/2019	X103070686:01	731-1022-541.38-03	45.66	Filter
			Total for check: 64177		339.08	
LINDA PALMBACH	64178	3/7/2019	PALMBACH	100-0903-531.33-01	22.99	Reimbursement
			Total for check: 64178		22.99	
MEGHAN PAULY	64179	3/7/2019	PAULY	100-0903-531.33-01	27.74	Reimbursement
				100-0905-531.33-01	7.70	Reimbursement
			Total for check: 64179		35.44	
PLYMOUTH LUBRICANTS	64180	3/7/2019	6170492	731-1022-541.38-03	800.41	Pro Performance
			Total for check: 64180		800.41	
LIZ ROSIN	64181	3/7/2019	ROSIN	100-0903-531.33-01	17.49	Reimbursement
			Total for check: 64181		17.49	
HENRY SCHEIN INC	64182	3/7/2019	61893706	100-0916-531.30-18	206.39	Backorder Dental Brush
			Total for check: 64182		206.39	

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SECURIAN FINANCIAL GROUP INC	64183	3/7/2019	POLICY 002832L	100-0000-204.07-00	2,916.72	April Life Insurance
			Total for check: 64183		2,916.72	
SPEEDY METALS LLC	64184	3/7/2019	4774624-AP	100-0801-521.24-03	11.29	Steel Tube
			Total for check: 64184		11.29	
SPORTS GRAPHICS	64185	3/7/2019	0219-029	824-0807-521.30-15	133.95	PD K-9 Sweatshirts
			Total for check: 64185		133.95	
SUPERION LLC	64186	3/7/2019	227248	743-0403-513.24-04	2,806.00	Financial Software-March
			Total for check: 64186		2,806.00	
SWANK MOTION PICTURES INC	64187	3/7/2019	RG 1596743	100-0702-552.20-05	435.00	Movies
				826-0702-552.30-18	870.00	Movies
			Total for check: 64187		1,305.00	
TAPCO	64188	3/7/2019	I627992	100-1008-541.30-18	1,857.00	Film/Sheeting
		3/7/2019	I628572	100-1008-541.30-18	840.00	Sheeting
			Total for check: 64188		2,697.00	
TRUCK EQUIPMENT INC	64189	3/7/2019	834028-00	731-1022-541.38-03	226.32	Screws/Spinners/Motors
		3/7/2019	834028-01	731-1022-541.38-03	80.37	Spinner
		3/7/2019	836855-00	731-1022-541.38-03	248.47	Spinner Motor
			Total for check: 64189		555.16	
UNIFIRST CORPORATION	64190	3/7/2019	097 0277512	731-1022-541.20-01	291.65	Cleaning Service
			Total for check: 64190		291.65	
UNIFORM SHOPPE	64191	3/7/2019	285203	100-0801-521.19-03	177.95	Jacket

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UNIFORM SHOPPE...	64191...	3/7/2019	285313	100-0801-521.19-03	52.95	Emblems on Jacket
			Total for check: 64191		230.90	
WE ENERGIES	64192	3/7/2019	0000-310-958	100-0000-123.00-00	758.39	Memorial Building 1/13/19-2/11/19
				100-0601-551.22-04	2,303.01	Library 1/13/19-2/11/19
				100-0703-553.22-04	615.04	Parks 1/13/19-2/11/19
				100-0704-552.22-04	65.64	Pool 1/13/19-2/11/19
				100-0801-521.22-04	1,047.30	PD 1/13/19-2/11/19
				100-0920-531.22-04	450.82	Senior Center 1/13/19-2/11/19
				100-1001-514.22-04	934.07	City Hall 1/13/19-2/11/19
				207-0707-552.22-04	58.94	Marina 1/13/19-2/11/19
				731-1022-541.22-04	3,777.47	Garage 1/13/19-2/11/19
		3/7/2019	3818-650-595	100-1012-541.22-03	1,042.02	Street Lights 1/21 - 2/20
		3/7/2019	4410-797-129	100-0703-553.22-03	57.72	Electric-HWY 10 & 114 12/27/18-1/29/19
		3/7/2019	7097-295-547	100-0703-553.22-03	15.90	Electric- North St 1/7/19-2/5/19
		3/7/2019	8247-844-693	100-0703-553.22-03	9.57	Gas-2170 Plank Rd 1/14/19-2/12/19
			Total for check: 64192		11,135.89	
WIL-KIL PEST CONTROL	64193	3/7/2019	3573309	731-1022-541.20-07	72.25	Commercial Contract
			Total for check: 64193		72.25	
WINNEBAGO COUNTY CLERK OF COURTS	64194	3/7/2019	WINNCOCLERK	100-0000-201.03-00	435.00	BOND Report #19-0558
					285.00	BOND Report #19-0516
			Total for check: 64194		720.00	
WINNEBAGO COUNTY TREASURER	64195	3/7/2019	14033	266-1029-543.25-01	1,671.00	Freon Appliances Microwaves
		3/7/2019	14079	100-0805-521.25-01	102.92	Stay-January
			Total for check: 64195		1,773.92	

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<i>Vendor Name</i>	<i>Check Number</i>	<i>Check Date</i>	<i>Invoice Number</i>	<i>Account Number</i>	<i>Amount</i>	<i>Description</i>	
WISCONSIN DEPT OF FINANCIAL	64196	3/7/2019	WPFI	100-0801-521.32-01	20.00	Notary Commission	Chuck Sahr
Total for check: 64196					20.00		
WISCONSIN DEPT OF JUSTICE	64197	3/7/2019	ACCT #G3228	100-0601-551.21-06	14.00	Transactions	2/1/19-2/28/19
Total for check: 64197					14.00		
WLECHA	64198	3/7/2019	WLECHA	100-0801-521.32-01	35.00	Canine Handler Membership	
Total for check: 64198					35.00		
ZANDER PRESS INC	64199	3/7/2019	88794	100-0801-521.29-01	296.00	Envelopes	
Total for check: 64199					296.00		
					251,107.50		

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Vendor Name	Check Number	Check Date	Invoice Number	Account Number	Amount	Description	
ACCURATE	64200	3/14/2019	1900048	731-1022-541.38-03	121.80	Trim Panel/Turbo FI	
		3/14/2019	1901188	731-1022-541.30-15	33.75	Sockets	
		3/14/2019	1902107	731-1022-541.30-18	72.25	Lock/Heat Shrink	
		3/14/2019	1902176	731-1022-541.38-03	319.72	Hose/Elbow/Swivel	
		Total for check: 64200				547.52	
APPLETON POLICE DEPARTMENT	64201	3/14/2019	APPLETON PD	100-0000-201.03-00	200.00	BOND	Report # 19-0631
AUTOMATED COMFORT CONTROLS	64202	3/14/2019	23330	100-0601-551.24-03	3,096.77	Compressor B Service	Library
		3/14/2019	23371	100-0801-521.24-03	449.40	Service	
		3/14/2019	23372	100-0601-551.24-03	649.25	Service on Boiler	
		Total for check: 64202				4,195.42	
BATTERIES PLUS LLC	64203	3/14/2019	P11747774	100-0801-521.24-03	83.70	6V Lead	
COMPLETE OFFICE OF WISCONSIN	64204	3/14/2019	42885	100-0801-521.30-10	29.60	Office Supplies	
DAVEL ENGINEERING & ENVIRONMENT	64205	3/14/2019	3176105	100-0304-562.21-08	30.00	CSM Recording	140 Main
UNEMPLOYMENT INSURANCE	64206	3/14/2019	692132-000-5	100-0703-553.15-09	1,480.00	Befefit Charges	2/1/19-2/28/19
				100-1019-552.15-09	739.72	Befefit Charges	2/1/19-2/28/19
				Total for check: 64206			

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Vendor Name	Check Number	Check Date	Invoice Number	Account Number	Amount	Description
DTN LLC	64207	3/14/2019	5499421	743-0403-513.24-04	1,800.00	Online Weather Service 3/20/19-3/19/20
Total for check: 64207					1,800.00	
EARTHLINK BUSINESS	64208	3/14/2019	8026082	100-0101-511.22-01	11.98	Mayor Phone 3/2/19-4/1/19
				100-0201-512.22-01	7.59	Attorney Phone 3/2/19-4/1/19
				100-0202-512.22-01	19.19	Personnel Phone 3/2/19-4/1/19
				100-0203-512.22-01	15.78	Clerk Phone 3/2/19-4/1/19
				100-0301-523.22-01	17.33	Building Inspector Phone 3/2/19-4/1/19
				100-0304-562.22-01	28.40	Community Dev Phone 3/2/19-4/1/19
				100-0401-513.22-01	38.32	Finance Phone 3/2/19-4/1/19
				100-0402-513.22-01	7.81	Assessor Phone 3/2/19-4/1/19
				100-0502-522.22-01	47.56	EOC Phone 3/2/19-4/1/19
				100-0601-551.22-01	201.93	Library Phone 3/2/19-4/1/19
				100-0702-552.22-01	32.12	Recreation Phone 3/2/19-4/1/19
				100-0703-553.22-01	53.96	Parks Phone 3/2/19-4/1/19
				100-0704-552.22-01	16.77	Pool Phone 3/2/19-4/1/19
				100-0801-521.22-01	297.75	Police Phone 3/2/19-4/1/19
				100-0903-531.22-01	58.26	Health Phone 3/2/19-4/1/19
				100-0920-531.22-01	15.66	Senior Phone 3/2/19-4/1/19
				100-1001-514.22-01	86.02	City Hall Phone 3/2/19-4/1/19
				100-1002-541.22-01	50.04	Engineering Phone 3/2/19-4/1/19
				100-1008-541.22-01	4.52	Sign Phone 3/2/19-4/1/19
				207-0000-123.00-00	31.89	Marina Phone 3/2/19-4/1/19
				731-1022-541.22-01	30.83	Garage Phone 3/2/19-4/1/19
				743-0403-513.22-01	18.22	IT Phone 3/2/19-4/1/19
Total for check: 64208					1,091.93	
FASTSIGNS OF APPLETON	64209	3/14/2019	A 115570	100-0801-521.30-10	64.33	Magnetics
Total for check: 64209					64.33	

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<i>Vendor Name</i>	<i>Check Number</i>	<i>Check Date</i>	<i>Invoice Number</i>	<i>Account Number</i>	<i>Amount</i>	<i>Description</i>
FLATER, BRUCE	64210	3/14/2019	FLATER	100-1006-541.30-18	50.00	Mailbox Damage
			Total for check: 64210		50.00	
FORCE AMERICA DISTRIBUTING LLC	64211	3/14/2019	IN001-1316445	731-1022-541.38-03	548.05	Granular Feedback Kit
		3/14/2019	IN001-1317488	731-1022-541.38-03	406.30	Sensor
			Total for check: 64211		954.35	
FOX CROSSING UTILITIES	64212	3/14/2019	ACCT# 127-16734	100-0701-533.22-06	77.58	Standby Water-Geneva Rd 11/15/18-2/15/19
		3/14/2019	ACCT# 127-17360	100-0701-533.22-06	9.70	Standby Water 11/15/18-2/15/19
			Total for check: 64212		87.28	
GRAND CHUTE POLICE DEPARTMENT	64213	3/14/2019	GRANDCHUTEPD	100-0000-201.03-00	237.40	BOND Report #19-0631
			Total for check: 64213		237.40	
GUNDERSON CLEANERS	64214	3/14/2019	705061	100-0801-521.30-13	36.39	Cleaning Service
			Total for check: 64214		36.39	
GUSTMAN CHEVROLET SALES INC	64215	3/14/2019	49236	731-1022-541.38-04	157.20	Harness/Hose
		3/14/2019	49248	731-1022-541.38-03	130.51	Bezel
			Total for check: 64215		287.71	
HARRISON UTILITIES	64216	3/14/2019	001-0220-00	100-0703-553.22-05	101.99	Sewer/Water
			Total for check: 64216		101.99	
JX ENTERPRISES INC	64217	3/14/2019	2427735P	731-1022-541.38-03	19.77	Clamp
			Total for check: 64217		19.77	
KITZ & PFEIL INC	64219	3/14/2019	17421	100-1002-541.30-18	12.15	Flashlight
				625-1002-541.30-18	4.04	Flashlight

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KITZ & PFEIL INC...	64219...	3/14/2019	17427	731-1022-541.30-18	3.22	Part
		3/14/2019	17432	100-0801-521.30-15	17.09	Parts/CSO Equipment
		3/14/2019	17433	731-1022-541.30-18	1.61	Misc Hardware
		3/14/2019	17441	100-0601-551.24-03	12.85	Misc Hardware/Snowblower
		3/14/2019	17468	100-0501-522.24-03	16.18	Misc Hardware Weatherstrip
		3/14/2019	17481	731-1022-541.38-03	7.51	Misc Hardware
		3/14/2019	17542	731-1022-541.38-03	1.48	Nuts & Bolts
		3/14/2019	17585	731-1022-541.38-03	0.85	Nuts & Bolts
		3/14/2019	17638	100-0601-551.24-03	17.98	Wallboard/Outlets
				100-0801-521.24-03	35.42	Wallboard/Misc Parts
				100-1008-541.30-18	7.49	Cover/Traffic Lights
				207-0707-552.24-03	20.97	Cover/Marina
		3/14/2019	17678	100-0801-521.24-03	13.97	Misc Hardware Hallway Project
		3/14/2019	17680	100-0501-522.24-03	10.33	Caulk/Silicone TV Outlet
		3/14/2019	17713	100-1008-541.30-18	10.78	Hex Bit
		3/14/2019	17729	100-0801-521.24-05	15.09	Rollers
		3/14/2019	17747	100-0601-551.30-18	16.17	Tape
		3/14/2019	17784	100-0801-521.24-03	12.77	Misc Hardware PD Lockers
				601-1020-543.24-04	34.02	Misc Hardware
		3/14/2019	17815	100-0801-521.24-05	19.76	Adhesive
		3/14/2019	17863	100-0801-521.24-03	32.38	Paintbrushes
		3/14/2019	17876	100-0801-521.30-15	17.70	Misc Hardware/Drill Bits
		3/14/2019	17922	100-0801-521.24-03	15.91	Hardware/Corner Brace
		3/14/2019	17923	100-0801-521.24-03	32.22	Misc Hardware/Drill Bit
		3/14/2019	17931	470-0703-553.82-01	27.23	Smith Park Remodel
		3/14/2019	17957	100-0703-553.30-18	6.00	Spray Paint Park Buoys
		3/14/2019	17967	100-0801-521.24-03	5.93	Anchor/Patrol Rm Board
	Total for check: 64219				429.10	
KWIK TRIP INC	64220	3/14/2019	ACCT# 00244691	100-0801-521.38-01	156.28	Fuel
	Total for check: 64220				156.28	

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LB MED WASTE	64221	3/14/2019	98418	100-0903-531.30-18	65.99	30 Gal Box/ Bio-Waste
Total for check: 64221					65.99	
MARCO TECHNOLOGIES LLC	64222	3/14/2019	CR392502	743-0403-513.24-04	(1,980.20)	CREDIT-Returned Parts
		3/14/2019	INV6041003	743-0403-513.24-04	2,989.96	Firewall Maintenance 1/17/19-1/16/20
		3/14/2019	INV6120315	743-0403-513.29-01	24.40	Finance Copy/Print Use 2/10/19-3/9/19
Total for check: 64222					1,034.16	
MCMAHON	64223	3/14/2019	913348	625-1010-541.21-02	184.80	Stormwater Action Plan 12/30/18-2/2/19
Total for check: 64223					184.80	
MCNEILUS TRUCK & MFG COMPANY	64224	3/14/2019	4283201	731-1022-541.38-03	12.60	Joysticks
Total for check: 64224					12.60	
MEDICAL EXPENSE REIMBURSEMENT ACCT	64225	3/14/2019	20190314	100-0000-202.08-00	17,614.17	PAYROLL SUMMARY
Total for check: 64225					17,614.17	
MENARDS-APPLETON EAST	64226	3/14/2019	55857	470-0703-553.82-01	109.24	PVC/ Bracket/Valves Smith Park
		3/14/2019	55910	470-0703-553.82-01	68.40	PVC Pipe Smith Park
		3/14/2019	55922	470-0703-553.82-01	10.94	Durock/ Copper Tee Smith Park
		3/14/2019	56021	470-0703-553.82-01	72.81	Copper Pipe/Couple/Tee's Smith Park
Total for check: 64226					261.39	
MENASHA NEENAH MUNICIPAL COURT	64227	3/14/2019	MNMC	100-0000-201.03-00	174.00	BOND Rerport #19-0027
					174.00	BOND Rerport #19-0621
					166.00	BOND Rerport #19-0026
Total for check: 64227					514.00	
MENASHA UTILITIES	64228	3/14/2019	4649	601-0401-513.25-02	19,135.28	Jan Sewer
				625-0401-513.25-01	1,397.91	Jan Stormwater

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MENASHA UTILITIES...	64228...	3/14/2019	ST LIGHTS	100-1012-541.22-03	10,846.24	Feb Street Lighting
Total for check: 64228					31,379.43	
MBM	64229	3/14/2019	IN326812	743-0403-513.29-01	201.76	Copier Contract 8/26/18-9/25/18
		3/14/2019	IN337806	743-0403-513.29-01	270.49	Print Copy Use
		3/14/2019	IN362870	743-0403-513.29-01	147.56	Copy/Print Use Jan. 1/1/19-1/31/19
		3/14/2019	IN367168	743-0403-513.29-01	199.02	PD Copy/Printing 1/7-2/6
Total for check: 64229					818.83	
MORTON SALT	64230	3/14/2019	5401791429	100-1006-541.30-18	13,562.92	Salt
		3/14/2019	5401793072	100-1006-541.30-18	22,590.18	Salt
Total for check: 64230					36,153.10	
CITY OF NEENAH	64231	3/14/2019	37018	743-0403-513.24-04	11,882.50	2018 Tax System Support
Total for check: 64231					11,882.50	
NETWORK HEALTH SYSTEM INC	64232	3/14/2019	376699	100-0202-512.21-05	805.56	EAP Standard Service First Quarter
Total for check: 64232					805.56	
CURT PRELLWITZ	64233	3/14/2019	PRELLWITZ	743-0403-513.33-01	10.12	Mileage
Total for check: 64233					10.12	
RUEKERT & MIELKE INC	64234	3/14/2019	126651	601-1020-543.21-02	125.00	Monitoring Program
		3/14/2019	126652	601-1020-543.21-02	937.50	Sewer User Billing
Total for check: 64234					1,062.50	
SERVICEMASTER BUILDING MAINTENANCE	64235	3/14/2019	29583	731-1022-541.20-01	825.00	Janitorial Contract
Total for check: 64235					825.00	

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SHERWIN WILLIAMS CO	64236	3/14/2019	8057-1	100-0704-552.30-18	195.00	Paint
			Total for check: 64236		195.00	
STAPLES BUSINESS ADVANTAGE	64237	3/14/2019	8053316008	100-1002-541.30-18	161.79	Office Supplies
				625-1002-541.30-18	53.93	Office Supplies
		3/14/2019	8053316012	100-0203-512.30-10	36.86	Office Supplies
				100-0204-512.30-10	12.34	Office Supplies
				100-0304-562.30-10	19.49	Office Supplies
				100-0405-513.30-10	40.16	Office Supplies
				100-0702-552.30-10	27.27	Office Supplies
			Total for check: 64237		351.84	
SUPERIOR VISION INSURANCE PLAN	64238	3/14/2019	0000246638	100-0000-204.10-00	1,079.94	Vision Ins
			Total for check: 64238		1,079.94	
SYN-TECH SYSTEMS	64239	3/14/2019	184531	743-0403-513.24-04	550.00	Maintenance Agreement Fuel System
			Total for check: 64239		550.00	
TAPCO	64240	3/14/2019	1629206	100-1008-541.24-04	708.93	Aluminum Pole
			Total for check: 64240		708.93	
UNIFIRST CORPORATION	64241	3/14/2019	097 0277945	731-1022-541.20-01	293.05	Cleaning Service
			Total for check: 64241		293.05	
WAHPC	64242	3/14/2019	WAHPC	100-0304-562.21-10	40.00	Historic Preservation Membership
			Total for check: 64242		40.00	

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WIL-KIL PEST CONTROL	64243	3/14/2019	3573439	100-0703-553.20-07	49.75	Commercial Contract
			Total for check: 64243		49.75	
WINNEBAGO COUNTY TREASURER	64244	3/14/2019	LOTTERY CREDIT	100-0000-201.03-00	473.46	Lottery Credit Charges Tax Bills
			Total for check: 64244		473.46	
WISCNET	64245	3/14/2019	13807	743-0403-513.21-04	750.00	Qtr 4 Internet Access 10/1/18-12/31/18
			Total for check: 64245		750.00	
WISCONSIN DEPT OF TRANSPORTATION	64246	3/14/2019	395-0000123037	470-1003-541.82-02	2,247.19	Broad St 12/31/18-1/31/19
			Total for check: 64246		2,247.19	
WISCONSIN SUPPORT COLLECTIONS	64247	3/14/2019	20190314	100-0000-202.03-00	1,008.99	PAYROLL SUMMARY
			Total for check: 64247		1,008.99	
					122,994.79	



To: Menasha Common Council

From: Stephanie Cheslock, Deputy Clerk

RE: Beverage Operator License (Bartender) Applicants

Date: 3/4/2019

The below individuals have applied for a bartender license to serve, dispense and/or sell alcohol at a licensed establishment within the City. They have all met the criteria under the “Guidelines for Operator Licenses” approved by the Common Council. Therefore, staff is recommending the following people be **APPROVED** for an Operator’s License for the 2017-2019 licensing period:

Destiny Wood



To: Menasha Common Council

From: Stephanie Cheslock, Deputy Clerk

RE: Beverage Operator License (Bartender) Applicants

Date: 3/14/2019

The following individual has applied for a bartender license to serve, dispense and/or sell alcohol at a licensed establishment in the City. They have not met the criteria under the "Guidelines for Operator Licenses" approved by the Common Council. Therefore, staff is recommending the following person be **DENIED** an Operator's License:

Michelle Long (postponed from 3/4/2019 meeting)



February 22, 2019

Michelle S. Long
2424 Southwood Drive
Appleton, WI 54915

Re: City of Menasha Alcohol Operators License Application

Dear Michelle Long,

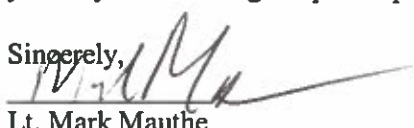
A background investigation on your Alcohol Operator's License application has been completed. You were recently convicted of Operating While under the Influence (2nd) on 12/19/2018. Because of this conviction, you were placed on active probation through the State of Wisconsin and provided Department of Corrections rules. Due to an apparent violation of your DOC rules which would occur from approving your application, at this time your application is being denied. The DOC rule being referenced states: "You shall not consume, possess, trade, sell or purchase any alcoholic substances including but not limited to beer, wine, male liquor or hard liquor. You shall not enter into any establishments that serve or sell alcohol, including but not limited to; bars, taverns, pubs, liquor stores/ separated liquor departments, casinos, dance or night clubs without prior agent approval."

Additionally, when you had turned in this application you had made reference to your probation agent approving of working in this type of establishment and you submitting an application. In speaking with your agent, Alyssa Reetz, she indicated that she has not given you permission but advised that would need to obtain permission from a judge, and then Alyssa would review it at that point.

Engaging in bartending involves the purchase and sale of a closely regulated substance, alcohol. Individuals granted an Operator's License must act in cooperation with law enforcement to enforce the alcohol beverage laws, drunken driving laws.

The Police Department is recommending to the Common Council that they deny your application for an Alcohol Operator's License within the City of Menasha. The recommendation will be given to the Common Council at their next meeting on March 4, 2019 at 6:00 p.m., or shortly thereafter. Should you wish to provide comment to the Common Council on your application, you may do so during the public participation portion of the meeting.

Sincerely,


Lt. Mark Mauthe
Investigative Services
Menasha Police Department

**CITY OF MENASHA
ALCOHOL OPERATORS LICENSE APPLICATION**

Establishment of Employment Redliner
TEMPORARY _____ PROVISIONAL _____ REGULAR ☒ RENEWAL _____

Name Long Michelle Sue
Last First Middle

Address 2424 Southwood Dr Appleton WI 54915
Street City State/Zip Code

Phone 715-853-4745

Height 5'10" Weight 150 Eyes Blu Hair Blnd Sex F Race W

Birth Date _____ Age _____ Birthplace _____

Scars, Marks, Tattoos 7 tattoos - 2 back, 2 left arm, 1 right arm, 1 stomach, 1 right leg
Drivers License No. _____ State of Issue _____
Expiration Date _____

NOTE: A license may be denied if applicant fails to provide accurate information or if the information is incomplete! Please read this section carefully.

Please explain all yes answers completely on the back of this form!

Do you currently have any criminal charges **pending** against you? no

Have you ever been **convicted** of a felony? no

Have you ever been **convicted** of a misdemeanor? yes

Have you ever been **convicted** of operating a motor vehicle while under the influence of an intoxicant or drug? yes

Have you ever been **convicted** of any law, statute, or ordinance pertaining to the use or sale of alcohol (including drinking alcohol underage)? no

Have you ever been **convicted** of any law, statute, or ordinance pertaining to the possession, use, or sale of illegal drugs? no

Have you ever been **convicted** of a criminal traffic offense? yes

I UNDERSTAND THAT THE APPLICATION FEE WILL NOT BE RETURNED IF LICENSE IS DENIED.

SIGNATURE Michelle Long Date 2/21/19

Approved _____ Denied X Expiration Date _____

Chief of Police Mark [Signature] Date 2.22.19

Comments: _____

REVOKED FOR VIOLATION: _____

Please answer all yes questions from the front of this form completely! Include correct charges, date of offense, and sentence. Failure to include all information or inaccurate information may result in the denial of your application!

Misdemeanor:

Jan 24th 2018 - I received my 2nd OWI leaving the family gathering at the bar after my mother in laws funeral (paying fine, IID installed, probation)

↓

OCT/NOV 2011 - received a misdemeanor disorderly conduct. I was struggle with my mental health in an unhealthy relationship (paid ticket)

OWI: 1st offense Shawano County (Sept 2012 ?) - this occurred on the evening that I'd finally decided to file divorce ~ my unhealthy relationship had landed us/our family homeless and I didn't handle the situation as well as I should have. (paid ticket)

Criminal traffic:

April 2013 I did receive a ticket for operating w/o a valid license (1st violation)

(?) May/June 2017 - criminal damage to property - forfeiture (U.)

This is an ordinance charge

During an argument with my daughter's father I had damaged the mirror on our truck as the argument progressed police were contacted and because the vehicle was only titled in his name and we were not married I was charged, regardless I should have handled things differently

CITY OF MENASHA POLICY GUIDELINES FOR OPERATOR LICENSES

1. Intent: It is the responsibility of the Menasha Police Chief to screen applications for operators' licenses (bartender licenses) for the City of Menasha. The following guidelines are adopted in order to specify the reasons for denying, non-reviewing or revoking an operator's license and outlines the steps and considerations given, for any denials that are appealed to the Menasha Common Council.

All applications for operators' license applications are submitted to the Menasha Police Department for a background check. The Menasha Police Chief makes the decision on licensing by either accepting or rejecting the application.

*Due to the discretionary nature of the alcohol beverage licensing process, it is not possible to state every circumstance that may result in approval of a license application and what circumstances will result in approval of a license application. However, it is possible to enumerate what will be considered in the decision-making and what circumstances are more likely to result in the **denial** of a license application.*

Individuals granted an operator's license must act in cooperation with law enforcement to enforce the alcohol beverage laws, drunk driving laws, and assist with minimizing disturbances of the peace and maintain the safety of the community. Therefore, individuals with a past history of negative or uncooperative contacts with police agencies will be scrutinized.

It is with these goals in mind that these guidelines are adopted. Furthermore, to the extent that Wis. Statutes Ch. 125 or Menasha City Ordinances provide additional grounds for denial, suspension, revocation or non-renewal, the Police Chief may also rely on such provisions.

In the event an individual with an operator's license is considered for non-renewal, suspension or revocation, all offenses will be considered, the circumstances of which are substantially related to the license regardless of whether some of the offenses occurred prior to the adoption of these guidelines.

Upon request, a copy of these guidelines shall be provided to each person who applies for a license.

Guidelines: What is meant by substantially related? The law does not specifically define this term although there are many court decisions on the topic. The Wisconsin Supreme Court has stated that the purpose of the test is to assess whether the tendencies and inclinations to behave a certain way in a particular context are likely to reappear later in a related context, based on the traits revealed. The "**substantially related**" test looks at the circumstances of an offense, where it happened, when, what, etc. compared to the circumstances of the licensed activity.

Where does the licensed activity typically occur, when and what is involved in performing the licensed activity, etc.

Examples of “substantially related” in the context of an operator’s license: There is a substantial relationship between the illegal purchase, use and sale of controlled substances and engaging in bartending, which involves the purchase and sale of a closely regulated substance. The same is true for offenses involving alcohol, e.g. drunk driving, selling to underage, possession and/or consuming as an underage, committing law violations while under the influence of alcohol or drugs, etc.

- **Guideline 1.** Provided the offense is substantially related to the circumstances of the license activity, circumstances of the offense substantially relate to the circumstances of the job or licensed activity, **any person who has been convicted of any FELONY, unless duly pardoned, does not qualify for an operator’s license.** Sec. 125.04(5)(b), Wis. Stats. (To the extent the other guidelines reference a specific offense; this guideline shall apply if the offense constitutes a *felony*.)
- **Guideline 2.** Provided the circumstances of the offense substantially relate to the circumstances of the job or licensed activity, **offense is substantially related to the circumstances of the licensed activity**, any person who has been convicted of or has a current charge pending, for two (2) or more offenses within the last five (5) years or for two (2) or more offenses, arising out of separate incidents, within the last five (5) years in the following subcategories, does not qualify for an operator’s license:
 - Violent crimes against the person of another, including but not limited to battery, criminal disorderly conduct, sexual assault, injury by negligent use of a vehicle, intimidation of a victim or witness.
 - Crimes involving cooperation (or lack thereof) with law enforcement officials, including but not limited to, resisting or obstructing a police officer, bribery of public officers/employees, eluding police, bail jumping, hit and run, perjury, or acts/threats of terrorism.
 - Manufacturing, distributing, delivering a controlled substance or a controlled substance analog; maintaining a drug trafficking place; possessing with intent to manufacture, distribute, or deliver a controlled substance or a controlled substance analog. Sec. 111.335(1)(c), Wis. Stats.
- **Guideline 3.** Provided the circumstances of the offense substantially relate to the circumstances of the job or licensed activity, offense is **substantially related to circumstances of the license activity**, any person who has been convicted of or has a current charge pending, for two (2) or more offenses, arising out of separate incidents, within the last three (3) years in the following subcategories, does not qualify for an operator’s license:
 - Disorderly conduct, criminal damage to property, solicitation of prostitution or other prostitutions-related offenses, wherein the offense involves an incident at a place that is, or should have been licensed under Wis. Stat. Ch. 125.
 - Alcohol beverage offenses (under Wis. Stat. Ch. 125 or Menasha City Ordinances).

- Possessing a controlled substance, controlled substance analog without a valid prescription, or possessing drug paraphernalia.
- Operating a motor vehicle while under the influence of intoxicants or drugs.
- Operating a motor vehicle with a prohibited alcohol concentration (PAC) in excess of .08% by weight.
- Open intoxicants in a public places or in a motor vehicle.

What is a **habitual law offender**? The term “habitual” refers to multiple convictions or pending charges and could include an offender with two (2) offenses occurring within a relatively short period of time. The term “offender” refers to a person with civil violations such as ordinance convictions and/or misdemeanor convictions (or pending charges), which substantially relate to the licensing activity. A legal opinion rendered by the League of Wisconsin Municipalities states that a person with two drunk driving convictions within the last couple years would be considered a habitual offender under the alcohol beverage licensing laws. Intoxicating Liquors #890 (1991). Some examples include:

- Two (2) or more offenses, each with a separate incident, within the immediately preceding one (1) year.
 - Three (3) or more offenses, each a separate incident, within the immediately preceding five (5) years.
 - Six (6) or more offenses, each a separate incident, within the preceding ten (10) years.
- **Guideline 4.** Applicants must truthfully and completely fill out applications:
 - If an applicant provides false information on an application, that application shall be denied and the applicant shall not be eligible to reapply for an operator license for a period of one (1) year from the date of denial of such application.
 - If the Police Chief determines that information was *intentionally* omitted from an application, the application shall be denied and the applicant shall not be eligible to reapply for an operator license for a period of one (1) year from the date of the denial of such application.
 - If the Police Chief determines that information was OMITTED from an application due to inadvertence, mistake or excusable neglect, the Chief may allow the applicant to submit a corrected application and recommend granting of the license, if the applicant is otherwise qualified.
 - **Guideline 5.** Recommending approval of an operator’s license application for an applicant who would otherwise be denied under these policy guidelines:
 - The Common Council may approve an operator’s license application if the application would otherwise be denied under this policy if the applicant presents substantial, credible evidence of rehabilitation. Such evidence includes letters of recommendation from Alcohol and Other Drug (“AODA”) counselors, probation agents or other relevant service providers, other professional counselors, certificates and/or letters confirming satisfactory completion of an AODA or other relevant counseling program. Any such letters shall be on the letterhead of the agency offering the recommendation in order for the letter to be considered credible evidence of rehabilitation. Any evidence must be in the form of

documents submitted to the Common Council and may not be statements of the applicant at the time of the hearing.

- The reason for any recommendation of approval of an operator's license application under this paragraph must be clearly stated in the record.
- **Guideline 6.** If the Police Chief recommends denial of an operator's license application, the reasons for the denial must be clearly stated on the record and shall be consistent with the criteria outlines above.



MEMORANDUM

To: City of Menasha Common Council

From: Jennifer Sassman, Finance Manager

Date: March 13, 2019

RE: R-7-19 – Resolution to approve the cancellation of outstanding checks; and the write –off of general uncollectible accounts receivables and delinquent personal property tax receivables

BACKGROUND

As part of the year-end process, staff reviews outstanding checks, past due accounts receivables, and delinquent personal property receivables; and requests that Council take action on the following:

- Cancel outstanding accounts payable and payroll checks that were issued more than one year ago,
- Adjust our accounting records to reflect the likelihood that we may not collect past due accounts receivables, and
- Write-off delinquent general and personal property tax receivables.

ANALYSIS

Staff has established an annual process that is completed to maintain current records and reflect the City's financial position accurately. The details for each section are as follows:

Cancel Outstanding Checks -Per ATTACHMENT A, this recommendation includes \$230.00 of accounts payable checks. Please note that it is possible that the some of these checks have been cashed but did not make it back through the federal banking system to be charged against our accounts. However, staff does review the list and make contact with those payees with outstanding check amounts greater than \$100, as those are the ones that likely would not have gotten held up in the federal banking system. Also, if at any time in the future, any of the checks are presented for payment, the City will certainly honor them.

General Accounts Receivable from 2012 and delinquent Personal Property Tax Receivables from 2011/2012 - Per ATTACHMENTS B and C, this recommendation includes \$2,447.97 of general accounts receivables from 2012, and \$5,766.02 of personal property tax receivables from 2011/2012. Since these accounts receivables are no longer legally collectible, they need to be removed from the City's records.

FISCAL IMPACT

The fiscal impacts of this item are as follows: (1) Cancelled outstanding checks-the City will increase its cash position by \$230.00, (2) Write-off general accounts receivables of \$2,447.97-no financial impact as the allowance was made in a previous year, and (3) Write-off personal property tax receivables of \$5,766.02- the City will decrease its financial position in regard to this write-off, acknowledging that the accounts are no longer collectible. Funds were budgeted in the 2018 year for this purpose.

RECOMMENDATION

Staff recommends that Council authorize this resolution to execute this transaction as outlined.

Outstanding checks to be cancelled - 2018 Year-End
3/13/2019

ATTACHMENT A

<u>Check #</u>	<u>Check date</u>	<u>Payee</u>	<u>Purpose</u>	<u>Amount</u>
57709	5/25/2017	Sam's Club	Membership	\$ 180.00
58484	8/10/2017	Brandon Rudolph	Parking Ticket Overpayment	\$ 10.00
59858	12/29/2017	Becky Bauer	Library Material Reimbursement	\$ 40.00
			Total	<u>\$ 230.00</u>

**Note: Sam's Club was contacted and they indicated that the City was current on their membership

Delinquent Accounts Receivable - 2018 Year End
3/13/2019

ATTACHMENT B

<u>Date</u>	<u>Obligor</u>	<u>Reason</u>	<u>Amount</u>
1/9/2012	Saul Hernandez Rodriguez	Accident Damage	\$ 1,486.04
5/22/2012	Carrie Walbrun	Returned Checks	\$ 95.52
10/22/2012	Tasha LaFond	Accident Damage	\$ 204.21
10/22/2012	Jamison Beth Pierce	Accident Damage	\$ 298.48
10/26/2012	Tammy Flatt	Accident Damage	\$ 363.72
		Total	<u>\$ 2,447.97</u>

Note:

Rodriguez-deemed uncollectable by the collection agency in 2018

Walbrun-deemed uncollectable by the collection agency in 2018

LaFond-will leave account with the TRIP program but have not received any payments

Pierce-deemed uncollectable by the collection agency in 2018

Flatt-deemed uncollectable by the collection agency in 2018

Personal Property Write-Offs - Year-End 2018
3/13/2019

ATTACHMENT C

<u>Obligor</u>	<u>2011/2012</u>	<u>City Portion</u>
4 Kids Childcare	\$ 173.82	\$ 63.27
Abraham, Dan	\$ 376.60	\$ 137.07
Accent Floral & Gifts	\$ 31.60	\$ 11.50
Alltel Wireless	\$ 357.53	\$ 130.13
Bauer Ferris & Holloway	\$ 97.43	\$ 35.46
Creative Hands & Minds	\$ 60.59	\$ 22.05
Fiberglass Technologies	\$ 118.52	\$ 43.14
Fink Law Offices, Thomas	\$ 766.38	\$ 278.95
Gloede, Robert	\$ 36.87	\$ 13.42
Haen, Paul	\$ 7.91	\$ 2.88
Sears Driving School (M&E Inc)	\$ 7.91	\$ 2.88
Talbot, Douglas	\$ 163.28	\$ 59.43
Tesch Chemical	\$ 71.10	\$ 25.88
Tri City Ceramics	\$ 63.21	\$ 23.01
Creative Hands & Minds	\$ 10.54	\$ 10.54
Get Reel Entertainment	\$ 792.71	\$ 792.71
London Place LLC	\$ 3,831.90	\$ 3,831.90
Underground Functional	\$ 263.37	\$ 263.37
Vital Beat	\$ 18.43	\$ 18.43
Grand Total	\$ 7,249.70	
	Total	<u>\$ 5,766.02</u>



RESOLUTION R-7-19

RESOLUTION TO APPROVE THE CANCELLATION OF OUTSTANDING CHECKS; AND
THE WRITE OFF OF GENERAL UNCOLLECTIBLE ACCOUNTS RECEIVABLES AND
DELINQUENT PERSONAL PROPERTY TAX RECEIVABLES

Introduced by Mayor Merkes

WHEREAS, it is necessary to cancel the outstanding checks and write off general uncollectable accounts receivables and delinquent personal property tax receivables,

NOW, THEREFORE, BE IT RESOLVED by the Mayor and the Common Council that the checks on "Attachment A" (\$230.00) have been outstanding for more than twelve months, the proper City Officials are hereby authorized to notify Nicolet National Bank to stop payment on these checks and to credit the proper amounts to the appropriate accounts,

NOW, THEREFORE, BE IT FURTHER RESOLVED by the Mayor and the Common Council that the proper City Officials are hereby authorized to write off the general accounts receivable balances from 2012 on "ATTACHMENT B" (\$2,447.97). These write-offs do not change the City's financial position as an allowance for uncollectable accounts was previously set up for these accounts in the period in which the accounts were sent to collections or deemed as unlikely to be collected. However, since the receivables are no longer legally collectible, they need to be removed from the City's records.

NOW, THEREFORE, BE IT FURTHER RESOLVED by the Mayor and the Common Council that the proper City Officials are hereby authorized to write off the personal property tax receivable balances from 2011/2012 on "ATTACHMENT C" (\$5,766.02). These write-offs do change the City's financial position, as will be reflected in the 2018 Financial Statements, as they were not previously removed from the City's records, but are no longer legally collectible.

Passed and approved this ____ day of _____, 2019.

Recommended by:

Motion/Second:

Vote: _____

Pass/Fail: _____

Requires: ____ Majority Vote

____ 2/3 Vote

Donald Merkes, Mayor

ATTEST:

Deborah A. Galeazzi, City Clerk



RESOLUTION R-8-19

RESOLUTION APPROVING THE PROJECT PLAN AND ESTABLISHING THE BOUNDARIES FOR AND THE CREATION OF TAX INCREMENTAL DISTRICT NO. 14, CITY OF MENASHA, WISCONSIN

Introduced by Mayor Don Merkes.

WHEREAS, the City of Menasha (the “City”) has determined that use of Tax Incremental Financing is required to promote development and redevelopment within the City; and

WHEREAS, Tax Incremental District No. 14 (the “District”) is proposed to be created by the City as a rehabilitation - conservation district in accordance with the provisions of Wisconsin Statutes Section 66.1105 (the "Tax Increment Law"); and

WHEREAS, a Project Plan for the District has been prepared that includes:

- a. A statement listing of the kind, number and location of all proposed public works or improvements within the District, or to the extent provided in Wisconsin Statutes Sections 66.1105(2)(f)1.k. and 66.1105(2)(f)1.n., outside of the District;
- b. An economic feasibility study;
- c. A detailed list of estimated project costs;
- d. A description of the methods of financing all estimated project costs and the time when the related costs or monetary obligations are to be incurred;
- e. A map showing existing uses and conditions of real property in the District;
- f. A map showing proposed improvements and uses in the District;
- g. Proposed changes of zoning ordinances, master plan, map, building codes and City ordinances;
- h. A list of estimated non-project costs;
- i. A statement of the proposed plan for relocation of any persons to be displaced;
- j. A statement indicating how the District promotes the orderly development of the City;
- k. An opinion of the City Attorney or of an attorney retained by the City advising that the plan is complete and complies with Wisconsin Statutes Section 66.1105(4)(f).

WHEREAS, prior to its publication, a copy of the notice of public hearing was sent to owners of all property in the proposed district, to the chief executive officers of Winnebago County, the Menasha School District, and the Fox Valley Technical College District, and any other entities having the power to levy taxes on property located within the District, in accordance with the procedures specified in the Tax Increment Law; and

WHEREAS, in accordance with the procedures specified in the Tax Increment Law, the Plan Commission, on January 8, 2019 held a public hearing concerning the project plan and boundaries and proposed creation of the District, providing interested parties a reasonable opportunity to express their views thereon; and

WHEREAS, after said public hearing, the Plan Commission designated the boundaries of the District, adopted the Project Plan, and recommended to the Common Council that it create such District and approve the Project Plan and

NOW, THEREFORE, BE IT RESOLVED by the Common Council of the City of Menasha that:

1. The boundaries of the District that shall be named "Tax Incremental District No. 14, City of Menasha", are hereby established as specified in Exhibit A of this Resolution.
2. The District is created effective as of January 1, 2019.
3. The Common Council finds and declares that:
 - a. Not less than 50% by area of the real property within the District is in need of rehabilitation - conservation work within the meaning of Wisconsin Statutes Section 66.1337(2m)(b).
 - b. Based upon the findings, as stated in 3.a. above, the District is declared to be a rehabilitation - conservation district based on the identification and classification of the property included within the District.
 - c. The improvement of such area is likely to enhance significantly the value of substantially all of the other real property in the District.
 - d. The equalized value of the taxable property in the District plus the value increment of all other existing tax incremental districts within the City, does not exceed 12% of the total equalized value of taxable property within the City.
 - e. The City estimates that approximately 100% of the territory within the District will be devoted to retail business at the end of the District's maximum expenditure period, pursuant to Wisconsin Statutes Section 66.1105(5)(b).
 - f. The project costs relate directly to promoting the rehabilitation of the area consistent with the purpose for which the District is created.
4. The Project Plan for "Tax Incremental District No. 14, City of Menasha" (attached as Exhibit B) is approved, and the City further finds the Plan is feasible and in conformity with the master plan of the City.

BE IT FURTHER RESOLVED THAT the City Clerk is hereby authorized and directed to apply to the Wisconsin Department of Revenue, in such form as may be prescribed, for a "Determination of Tax Incremental Base", as of January 1, 2019, pursuant to the provisions of Wisconsin Statutes Section 66.1105(5)(b).

BE IT FURTHER RESOLVED THAT pursuant to Section 66.1105(5)(f) of the Wisconsin Statutes that the City Assessor is hereby authorized and directed to identify upon the assessment roll returned and examined under Wisconsin Statutes Section 70.45, those parcels of property which are within the District, specifying thereon the name of the said District, and the City Clerk is hereby authorized and directed to make similar notations on the tax roll made under Section 70.65 of the Wisconsin Statutes.

Passed and approved this ____ day of _____, 2019.

Recommended by:

Motion/Second:

Vote: _____

Pass/Fail: _____

Requires: 2/3 Vote

Donald Merkes, Mayor

ATTEST:

Deborah A. Galeazzi, City Clerk

EXHIBIT A

**LEGAL BOUNDARY DESCRIPTION OR MAP OF
TAX INCREMENTAL DISTRICT NO. 14
CITY OF MENASHA**

THIS CAN BE FOUND IN THE PROJECT PLAN

EXHIBIT B

PROJECT PLAN

THIS WILL BE HANDED OUT SEPARATELY

March 18, 2019

DRAFT Project Plan for the Creation of Tax Incremental District No. 14



Organizational Joint Review Board Meeting Held:	January 8, 2019
Public Hearing Held:	January 8, 2019
Consideration for Approval by Plan Commission:	January 8, 2019
Consideration for Adoption by Common Council:	March 18, 2019
Consideration for Approval by the Joint Review Board:	April 2, 2019

Tax Incremental District No. 14 Creation Project Plan

City of Menasha Officials

Common Council

Stan Sevenich
Rebecca Nichols
James Taylor
Mark Langdon
Steve Krueger
Thomas E Grade
Ted Grade
Randy Ropella

Common Council President
Council Member
Council Member
Council Member
Council Member
Council Member
Council Member
Council Member

City Staff

Donald Merkes
Debbie Galeazzi
John Jacobs
Sam Schroeder
Pamela Captain

Mayor
City Clerk
Director of Administrative
Services/Comptroller/Treasurer
Community Development Director
City Attorney

Plan Commission

Don Merkes, Mayor
Rebecca Nichols, Alderperson
Tom Grade, Alternate Alderperson
Josh Radomski, Director of Public Works
Richard Sturm, Chairperson of the Parks and
Recreation Board

Kara Homan, Citizen
Catherine Cruickshank, Citizen
Kevin Benner, Citizen

Joint Review Board

Don Merkes
Mark Harris
Amy Van Straten
Brian Adesso
Scott Francis

City Representative
Winnebago County
Fox Valley Technical College District
Menasha School District
Public Member

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SECTION 1: Executive Summary

Description of District

Type of District, Size and Location

Tax Incremental District (“TID”) No. 14 (the “TID” or “District”) is proposed to be created by the City of Menasha (“City”) as a rehabilitation - conservation district. A map of the proposed District boundaries is located in Section 3 of this plan.

Estimated Total Project Expenditures.

The City anticipates making total project expenditures of approximately \$2,650,000 to undertake the projects listed in this Project Plan. The Expenditure Period of this District is 22 years from the date of adoption of the authorizing Resolution of the Common Council (the “Creation Resolution”). The projects to be undertaken pursuant to this Project Plan are expected to be financed through a development incentive (Municipal Revenue Obligation) issued to a developer, with cash/fund balance accumulated by the District, or through the issuance of General Obligation debt of the City. A discussion and listing of other possible financing mechanisms, as well as a summary of total project financing, is located in Section 10 of this plan.

Economic Development

As a result of the creation of this District, the City projects that additional land and improvements value of approximately \$4,556,009 will be created as a result of new development, redevelopment, and appreciation in the value of existing properties. This additional value will be a result of the improvements made and projects undertaken within the District. A table detailing assumptions as to the timing of new development and redevelopment and associated values is located in Section 10 of this Plan. In addition, creation of the District is expected to result in other economic benefits as detailed in the Summary of Findings hereafter.

Expected Termination of District

Based on the Economic Feasibility Study located in Section 10 of this plan, this District would be expected to generate sufficient tax increments to recover all project costs by the year 2037; 10 years earlier than the 27 year maximum life of this District.

Summary of Findings

As required by Wisconsin Statutes Section 66.1105, and as documented in this Project Plan and the exhibits contained and referenced herein, the following findings are made:

1. **That “but for” the creation of this District, the development projected to occur as detailed in this Project Plan: 1) would not occur; or 2) would not occur in the manner, at the values, or within the timeframe desired by the City.** In making this determination, the City has considered the following information:
 - The City has conducted an independent review of the intended developer’s sources and uses proforma for the initial proposed redevelopment project of the Shopko plaza and outlot. This review has concluded that a public investment of \$1,250,000 or a payout over 15 years (whichever comes first) is required to enable the development to occur in the manner desired by

the City, while providing the developer a fair and reasonable return on their investment. This assistance will be provided in the form of a Municipal Revenue Obligation (“MRO”). The MRO is not a debt of the City, nor is it an absolute obligation; if the developer does not produce sufficient incremental value to support the intended cash flows, the payments under the MRO reduce accordingly. This PAYGO structure minimizes the risk to the City. The net present value (“NPV”) of the future cash flow/increment generated by a project approximates the amount a developer might be able to borrow against the MRO, or “monetize” in order to secure funding at the front end of a project. It is expected the City will enter into a development agreement specifying the terms and amount of the MRO.

- The District will meet the objectives of a rehabilitation or conservation work by carrying out plans for a program of voluntary repair and rehabilitation of buildings or other improvements within the District. This includes the existing Shopko Plaza (not including the adjacent Shopko anchor store), and the outlot most recently operated by the Gardenview Restaurant. Plans include updating the façade of the Plaza and demolishing the restaurant in order to build a new, 3-tenant parcel containing national-known tenants. The façade upgrade is intended to attract additional tenants to the Plaza shops, and other improvements such as parking lot refacing, will be considered by the developer. It is the judgment of the City that the use of Tax Incremental Financing (“TIF”) will be required to provide the necessary inducements to encourage development on the sites consistent with that desired by the City.
2. **The economic benefits of the Tax Incremental District, as measured by increased employment, business and personal income, and property value, are sufficient to compensate for the cost of the improvements.** In making this determination, the City has considered the following information:
- As demonstrated in the Economic Feasibility Section of this Project Plan, the tax increments projected to be collected are more than sufficient to pay for the proposed project costs. On this basis alone, the finding is supported.
 - The development expected to occur will revitalize an existing retail center and replace an outdated restaurant property with an income producing development. This will prevent a loss of property tax value within the District and help stabilize the retail components of the area/corridor.
3. **The benefits of the proposal outweigh the anticipated tax increments to be paid by the owners of property in the overlying taxing jurisdictions.**
- If approved, the District’s creation would become effective for valuation purposes as of January 1, 2018. As of this date, the values of all existing development would be frozen and the property taxes collected on this base value would continue to be distributed amongst the various taxing entities as they currently are now. Taxes levied on any additional value established within the District due to new construction, renovation or appreciation of property values occurring after January 1, 2018 would be collected by the TID and used to repay the costs of TIF-eligible projects undertaken within the District.
 - Since the development expected to occur is unlikely to take place or in the same manner without the use of TIF (see Finding #1) and since the District will generate economic benefits that are more than sufficient to compensate for the cost of the improvements (see Finding #2), the City reasonably concludes that the overall benefits of the District outweigh the anticipated tax increments to be paid by the owners of property in the overlying taxing jurisdictions. It is further concluded that since the “but for” test is satisfied, there would, in fact, be no foregone tax increments to be paid in the event the District is not created. As required by Section

66.1105(4)(i)4., a calculation of the share of projected tax increments estimated to be paid by the owners of property in the overlying taxing jurisdictions has been made and can be found in Appendix A of this plan.

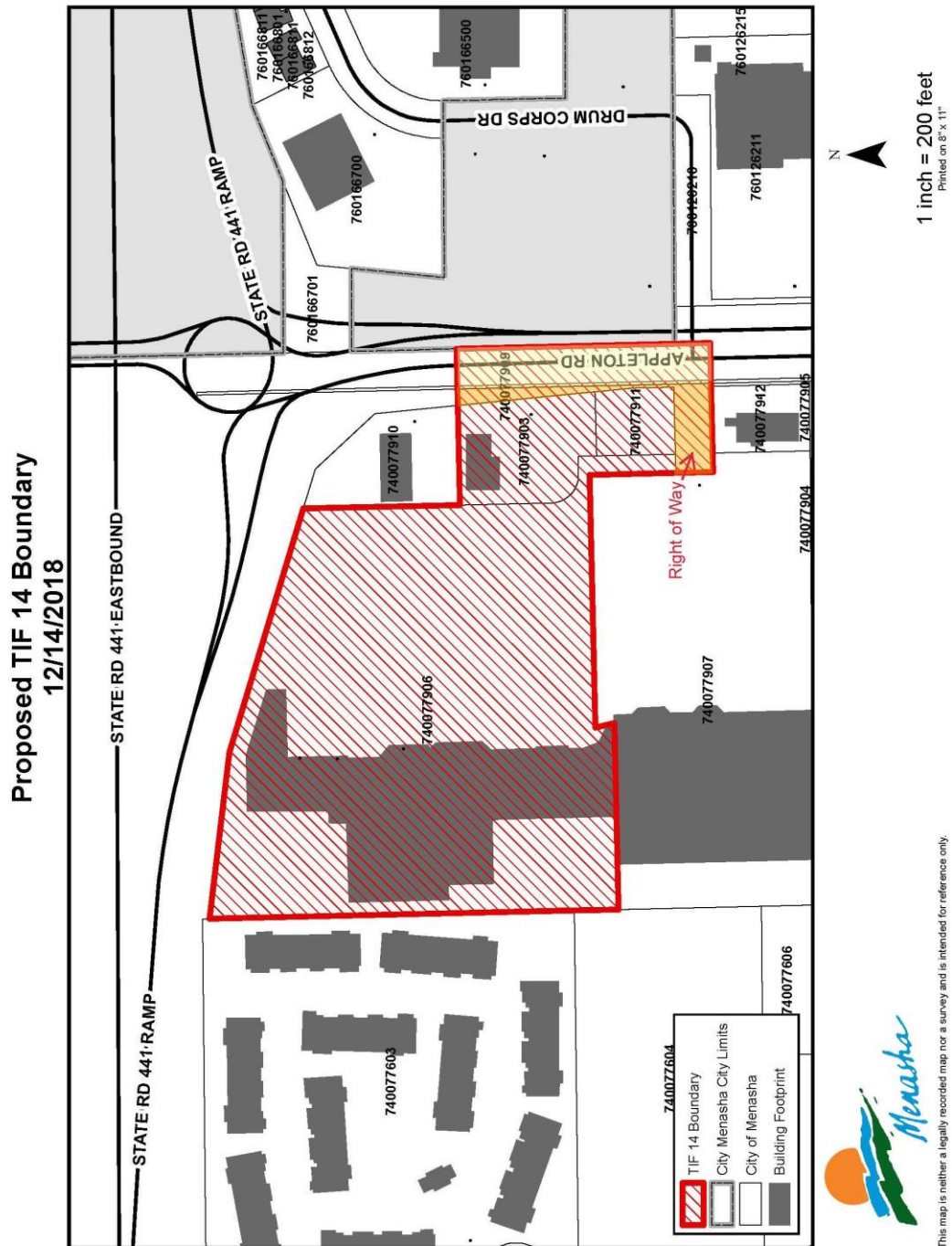
4. Not less than 50% by area of the real property within the District is in need of rehabilitation - conservation work within the meaning of Wisconsin Statutes Section 66.1337(2m)(b).
5. Based upon the findings, as stated above, the District is declared to be a rehabilitation - conservation District based on the identification and classification of the property included within the District.
6. The project costs relate directly to promoting the rehabilitation of the area consistent with the purpose for which the District is created.
7. The improvement of such area is likely to enhance significantly the value of substantially all of the other real property in the District.
8. The equalized value of taxable property of the District, plus the value increment of all existing tax incremental districts within the City, does not exceed 12% of the total equalized value of taxable property within the City.
9. The City estimates that 100% of the territory within the District will be devoted to retail business at the end of the District's maximum expenditure period, pursuant to Wisconsin Statutes Sections 66.1105(5)(b) and 66.1105(6)(am)1.
10. The Project Plan for the District in the City is feasible and is in conformity with the master plan of the City.

SECTION 2: Type and General Description of District

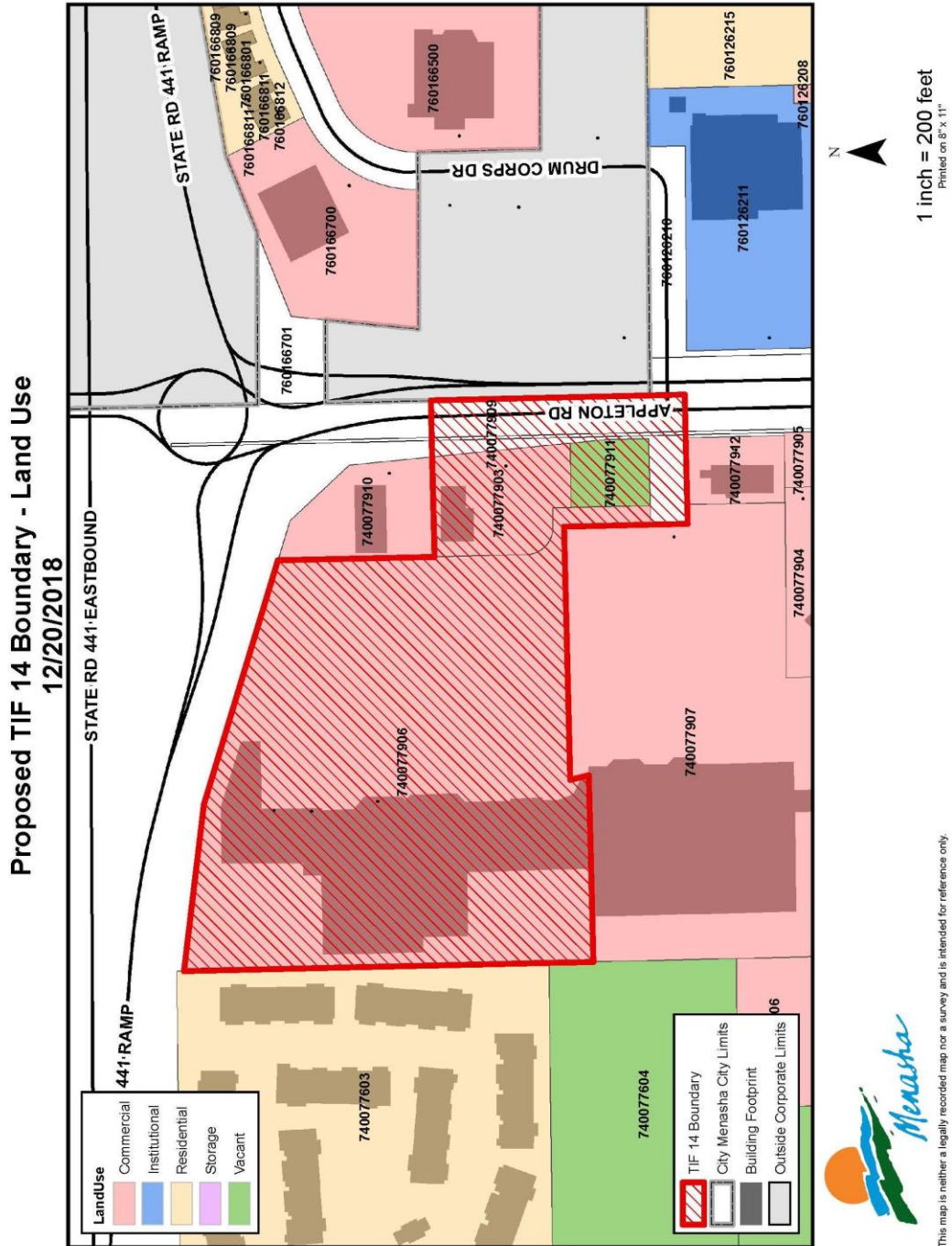
The District is being created by the City under the authority provided by Wisconsin Statutes Section 66.1105. The District is created as a "Rehabilitation - conservation District" based upon a finding that at least 50%, by area, of the real property within the District is in need of rehabilitation - conservation work. In Section 5 of this Plan, the City has identified those properties within the District that meet the criteria of "rehabilitation - conservation areas" as defined in Wisconsin Statutes Section 66.1337(2m)(a) and relies on these characterizations as the basis for making the above finding.

A map depicting the boundaries of the District is found in Section 3 of this Plan. A map depicting the proposed uses of the District is found in Section 8 of this plan. The City intends that TIF will be used to assure that private development occurs within the District consistent with the City's development and redevelopment objectives. The goal is to increase the tax base and to provide for and preserve retail employment opportunities within the City. The project costs included in this Plan relate directly to the rehabilitation - conservation of areas in the District consistent with the purpose for which the District is created. Based upon the findings, as stated within this Plan, the District is declared to be a rehabilitation - conservation District based on the identification and classification of the property included within the district.

SECTION 3: Preliminary Map of Proposed District Boundary



SECTION 4: Map Showing Existing Uses and Conditions



SECTION 5: Preliminary Parcel List and Analysis

City of Menasha, Wisconsin

Tax Increment District # 14

Base Property Information

Property Information					Assessment Information			Equalized Value				District Classification
Map Ref #	Parcel Number	Street Address	Owner	Acreage	Land	Imp	Total	Equalized Value Ratio	Land	Imp	Total	Rehab/ Conservation
	4-00779-06	1750 Appleton Road	Alexander Bishop	8.82	1,152,100	3,547,900	4,700,000	89.88%	0	0	0	8.82
	4-00779-03	1680 Appleton Road	Prime Space LLC	0.80	279,200	195,800	475,000	89.88%	310,627	217,839	528,466	0.8
	4-00779-11	Appleton Road	Robin Menasha LLC	0.30	108,800	2,500	111,300	89.88%	121,047	2,781	123,828	0
	4-00779-09	Appleton Road	State of Wisconsin DOT		0	0	0	89.88%	0	0	0	0
Total Acreage 9.92					1,540,100	3,746,200	5,286,300		1,713,454	4,167,874		9.62 96.98%
									5,881,328			

SECTION 6: Equalized Value Test

The following calculations demonstrate that the City is in compliance with Wisconsin Statutes Section.66.1105(4)(gm)4.c., which requires that the equalized value of the taxable property in the proposed District, plus the value increment of all existing tax incremental districts, does not exceed 12% of the total equalized value of taxable property within the City.

The equalized value of the increment of existing tax incremental districts within the City, plus the base value of the proposed District, totals \$135,072,028. This value is less than the maximum of \$141,307,296 in equalized value that is permitted for the City of Menasha. The City is also closing TID #5 prior to April 15, 2019. For illustration purposes, compliance with the 12% test factoring in the closure of TID #5 is also provided. The City is in compliance with the statutory equalized valuation test and may proceed with creation of this District.

City of Menasha, Wisconsin		
Tax Increment District # 14		
Valuation Test Compliance Calculation		
District Creation Date	2/4/2019	ILLUSTRATION ONLY
	Valuation Data Currently Available 2018	Valuation Data Currently Available 2018
Total EV (TID In)	1,177,560,800	1,177,560,800
12% Test	141,307,296	141,307,296
Increment of Existing TIDs	129,190,700	129,190,700
Less TID #5 (Closing in 2019)		(10,722,500)
Total Existing Increment	129,190,700	118,468,200
Projected Base of New or Amended District	5,881,328	5,881,328
Total Value Subject to 12% Test	135,072,028	124,349,528
Compliance	PASS	PASS

SECTION 7:

Statement of Kind, Number and Location of Proposed Public Works and Other Projects

The following is a list of public works and other TIF-eligible projects that the City expects to implement in conjunction with this District. Any costs necessary or convenient to the creation of the District or directly or indirectly related to the public works and other projects are considered "Project Costs" and eligible to be paid with tax increment revenues of the District.

Property, Right-of-Way and Easement Acquisition

Acquisition of Rights-of-Way

The City may need to acquire property to allow for installation of driveways, sidewalks, utilities, stormwater management practices and other public infrastructure. Costs incurred by the City to identify, negotiate and acquire rights-of-way are eligible Project Costs.

Acquisition of Easements

The City may need to acquire temporary or permanent easements to allow for installation and maintenance of driveways, sidewalks, utilities, stormwater management practices and other public infrastructure. Costs incurred by the City to identify, negotiate and acquire easement rights are eligible Project Costs.

Relocation Costs

If relocation expenses are incurred in conjunction with the acquisition of property, those expenses are eligible Project Costs. These costs may include, but are not limited to: preparation of a relocation plan; allocations of staff time; legal fees; publication of notices; obtaining appraisals; and payment of relocation benefits as required by Wisconsin Statutes Sections 32.19 and 32.195.

Utilities

Stormwater Management System Improvements

Redevelopment within the District will cause stormwater runoff and pollution. To manage this stormwater runoff, the City may need to construct, alter, rebuild or expand stormwater management infrastructure within the District. Eligible Project Costs include, but are not limited to, construction, alteration, rebuilding or expansion of: stormwater collection mains; inlets, manholes and valves; service laterals; ditches; culvert pipes; box culverts; bridges; stabilization of stream and river banks; and infiltration, filtration and detention Best Management Practices (BMP's). To the extent stormwater management system projects undertaken within the District provide direct benefit to land outside of the District, the City will make an allocation of costs based on such benefit. Those costs corresponding to the benefit allocated to land within the District, and necessitated by the implementation of the Project Plan, are eligible Project Costs. Implementation of the Project Plan may also require that the City construct, alter, rebuild or expand stormwater management infrastructure located outside of the District. That portion of the costs of stormwater management system projects undertaken outside the District which are necessitated by the implementation of the Project Plan are eligible Project Costs.

Streetscaping and Landscaping

In order to attract redevelopment consistent with the objectives of this Plan, the City may install amenities to enhance development sites, rights-of-way and other public spaces. These amenities include, but are not limited to: landscaping; lighting of streets, sidewalks, parking areas and public areas; installation of planters, benches, clocks, tree rings, trash receptacles and similar items; and installation of brick or other decorative walks, terraces and street crossings. These and any other similar amenities installed by the City are eligible Project Costs.

Miscellaneous

Cash Grants (Development Incentives)

The City may enter into agreements with property owners, lessees, or developers of land located within the District for the purpose of sharing costs to encourage the desired kind of improvements and assure tax base is generated sufficient to recover project costs. No cash grants will be provided until the City executes a developer agreement with the recipient of the cash grant. Any payments of cash grants made by the City are eligible Project Costs.

Projects Outside the Tax Increment District

Pursuant to Wisconsin Statutes Section 66.1105(2)(f)1.n, the City may undertake projects within territory located within one-half mile of the boundary of the District provided that: 1) the project area is located within the City's corporate boundaries and 2) the projects are approved by the Joint Review Board. The cost of projects completed outside the District pursuant to this section are eligible project costs, and may include any project cost that would otherwise be eligible if undertaken within the District. The City intends to make the following project cost expenditures outside the District:

- Pedestrian improvements; curb & gutter, and related storm water improvements totaling \$449,750.

Professional Service and Organizational Costs

The costs of professional services rendered, and other costs incurred, in relation to the creation, administration and termination of the District, and the undertaking of the projects contained within this Plan, are eligible Project Costs. Professional services include, but are not limited to: architectural; environmental; planning; engineering; legal, audit; financial; and the costs of informing the public with respect to the creation of the District and the implementation of the Plan.

Administrative Costs

The City may charge to the District as eligible Project Costs reasonable allocations of administrative costs, including, but not limited to, employee salaries. Costs allocated will bear a direct connection to the time spent by City employees in connection with the implementation of the Plan.

Financing Costs

Interest expense, debt issuance expenses, redemption premiums, and any other fees and costs incurred in conjunction with obtaining financing for projects undertaken under this Plan are eligible Project Costs.

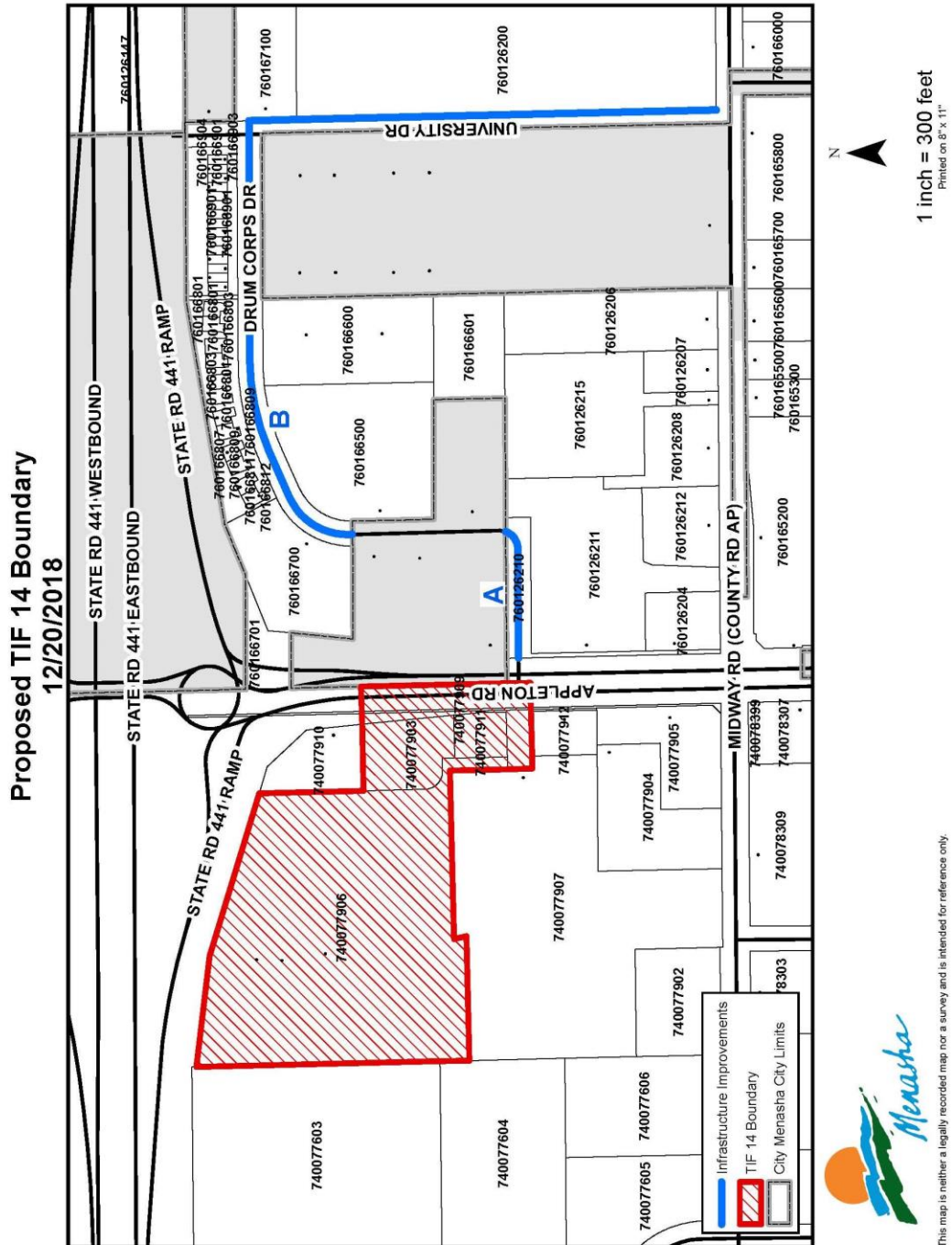
With all projects the costs of engineering, design, survey, inspection, materials, construction, restoring property to its original condition, apparatus necessary for public works, legal and other consultant fees, testing, environmental studies, permits, updating City ordinances and plans, judgments or claims for damages and other expenses are included as Project Costs.

In the event any of the public works project expenditures are not reimbursable out of the special TIF fund under Wisconsin Statutes Section 66.1105, in the written opinion of counsel retained by the City for such purpose or a court of record so rules in a final order, then such project or projects shall be deleted herefrom and the remainder of the projects hereunder shall be deemed the entirety of the projects for purposes of this Project Plan.

The City reserves the right to implement only those projects that remain viable as the Plan period proceeds.

Project Costs are any expenditure made, estimated to be made, or monetary obligations incurred or estimated to be incurred, by the City and as outlined in this Plan. Project Costs will be diminished by any income, special assessments or other revenues, including user fees or charges. To the extent the costs benefit the municipality outside the District, a proportionate share of the cost is not a Project Cost. Costs identified in this Plan are preliminary estimates made prior to design considerations and are subject to change after planning is completed. Prorations of costs in the Plan are also estimates and subject to change based upon implementation, future assessment policies and user fee adjustments.

SECTION 8: Map Showing Proposed Improvements and Uses



SECTION 9: Detailed List of Project Costs

All costs are based on 2019 prices and are preliminary estimates. The City reserves the right to increase these costs to reflect inflationary increases and other uncontrollable circumstances between 2019 and the time of construction. The City also reserves the right to increase certain project costs to the extent others are reduced or not implemented without amending the Plan. The tax increment allocation is preliminary and is subject to adjustment based upon the implementation of the Plan.

This Plan is not meant to be a budget nor an appropriation of funds for specific projects, but a framework within which to manage projects. All costs included in the Plan are estimates based on best information available. The City retains the right to delete projects or change the scope and/or timing of projects implemented as they are individually authorized by the Common Council, without amending the Plan.

Proposed TIF Project Cost Estimates

City of Menasha, Wisconsin				
Tax Increment District # 14				
Estimated Project List				
Project ID	Project Name/Type	TID Area	1/2 Mile Radius	
N/A	Development Incentive for Alexdander Bishop ²	1,250,000		1,250,000
N/A	Allowance for future development incentives	500,000		500,000
A	Pedestrian improvements, curb, and storm sewer improvements (320 feet)		56,000	56,000
B	Pedestrian improvements, curb, and storm sewer improvements (2,250 feet)		393,750	393,750
N/A	TIF Creation	15,000		15,000
N/A	Developer Proforma Review	10,500		10,500
N/A	Developer Agreement Costs	4,750		
N/A	Ongoing administrative, audit and legal fees	420,000		420,000
Total Projects		2,200,250	449,750	2,645,250
Notes:				
Note 1	Project costs are estimates and are subject to modification			
Note 2	Incentive amount is \$1,250,000 or a payout for 15 years whichever comes first.			

SECTION 10: Economic Feasibility Study, Financing Methods, and the Time When Costs or Monetary Obligations Related are to be Incurred

The information and exhibits contained within this Section demonstrate that the proposed District is economically feasible insofar as:

- The City has available to it the means to secure the necessary financing required to accomplish the projects contained within this Plan. A listing of “Available Financing Methods” follows.
- The City expects to complete the projects in one or multiple phases and can adjust the timing of implementation as needed to coincide with the pace of private redevelopment. A discussion of the phasing and projected timeline for project completion is discussed under “Plan Implementation” within this Section. A table identifying the financing method for each phase and the time at which that financing is expected to be incurred is included.
- The development anticipated to occur as a result of the implementation of this Plan will generate sufficient tax increments to pay for the cost of the projects. Within this Section are tables identifying: 1) the redevelopment expected to occur, 2) a projection of tax increments to be collected resulting from that redevelopment and other economic growth within the District, and 3) a cash flow model demonstrating that the projected tax increment collections and all other revenues available to the District will be sufficient to pay all Project Costs.

Available Financing Methods

General Obligation (G.O.) Bonds or Notes

The City may issue G.O. Bonds or Notes to finance the cost of projects included within this Plan. The Wisconsin State Constitution limits the principal amount of G.O. debt that the community may have outstanding at any point in time to an amount not greater than five percent of its total equalized value (TID IN). As of the date of this plan, the City has a G.O. debt limit of \$58,875,040, of which approximately \$31.0 million is currently unused and could be made available to finance Project Costs.

Bonds Issued to Developers (“Pay as You Go” Financing)

The City may issue a bond or other obligation to one or more developers who provide financing for projects included in this Plan. Repayment of the amounts due to the developer under the bonds or other obligations are limited to an agreed percentage of the available annual tax increments collected that result from the improvements made by the developer. To the extent the tax increments collected are insufficient to make annual payments, or to repay the entire obligation over the life of the District, the City’s obligation is limited to not more than the agreed percentage of the actual increments collected. Bonds or other obligations issued to developers in this fashion are not general obligations of the City and, therefore, do not count against the City’s statutory borrowing capacity.

Tax Increment Revenue Bonds

The City has the authority to issue revenue bonds secured by the tax increments to be collected. These bonds may be issued directly by the City, or as a form of lease revenue bond by a Community

Development Authority (CDA) or by a Redevelopment Authority (RDA). Tax Increment Revenue Bonds and Lease Revenue Bonds are not general obligations of the City and therefore do not count against the City's statutory borrowing capacity. To the extent tax increments collected are insufficient to meet the annual debt service requirements of the revenue bonds, the City may be subject to either a permissive or mandatory requirement to appropriate on an annual basis a sum equal to the actual or projected shortfall.

Utility Revenue Bonds

The City can issue revenue bonds to be repaid from revenues of the its various systems, including revenues paid by the City that represent service of the system to the City. There is neither a statutory nor constitutional limitation on the amount of revenue bonds that can be issued, however, water rates are controlled by the Wisconsin Public Service Commission and the City must demonstrate to bond purchasers its ability to repay revenue debt with the assigned rates. To the extent the City utilizes utility revenues other than tax increments to repay a portion of the bonds, the City must reduce the total eligible Project Costs in an equal amount.

Special Assessment "B" Bonds

The City has the ability to levy special assessments against benefited properties to pay part of the costs for street, curb, gutter, sewer, water, storm sewers and other infrastructure. In the event the City determines that special assessments are appropriate, the City can issue Special Assessment B bonds pledging revenues from special assessment installments to the extent assessment payments are outstanding. These bonds are not counted against the City's statutory borrowing capacity. If special assessments are levied, the City must reduce the total eligible Project Costs under this Plan in an amount equal to the total collected.

Plan Implementation

Projects identified will provide the necessary anticipated governmental services to the area. A reasonable and orderly sequence is outlined on the following page. However, public debt and expenditures should be made at the pace private development of redevelopment occurs to assure increment is sufficient to cover expenses.

It is anticipated developer agreements between the City and property owners will be in place prior to major public expenditures. These agreements can provide for development guarantees or a payment in lieu of development. To further assure contract enforcement, these agreements might include levying of special assessments against benefited properties.

The order in which public improvements are made should be adjusted in accordance with development and execution of developer agreements. The City reserves the right to alter the implementation of this Plan to accomplish this objective.

Interest rates projected are based on current market conditions. Municipal interest rates are subject to constantly changing market conditions. In addition, other factors such as the loss of tax-exempt status of municipal bonds or broadening the purpose of future tax-exempt bonds would affect market conditions. Actual interest expense will be determined once the methods of financing have been approved and securities or other obligations are issued.

If financing as outlined in this Plan proves unworkable, the City reserves the right to use alternate financing solutions for the projects as they are implemented.

Development Assumptions

City of Menasha

TID #14 Shopko Plaza

Development Assumptions

Construction Year		Shopko Plaza 4-00779-06	Outlot 4-00779-03	Outlot Demo	Vacant Lot 4-00779-11	Annual Total	Construction Year	
1	2019	400,000	774,360	(195,800)	0	978,560	2019	1
2	2020	2,448,776	946,440			3,395,216	2020	2
3	2021	182,233				182,233	2021	3
4	2022					0	2022	4
5	2023					0	2023	5
6	2024					0	2024	6
7	2025					0	2025	7
8	2026					0	2026	8
9	2027					0	2027	9
10	2028					0	2028	10
11	2029					0	2029	11
12	2030					0	2030	12
13	2031					0	2031	13
14	2032					0	2032	14
15	2033					0	2033	15
16	2034					0	2034	16
17	2035					0	2035	17
18	2036					0	2036	18
19	2037					0	2037	19
20	2038					0	2038	20
21	2039					0	2039	21
22	2040					0	2040	22
23	2041					0	2041	23
24	2042					0	2042	24
25	2043					0	2043	25
26	2044					0	2044	26
27	2045					0	2045	27
Totals		3,031,009	1,720,800	(195,800)	0	4,556,009		

Notes:

Plaza increment in 2019 reflects assessable value of façade improvements (not income generating). 2020 reflects new tenants installed.

Outlot value reflects new 3-tenant bldg with national tenants, less underlying land value. Bldg demo in 2019 reflected as negative.

No additional value assigned to Vacant parking lot

Increment Revenue Projections

City of Menasha, Wisconsin

Tax Increment District # 14

Tax Increment Projection Worksheet

Type of District	Rehabilitation	Base Value	5,286,300	
District Creation Date	March 18, 2019	Appreciation Factor	1.00%	Apply to Base Value
Valuation Date	Jan 1, 2019	Base Tax Rate	\$27.21	
Max Life (Years)	27	Rate Adjustment Factor		
Expenditure Period/Termination	22 3/18/2041			
Revenue Periods/Final Year	27 2047			
Extension Eligibility/Years	Yes 3	Tax Exempt Discount Rate	4.50%	
Recipient District	Yes	Taxable Discount Rate	6.00%	

	Construction Year	Value Added	Valuation Year	Inflation Increment	Total Increment	Revenue Year	Tax Rate	Tax Increment	Tax Exempt	Taxable NPV
									NPV Calculation	Calculation
1	2019	978,560	2020	0	978,560	2021	\$27.21	26,627	23,333	22,356
2	2020	3,395,216	2021	9,786	4,383,562	2022	\$27.21	119,277	123,354	116,835
3	2021	182,233	2022	43,836	4,609,630	2023	\$27.21	125,428	224,004	210,562
4	2022	0	2023	46,096	4,655,727	2024	\$27.21	126,682	321,282	299,868
5	2023	0	2024	46,557	4,702,284	2025	\$27.21	127,949	415,303	384,961
6	2024	0	2025	47,023	4,749,307	2026	\$27.21	129,229	506,175	466,041
7	2025	0	2026	47,493	4,796,800	2027	\$27.21	130,521	594,003	543,296
8	2026	0	2027	47,968	4,844,768	2028	\$27.21	131,826	678,889	616,907
9	2027	0	2028	48,448	4,893,215	2029	\$27.21	133,144	760,933	687,046
10	2028	0	2029	48,932	4,942,148	2030	\$27.21	134,476	840,228	753,876
11	2029	0	2030	49,421	4,991,569	2031	\$27.21	135,821	916,868	817,554
12	2030	0	2031	49,916	5,041,485	2032	\$27.21	137,179	990,941	878,228
13	2031	0	2032	50,415	5,091,900	2033	\$27.21	138,551	1,062,533	936,041
14	2032	0	2033	50,919	5,142,819	2034	\$27.21	139,936	1,131,727	991,126
15	2033	0	2034	51,428	5,194,247	2035	\$27.21	141,335	1,198,603	1,043,613
16	2034	0	2035	51,942	5,246,189	2036	\$27.21	142,749	1,263,240	1,093,624
17	2035	0	2036	52,462	5,298,651	2037	\$27.21	144,176	1,325,712	1,141,276
18	2036	0	2037	52,987	5,351,638	2038	\$27.21	145,618	1,386,091	1,186,681
19	2037	0	2038	53,516	5,405,154	2039	\$27.21	147,074	1,444,449	1,229,943
20	2038	0	2039	54,052	5,459,205	2040	\$27.21	148,545	1,500,851	1,271,165
21	2039	0	2040	54,592	5,513,798	2041	\$27.21	150,030	1,625,356	1,389,070
22	2040	0	2041	55,138	5,568,936	2042	\$27.21	151,531	1,680,415	1,428,740
23	2041	0	2042	55,689	5,624,625	2043	\$27.21	153,046	1,733,630	1,466,539
24	2042	0	2043	56,246	5,680,871	2044	\$27.21	154,577	1,785,062	1,502,555
25	2043	0	2044	56,809	5,737,680	2045	\$27.21	156,122	1,834,772	1,536,872
26	2044	0	2045	57,377	5,795,057	2046	\$27.21	157,683	1,882,816	1,569,571
27	2045	0	2046	57,951	5,853,007	2047	\$27.21	159,260	1,929,252	1,600,727
Totals		4,556,009		1,296,998		Future Value of Increment	3,688,392			

Notes:

Actual results will vary depending on development, inflation of overall tax rates.

NPV calculations represent estimated amount of funds that could be borrowed (including project cost, capitalized interest and issuance costs).

Cash Flow – For Illustration Purposes Only

City of Menasha

TID #14 Shopko Plaza

Cash Flow Projection

Year	Projected Revenues		Expenditures							Balances		Year
	Tax Increments	Total Revenues	MRO 855,000			TIF Creation Expenses	Pedestrian, Curb & Gutter, Storm Water	Ongoing Admin. Expenses	Total Expenditures	Annual	Cumulative	
			Dated Date: Principal	Est. Rate	TBD Interest							
				6.0%								
2019		0				30,250			30,250	(30,250)	(30,250)	2019
2020		0						15,000	15,000	(15,000)	(45,250)	2020
2021	26,627	26,627			51,300			15,000	66,300	(39,673)	(84,923)	2021
2022	119,277	119,277	20,000	6.00%	51,300			15,000	86,300	32,977	(51,947)	2022
2023	125,428	125,428	25,000	6.00%	50,100			15,000	90,100	35,328	(16,619)	2023
2024	126,682	126,682	40,000	6.00%	48,600			15,000	103,600	23,082	6,464	2024
2025	127,949	127,949	55,000	6.00%	46,200			15,000	116,200	11,749	18,213	2025
2026	129,229	129,229	65,000	6.00%	42,900			15,000	122,900	6,329	24,541	2026
2027	130,521	130,521	70,000	6.00%	39,000			15,000	124,000	6,521	31,062	2027
2028	131,826	131,826	80,000	6.00%	34,800			15,000	129,800	2,026	33,089	2028
2029	133,144	133,144	85,000	6.00%	30,000			15,000	130,000	3,144	36,233	2029
2030	134,476	134,476	90,000	6.00%	24,900			15,000	129,900	4,576	40,809	2030
2031	135,821	135,821	95,000	6.00%	19,500			15,000	129,500	6,321	47,129	2031
2032	137,179	137,179	100,000	6.00%	13,800			15,000	128,800	8,379	55,508	2032
2033	138,551	138,551	95,000	6.00%	7,800			15,000	117,800	20,751	76,259	2033
2034	139,936	139,936	35,000	6.00%	2,100			15,000	52,100	87,836	164,095	2034
2035	141,335	141,335					56,000	15,000	71,000	70,335	234,430	2035
2036	142,749	142,749					196,875	15,000	211,875	(69,126)	165,304	2036
2037	144,176	144,176					196,875	15,000	211,875	(67,699)	97,605	2037
2038	145,618	145,618						15,000	15,000	130,618	228,223	2038
2039	147,074	147,074						15,000	15,000	132,074	360,298	2039
2040	148,545	148,545						15,000	15,000	133,545	493,843	2040
2041	150,030	150,030						15,000	15,000	135,030	628,873	2041
2042	151,531	151,531						15,000	15,000	136,531	765,404	2042
2043	153,046	153,046						15,000	15,000	138,046	903,450	2043
2044	154,577	154,577						15,000	15,000	139,577	1,043,026	2044
2045	156,122	156,122						15,000	15,000	141,122	1,184,149	2045
2046	157,683	157,683						15,000	15,000	142,683	1,326,832	2046
2047	159,260	159,260						15,000	15,000	144,260	1,471,092	2047
Total	3,688,392	3,688,392	855,000		462,300	30,250	449,750	420,000	2,217,300			Total
Notes:										Projected TID Closure		

SECTION 11: Annexed Property

There are no lands proposed for inclusion within the District that were annexed by the City on or after January 1, 2004.

SECTION 12: Estimate of Property to be Devoted to Retail Business

Pursuant to Wisconsin Statutes Sections 66.1105(5)(b) and 66.1105(6)(am)1, the City estimates that 100% of the territory within the District will be devoted to retail business at the end of the District's maximum expenditure period.

SECTION 13: Proposed Zoning Ordinance Changes

The City does not anticipate that the District will require any changes in zoning ordinances.

SECTION 14: Proposed Changes in Master Plan, Map, Building Codes and City of Menasha Ordinances

It is expected that this Plan will be complementary to the City's Master Plan. There are no proposed changes to the Master Plan, map, building codes or other City ordinances for the implementation of this Plan.

SECTION 15: Relocation

It is not anticipated there will be a need to relocate persons or businesses in conjunction with this Plan. In the event relocation or the acquisition of property by eminent domain becomes necessary at some time during the implementation period, the City will follow applicable Wisconsin Statutes Section chapter 32.

SECTION 16: Orderly Redevelopment of the City of Menasha

The District contributes to the orderly redevelopment of the City by providing the opportunity for continued growth in tax base, job opportunities and general economic activity. This includes improvements to the existing Shopko Plaza (not including the adjacent Shopko anchor store), and the outlot most recently operated by the Gardenview Restaurant. Plans include updating the façade of the Plaza and demolishing the restaurant in order to build a new, 3-tenant parcel containing national-known tenants. The façade upgrade is intended to attract additional tenants to the Plaza shops, and other improvements such as parking lot refacing, will be considered by the developer.

SECTION 17: List of Estimated Non-Project Costs

Non-Project costs are public works projects that only partly benefit the District or are not eligible to be paid with tax increments, or costs not eligible to be paid with TIF funds.

The City does not expect to incur any non-project costs in the implementation of this Project Plan.

SECTION 18:
Opinion of Attorney for the City of Menasha Advising
Whether the Plan is Complete and Complies with
Wisconsin Statutes 66.1105



City of Menasha • Office of the City Attorney

SECTION 18:
Opinion of the Attorney for the City of Menasha Advising
Whether the Plan is Complete and Complies with
Wisconsin State Statutes 66.1105

March 4, 2019

Mayor Donald Merkes
City of Menasha
100 Main Street
Menasha, WI 54952

RE: City of Menasha, Wisconsin Tax Incremental District No. 14

Dear Mayor:

As City Attorney for the City of Menasha, I have reviewed the Project Plan and, in my opinion, have determined that it is complete and complies with Wisconsin State Statutes Section 66.1105(4)(f).

Sincerely,

Attorney Pamela Captain
City of Menasha

100 Main Street • Menasha, Wisconsin 54952-3151 • Phone (920) 967-3608 • Fax (920) 967-5272
www.cityofmenasha-wi.gov

Calculation of the Share of Projected Tax Increments Estimated to be Paid by the Owners of Property in the Overlying Taxing Jurisdictions

Estimated portion of taxes that owners of taxable property in each taxing jurisdiction overlaying district would pay by jurisdiction.						
Tax Bill Allocation:		2018				
County		19%				
Technical College		4%				
Municipality		39%				
School District		38%				
Total		100%				
Revenue Year	County	Municipality	School District	Technical College	Total	Revenue Year
2021	5,178	10,318	10,018	1,113	26,627	2021
2022	23,194	46,219	44,875	4,988	119,277	2022
2023	24,391	48,603	47,190	5,245	125,428	2023
2024	24,635	49,089	47,661	5,297	126,682	2024
2025	24,881	49,580	48,138	5,350	127,949	2025
2026	25,130	50,075	48,619	5,404	129,228	2026
2027	25,381	50,576	49,106	5,458	130,521	2027
2028	25,635	51,082	49,597	5,513	131,826	2028
2029	25,891	51,593	50,093	5,568	133,144	2029
2030	26,150	52,109	50,594	5,623	134,476	2030
2031	26,412	52,630	51,100	5,680	135,820	2031
2032	26,676	53,156	51,611	5,736	137,179	2032
2033	26,942	53,688	52,127	5,794	138,550	2033
2034	27,212	54,224	52,648	5,852	139,936	2034
2035	27,484	54,767	53,174	5,910	141,335	2035
2036	27,759	55,314	53,706	5,969	142,749	2036
2037	28,036	55,867	54,243	6,029	144,176	2037
2038	28,317	56,426	54,786	6,089	145,618	2038
2039	28,600	56,990	55,333	6,150	147,074	2039
2040	28,886	57,560	55,887	6,212	148,545	2040
2041	29,175	58,136	56,446	6,274	150,030	2041
2042	29,467	58,717	57,010	6,337	151,530	2042
2043	29,761	59,304	57,580	6,400	153,046	2043
2044	30,059	59,897	58,156	6,464	154,576	2044
2045	30,359	60,496	58,738	6,529	156,122	2045
2046	30,663	61,101	59,325	6,594	157,683	2046
2047	30,970	61,712	59,918	6,660	159,260	2047
717,242		1,429,230	1,387,677	154,238	3,688,386	

Notes:

The projection shown above is provided to meet the requirements of Wisconsin Statute 66.1105(4)(i)4.



MEMORANDUM

To: Common Council

From: Nancy McKenney, MS, RDH, Public Health Director

Date: March 13, 2019

RE: Resolution R-9-19 Support for Letter of Intent to Apply for a University of Wisconsin Partnership Program Impact Grant for a Lead Safe Menasha

The Partnership Program was established in 2004 through an endowment gift from Blue Cross and Blue Shield United of Wisconsin's conversion to a stock insurance corporation.

Community Impact Grants provide up to \$1 million over five years to support large-scale, evidence-based, community-academic partnerships aimed at achieving sustainable policy, systems and/or environmental changes that will improve health, health-equity and well-being in Wisconsin.

This resolution authorizes the Menasha Health Department to submit a Letter of Intent to apply for a Community Impact Grant to advance Lead Safe Menasha, a childhood lead poisoning prevention program.



RESOLUTION R-9-19

SUPPORT FOR LETTER OF INTENT TO APPLY FOR UNIVERSITY OF WISCONSIN PARTNERSHIP PROGRAM COMMUNITY IMPACT GRANT PROGRAM

LEAD SAFE MENASHA

Introduced by Mayor Merkes

WHEREAS, The City of Menasha is dedicated to assuring conditions in which people can be healthy.

WHEREAS, The large percentage of older housing units is a concern to Menasha as the potential for lead laterals and lead-based paint being used during that time is considerable.

WHEREAS, Experts at the Environmental Protection Agency and Centers for Disease Control and Prevention agree there is no known safe level of lead in a child's blood, and;^{1 2}

WHEREAS, even low blood lead levels have been shown to affect IQ, ability to pay attention, and academic achievement, and;

WHEREAS, effects of lead exposure cannot be corrected, and;

WHEREAS, research shows that for every dollar spent on controlling lead hazards, \$17–\$221 is returned in health benefits, increased IQ, higher lifetime earnings, tax revenue, reduced spending on special education, and reduced criminal activity, and;³

WHEREAS, the City has established sustainable, partnerships and community leadership dedicated to childhood lead poisoning prevention,

WHEREAS, Menasha Utilities was a recipient of Wisconsin Safe Drinking Water grants, and replaced 200 out of 644 customer-owned lead or galvanized water service laterals and;

WHEREAS, In 2018, after Wisconsin Safe Drinking Water grants were expended, the City and Menasha Utilities jointly passed *RESOLUTION R-25-18 A Resolution Regarding Lead and Galvanized Water Services Lateral Replacement Partnership*, now awaiting approval of the Public Service Commission to support replacement of lead and galvanized water service laterals;

¹ United States Department of Health and Human Services, Centers for Disease Control and Prevention, *What Do Parents Need to Know to Protect Their Children?* 2017. Retrieved on March 28, 2017 from: https://www.cdc.gov/nceh/lead/acclpp/blood_lead_levels.htm

² United States Environmental Protection Agency, *Learn About Lead*. 2017. Retrieved on March 28, 2017 from: <https://www.epa.gov/lead/learn-about-lead#effects>

³ Gould, Elise, *Childhood Lead Poisoning: Conservative Estimates of the Social and Economic Benefits of Lead Hazard Control* Environ Health Perspective. 2009 Jul; 117(7): 1162–1167. Published online 2009 Mar 31. Retrieved from Pub Med on March 28, 2017 from: <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC2717145/>



WHEREAS, The Environmental Protection Agency (EPA) estimates that only 20 percent of human exposure to lead may come from drinking water, with the majority from paint in homes built before 1978, contaminated soils and dust.

WHEREAS, the most important step all of us can take is to prevent lead exposure before it occurs, and;

WHEREAS, the Menasha Health Department has established an academic partnership with the University of Wisconsin Oshkosh, Doctorate of Nursing Practice, placing two interns dedicated to the primary prevention of childhood lead poisoning (*2017-2018 Lead Poisoning Prevention Through Outreach at the City of Menasha Health Department; 2018-2020 Lead Free by Delivery*).

NOW, THEREFORE, BE IT RESOLVED, that the Common Council recommends the Menasha Health Department submit a Letter of Intent to apply for Wisconsin Partnership Program Community Impact Grant to advance *Lead Safe Menasha*, focused on making Menasha a leader in preventing childhood lead poisoning.

Passed and approved this ____ day of _____, 2019.

Recommended by:

Motion/Second:

Vote: _____

Pass/Fail: _____

Requires: __ Majority Vote
 __ 2/3 Vote

ATTEST: Donald Merkes, Mayor

Deborah A. Galeazzi, City Clerk